

CLENDENEN'S DETECTIVE MANUAL

How to Become a
Successful Detective

RUFUS H. CLENDENEN
CHARLESTON, W. VA.

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by Rufus H. Clendenen

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RUFUS H. CLENDENEN

INTRODUCTION

Of all the characters that come into the minds of writers, there is probably none that has been so thoroughly dramatic as the detective, unless it should be the crook with whom the detective deals.

The deeds of the underworld have a fascination for the most of us, and the detective who finds his way into them by the golden thread of his ingeniousness and unravels them, in our mind is the hero of romance and the guardian of the law abiding public. He reveals the mystery, apprehends or arrests and assists in the conviction of those who are regarded as the worst enemies of society.

To my mind, as well as thousands of others, the detection of crime and the "hunt" for the criminal is one of the most fascinating callings in which a man can engage. I believe I am safe in saying that every man has a desire, something within him calling out, to try and unravel some mysterious crime.

This work is based upon careful study of the highest recognized authorities on the subject. Its purpose is to present in a clear, connected and forcible manner the knowledge obtained from twenty-two years in the detective profession.

It is hoped that this treatise may satisfy the most thoughtful and experienced officers and that it may be also of special interest and profit to the new beginner, the more experienced officers and members of police departments.

The story section deals with actual facts and experiences in the mountains of West Virginia.

This being a book of facts and recounting some of my experiences in the detective profession, I sincerely hope that it will meet with the approval of all officers of the law and have a full reading from that portion of the public who are interested in perplexing problems dealing with the underworld of crime.

Respectfully,
RUFUS H. CLENDENEN.

CHAPTER I.

The Detective Profession in Full.

The detection of crime, and consequent pursuit and apprehension of the criminal, is one of the most fascinating vocations in which men engage.

At least once in every normal man's lifetime there comes the desire to engage in unraveling mysterious crimes. At least seventy-five per cent of the American people are inclined to attempt to unravel some mysterious matter at some time. The motives which lead men to become detectives may be a desire for personal glory, to win the rich rewards which are often offered for the arrest and conviction of some criminal, or simply the love of the chase, which is so deeply rooted in every real man's makeup. While every man may desire to become a detective, but few men are really fitted to succeed in a calling which demands so many qualities, both natural and acquired.

So many young men who are not educated make the mistake of their life by taking a correspondence course in some detective school which furnishes him with a little tin badge, a diploma, a card of introduction and a large quantity of worthless literature. These men I term "badge flashers" and "five-dollar detectives". In my office in the City of Charleston, West Virginia, you will find a sign over my door which reads as follows:

"NOTICE: 'Badge Flashers' and '\$5.00 Detectives', who are trained men, save your time. We cannot use you. (Signed) The Clendenen Detective System."

To be a detective, a man need not possess the physical qualifications which would fit him to meet the requirements of a patrolman or police officer. Many of the city detectives are recruited from the ranks of the patrolman and police officers, but there are many others who step directly into the ranks. While physical standards are more elastic than for patrolmen, they are rigid in this regard that extreme types are not wanted. The man who is very tall or very short attracts attention easily.

Any defect such as lameness, facial disfigurement, defect of speech, or eccentricity of manner provide an inseparable bar to success for the would-be detective, especially in police work; in private work these defects are not

so material. The physically normal are best fitted to avoid attracting attention. Many absurd notions prevail about the detective makeup, such as the ability to assume numerous disguises and impersonate numerous characters. Nothing could be farther from the truth. The best of all disguises is no disguise at all, but simply the ability to go quietly about one's business without revealing to onlookers what that business is. "The Old Sleuth", "Nick Carter", "Old King Brady", "Diamond Dick", "Pluck and Luck", and all five and ten cent detective story books make interesting reading, but the real detective who would attempt to use such methods would be laughed at as much by the underworld as by his fellow officers. Physical fitness is not the only qualification of the successful detective. He must have stability of moral character which will withstand the severest tests. He must be not only "as honest as the day is long" but also as honest as the night is longer. His word must be as good as his bond. A reputation for absolute honesty is acquired only by the sternest adherence to the principles of a square deal. Temptations to dishonesty are almost daily occurrences in the detective's life. It is a common practice for detected criminals to offer bribes for immunity from arrest. It is common knowledge in some cities that gambling houses, houses of prostitution, moonshining dens and bootlegging joints set aside a regular per cent of their earnings for the police. The young beginner or an experienced officer who once accepts a bribe for evading his plain duty can no longer lay claim to the title of an honest man. People who commit the above depredations are as thoroughly organized as the officers whose duty is to apprehend them, and when an officer accepts a bribe from any of these clansmen he must thereafter protect them or any of their associates.

Such acts are cumulative in their effects, leading eventually to almost inevitable exposure, arrest, conviction and disgrace. The awful and, in one sense, pitiable example given by Lieutenant Becker of the New York Police Force, should be sufficient to warn the young beginner of falling into these pitfalls or taking his first dishonest step.

A reputation for truthfulness is another essential of a man who wishes to rise in the detective profession. Very often the prosecuting attorney depends almost wholly upon the evidence given by the detective for a conviction, and if the detective's veracity is questioned it leads invariably to acquittal, where, on the other hand, a conviction could have been had. Judges and

juries are quick to detect the shifty, evasive manner of the man who is not telling the truth. Witnesses who are intimidated through fear of retaliation must be convinced of the reliability of the officer who has promised protection.

Even criminals are more apt to yield peacefully to the man who is known as a man of his word. Last, but not least, the man above soon learns upon whom he may rely and keeps that man in mind when there is a vacancy higher up.

A little reflection will convince anyone that sobriety is one of the essentials of success. The temptation to drink, to associate with lewd women and to frequent such dives, to mingle with the boys in a social round of drinks, and to be known as “a good fellow” gives one a strong hand with enemies of the underworld only; but to succeed as an officer of the law, this must be resisted. One need not be a temperance crank, inflicting his views upon others and all comers, but the detective, must of all men be ever on the alert, quick to think and act. He must keep his vision clear and his brain unclouded by all drugs and liquors.

The detective must be a constant student if he intends to rise in his profession. He is often pitted against men who have made crime a study and a profession, and many of the criminal class are men who have occupied high places. The officer must be able to meet all classes and conditions of men upon a common level. It is easy to imitate the man below, but difficult to mingle with the upper class if you are not fitted by education to meet them on a common level. The really dangerous criminal is the one who is educated. Many of them are graduates of colleges and universities. Some of them move in excellent society. The detective in his profession must be able to mingle with the masses and all classes. A knowledge of music, art, literature, the natural sciences and mathematics are of great worth to the aspiring detective. The ordinary officer who plods along in others' footsteps may be honest, sober and truthful, but he will never rise until he looks upon his profession as a science to be thoroughly studied and understood.

It is very essential to his success that he have an elementary knowledge of toxic chemistry, electricity and surgery. He must have a thorough knowledge of explosives, firearms and the tools peculiar to the profession of burglars. There are numerous qualities for the successful detective, such

as unquestioned loyalty, the deference to superiors, obedience, neatness, pride, courtesy to inferior as well as superior, unlimited patience, attention to detail and that elusive quality, manliness. Space forbids a complete discussion of these qualities, therefore, we shall begin the discussion of the more technical assets of the detective profession.

What constitutes a crime? When does a man or woman cross the line and become liable to arrest?

The laws of states and nations vary widely in regard to lesser crimes, but the more important crimes are similar under the laws of all civilized nations. Minor offenses may be illegal in one country and allowed in another. The detective must be conversant with the laws of his state and nation and also have a general knowledge of the laws of all nations.

The major crimes are classified as offenses against the person, such as assault, rape, homicide; offenses against security of peace and property, such as arson, blackmail, extortion, larceny, burglary, robbery; and offenses against the state and public morals, such as anarchy, adultery, bigamy, bribery and perjury.

Arson is one of the most difficult crimes in which to secure a conviction for the reason that the evidence is usually destroyed. Evidence must be secured which will prove that there really was a fire and that it was planned.

Assault may be felonious or simple. Simple assault may be left to the patrolman. Felonious assaults are generally qualified by the words “with intent to kill”, and as such are serious. The weapon with which the assault was committed is an extremely important bit of evidence and should be secured and identified in the presence of witnesses if possible.

Rape is a crime for the police to handle and violations of the “Mann Act” are generally handled by Federal officers of long experience.

Bigamy is a case for the detective, as the gathering of evidence of a former marriage must generally be secured in a different locality from that in which the crime was committed. Evidence consists of proof of a former marriage, proof of identity and proof that there has not been a divorce.

The crime of blackmail is becoming of great importance because of the nation-wide operations of organized gangs. Securing evidence is made more difficult because of the reticence of the victim. Close and clever shadowing

of the suspected person is necessary in order to secure evidence. It is in securing evidence against blackmailers that the “Third Degree” is partially justified, as a confession from one of the gang is of prime importance.

Bribery is one of the most common crimes. Evidence consists of marked money used, eye witnesses, dictagraph records and flash photographs of the act itself. Pre-knowledge of the crime is essential or evidence cannot be secured.

Larceny, robbery and burglary are crimes which call for considerable experience in the securing of evidence. Pawn shops and “Fences” must be watched constantly. Safe burglars are the worst of the lot, exceeding in importance even the “Dutch House Men”. They have many tricks never used by house men. The detective must become familiar with the tricks of the regulars and must distinguish the professional from the amateur job at a glance. Burglars generally stick to one phase of burglary and may easily be known by some personal peculiarity of operation. Loft, store, store window, house, flat, bank or office thieves are each a study of themselves and not to be confused. The detective must become familiar with the various tools used by burglars and the manner of their use.

Homicide—“to kill by act, by procurement or by omission”—furnishes one of the most frequent cases for the detective bureau. In homicide cases it is absolutely essential that the identity of the body be established. The “*Corpus Delicti*” must be established. The clothing of the victim is often of prime importance. If a pistol was used, empty shells and the ball or balls are evidence. If possible an ante-mortem statement should be secured. The position of the body, furniture, etc., must be noted that you may be able to paint a verbal picture of the crime. Do not become disheartened if a clue does not prove right when followed. Scotland Yard men succeed often because of their bulldog tenacity, the Swiss because of their patiently minute measurements; the Germans because of their rigid classification of all citizens and strangers; the French because of their brilliancy of deduction, and the American because he uses all of their methods supplemented by native shrewdness and observation.

Evidence may be direct, cumulative, circumstantial or hearsay. The detective should make a careful study of these forms and their importance in order that sufficient evidence to convict may be secured. A careful study

of the evidence given at important trials will aid greatly in determining the importance of evidence. The Thaw case, the Leo Frank case, the Marion Lambert case and others of like importance should be carefully studied as they are replete with valuable pointers in the securing of reliable evidence.

In securing evidence it will often be found that witnesses will talk freely under the influence of excitement but become more and more uncommunicative when the excitement wears off. Witnesses at times fear revenge, injury to business or notoriety; it is the detective's duty to inspire confidence in the timid witness. The officer must be possessed of infinite patience and tact in order to get at the real facts. A brusque, harsh, intimidating manner rarely succeeds in getting witnesses to tell the whole truth. Little things must not be overlooked. Often things unimportant in themselves become of prime importance when they become one link in a chain of evidence. The best way to arrange the evidence is to keep a memorandum book in which is set down the points as discovered, then at your leisure you can arrange your facts and get their relative bearings on the case in point. Under these headings may come facts bearing upon the victim's life history, family affairs, time of the assault, weapon used, eye witnesses, if there be any, and any suggestive features of the case which have a bearing on the criminal's identity. Deduction and observation are the twin aids in the unraveling of crime.

What powers of arrest have the detective? A warrant is always sufficient power but a warrant cannot always be procured in time. The detective has the following powers of summary arrest:

1. For a crime committed or attempted in his presence.
2. When the person arrested has committed a felony, although not in his presence.
3. When a felony has in fact been committed and he has reasonable cause for believing the person arrested to have committed it.
4. A non-resident may be arrested for a crime committed out of the state on receipt of a telegram from the authorities of the place where the crime was committed.

When the officer's attention is called to the commission of a crime he must act quickly. It is not possible to consult a reference in regard to the powers of arrest. The detective must know the limitations of his powers and must be careful not to go beyond them. Every person must be informed of the reason for his arrest unless he is arrested in the actual commission of a crime or after a chase immediately following. Whenever the officer is

permitted to make an arrest he is permitted to use sufficient force to effect it. Brutal methods, however, are frowned upon by the courts. Fugitives from justice may be arrested for a crime committed in another state if such a crime is punishable in the state where the arrest is made. Detective departments of states and nations are usually glad to co-operate in the apprehension of criminals.

Crimes like homicide, arson, burglary, etc., are as old as the world but new developments of civilization bring with them new crimes and new types of criminals. Piracy is an extremely old crime but train robberies were unheard of until trains began to run.

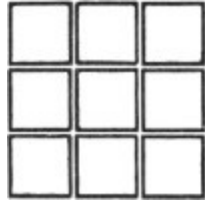
Civilization has become too complex for such hard riding bandits as the James Boys or the Dalton Gang to flourish, but a newer and more dangerous type has arisen in the automobile bandit. The Apaches of Paris took to the automobile like a duck to water. Bold and daring criminals of the United States were quick to see the advantages of the automobile in committing crime. By its use a safe may be cracked in the country bank and before morning the robbers be secure in some city miles away, leaving no trace behind them. The best trained bloodhound is helpless when put upon the trail of the auto. Here is a chance for the ambitious detective to win name and fame for himself by devising some means for pursuing and identifying the automobile bandit.

Criminals have always kept just a little ahead of the men who make a business of detecting and preventing crime. Safe manufacturers are kept on their mettle to devise a safe which is really burglar-proof. The cracksmen generally laugh at their efforts. The criminal is quick to make use of new inventions. He readily discards his "can opener" and bottle of "soup" for the quieter and more efficient electric machine which eats through the heaviest steel door with neatness and dispatch. The Maxim Silencer and the automatic pistol were quickly adopted by the criminal class. The small fry such as the "dip", the "moll buzzer" and package thief may be left to the tender mercies of the precinct man but the really efficient detective must equip himself to engage in a battle of wits with criminals who make crimes a profession. He must keep abreast of the times, he must be cognizant of all the newer tricks of the criminal class and must find means to circumvent them. It is not sufficient to be as efficient as the other fellows—he must be more efficient. His work must stand in a class by itself.

He who would engage in the calling of the detective, in any one of its various phases, must be content to begin at the bottom and work his way upward by means of unremitting study and observation. He must possess a multitude of qualifications if he wishes to rise in his profession. He must be able to write reports which are models of neatness, accuracy and brevity. He is expected to know as much law as the lawyer, as much medicine and surgery as the doctor, as much chemistry as the chemist, as much psychology as the psychologist, as much science as the scientist. Above all other special knowledge he must know men. He must be able to best the gambler at his own game. Poker, faro, roulette, crap and stud are easy picking for the trained man. He must be familiar with the back rooms of saloons and the various and somewhat devious methods of the liquor dealers without himself becoming an habitual drinker. He must co-operate with the various city departments in maintaining law and order without becoming mixed in the schemes of the petty politicians who infest those departments. He must be familiar with the location and activities of the houses of prostitution without becoming morally corrupt. He must be stern without becoming brutal, be well read without becoming a book worm, be moral and sober without being a reformer, be good without becoming "good for nothing" by being too good, be athletic without developing muscle at the expense of mind, and be a mixer without becoming a loafer. He must be possessed of the cardinal virtues of honesty, truthfulness, sobriety and patience, and supplement the negative virtues with the positive ones of physical fitness, mental alertness, extraordinary powers of observation, facility in rapid deduction, ability to identify the various types of criminals at a glance and complete familiarity with the various modes of operation of the criminal class.

The history of the detection of crime contains amazingly few names of detectives who have distinguished themselves because of their discoveries or inventions. Of living detectives in the United States, William J. Burns and W. A. Pinkerton are the only ones who have achieved greatness, the former having been recently appointed by President Harding as Chief of the United States Secret Service. Pinkerton achieved greatness more because of his executive ability than because of his ability in apprehending criminals. Burns has not used sensational methods but has reached his present high place because of his ability to read the souls of men.

I have set a high mark, but it should not discourage the man ambitious to succeed. Success is not won in a single day. Success is the result of long years of patient endeavor and is reached more often through strenuous striving than through native ability. The man who is bound to succeed cannot be kept down. He will carve name and fame for himself in spite of the greatest obstacles.



CHAPTER II.

Preliminary Generalities.

To enumerate all that a competent detective should know, would be to say that he should know everything. But as this is impossible, a man or woman desiring to engage in this interesting and lucrative profession should at least acquire as general a knowledge of things as possible.

The pursuit of the profession itself, I have found, affords multitudinous opportunities for learning, and as each new case undertaken generally involves different circumstances, no better field for broadening the mind or enriching a person's experience can be found.

A detective, once he becomes qualified to act as such, is thrown in contact with all manner of life and conditions, and what experience he necessarily gains in one case is frequently of much value to him in attempting the solution of another.

In my personal experience, and from my wide acquaintance among detectives, I have found that the greatest asset a person engaged in this line of activity can possess is close observation and deduction.

Men and women are engaged in all lines of activity, and among these is to be found the professional thief. The professional thief, and this may be a woman as well as a man, devotes as much time and studious effort to crime as professional persons in other walks of life devote to their respective occupations.

In this country, as well as other countries, during the past few years there has developed many different criminal societies. Frequently these societies and their members are known to the police and detective agencies, but it is not always easy to capture them.

The ideals of professional criminals are quite the opposite of what is usually supposed. They admire cleverness and skill but despise violence,—the forger or swindler commands their respect while they scorn the yeggman or “gorilla” as they term all those who commit crimes of violence. These ideals give rise to the idea of caste or social position among them, the

counterfeiter, swindler and forger being placed at the top, while the burglar and highway robber are at the bottom. They are scrupulously careful to do nothing to disgrace themselves and lose caste in the eyes of their comrades. Thus a pickpocket would never commit a highway robbery, or a forger stoop to commit a burglary. Generally they practice at some particular type of crime until they become expert at it and seldom change or attempt anything outside of their own line. They consider it bad taste to kill anyone unless in cases of absolute necessity, but an exception must be made to this among the more desperate element of yeggmen, who seem to consider it an honor to kill an officer of the law, especially one in uniform; and they will sometimes, but not often, go out of their way to kill an officer and thus acquire glory in the eyes of their comrades. The aversion of the more intelligent crooks to violence is probably to some extent due to the fact that it is not profitable and aggravates the offense, insuring a longer term in prison if caught.

A professional thief, as a rule, generally confines his or her criminal operations to some one particular line of activity. Pickpockets or “dips” as they are known in police parlance, have no thought of robbing houses or turning burglars. A safe blower looks down upon the common highwayman, while the latter considers his occupation far more dignified than that of the yegg.

A professional forger is usually a drug fiend and considers himself too clever to associate with a “second story worker”. A “confidence man” has no respect for the “penny weighter”. The latter, it might be said, is the description given to diamond sneak thieves and their methods will be explained later.

In addition to the individual professional crook, the police of all larger cities must deal with what is known as crook organizations. Frequently as many as fifty or more thieves will be identified in a series of bold robberies, and so cleverly is this organization effected that it is almost impossible to obtain evidence indicting “the men higher up”.

For instance, the coming of the automobile has resulted in an organized system of thievery. Thousands of automobiles are stolen every year in this country. The cars are taken apart, reassembled, and finally the altered product is sold by some apparently reputable dealer.

This business of stealing automobiles by organized gangs of crooks has assumed gigantic proportions within the last few years. Although the police everywhere have made many arrests, yet cars are being stolen daily.

This system is one of the most elaborate ever adopted by professional thieves. One man is singled out to steal an automobile and he is instructed as to what kind of a car to steal. For this he generally receives \$50.00 or whatever price may be agreed upon.

He steals the car and turns it over to a second person. The second thief drives the machine to some other city and there delivers it to a third person who has been designated to receive it, and who is probably unknown to the first two thieves.

Thus exchanges are made from one party to another, a small financial transaction taking place each time, until the car finally arrives at an assembling plant or garage where the owner acts as a "fence". Here the car is taken apart, all the parts are changed around and with parts from other cars it is assembled again, re-painted and placed on the market as a second-hand machine.

The final destination of the stolen automobile is generally not known to the thief who originally stole it. All he knows is that a certain person paid him \$50.00 for the automobile and what became of the car after that is usually of no interest to him. The second thief perhaps knows that he received \$100.00 for the same car from a third person, and there his interest ceases.

It is because that the majority of professional thieves confine their operations to some one particular line that the detective soon learns to associate the commission of a certain criminal act with a certain criminal or gang of crooks.

My experience has taught me that reformatories generally do not reform young men, correction houses do not correct men and penitentiaries do not make men penitent. I am speaking now of the professional crook. Society does not build these institutions to punish those who violate the laws, but to protect society from the operations of this gentry.

A short term in prison for the average crook is only a part of the game. Immediately upon his release he again resumes the old criminal method in

trying to get a living. I have never been able to understand why a professional crook will devote so much time, thought and study in the commission of a crime for a certain competence it is to bring him, when the same amount of effort and labor spent in an honest direction would result in ten-fold benefit. The professional crook is a menace to society and the detective is the bulwark to stand between the thief and society, protecting the latter from the many schemes devised by the criminal who foolishly imagines his futile efforts will get him something for nothing. No matter how clever the thief may be, sooner or later he is caught in the toils of the law. The legal machinery grinds relentlessly. The more intelligent the thief the greater will be his suffering. All professional crooks acknowledge that they make interesting reading, that in the long run it does not pay to commit crime.

In my own experience among detectives I can recall many cases wherein it would have been possible to lay hands on the real offender, but not having sufficient evidence it was impossible to take criminal action, and the guilty persons sometimes take this advantage and are never apprehended.

But all skilled detectives bide their time. They know that sooner or later the man whom they want will “slip a cog” and they will apprehend him, convict and send him to the penitentiary.

The commission of any criminal act sets in motion all the human forces to uncover the culprit and bring him to justice. These forces are working constantly in every civilized country on the globe.

Police departments and detective agencies everywhere co-operate. They are in one gigantic combine to run to earth the evil doer. Woe betide the man, woman or organization that seeks to continue criminal operations.

In the past ten years there have been many wonderful and startling changes in the methods of crooks and persons of the underworld. The old time burglar with his dark lantern and gun has practically passed away. Burglaries nowadays, for the most part, are committed by young men or boys who act impulsively or on the suggestion of evil minded companions. The highwayman at the present time is very active, due somewhat to the conditions of our country. The streets of all large cities are so well patrolled

and economic conditions have become so changed that the field of operations for the highwayman is very limited.

Then, again, the offense is punishable by so severe a sentence in a state prison, and the danger of being caught is so great, that the professional crook prefers to devote his efforts to less hazardous crimes. The professional crook, I have found, is the one who steals money, or that which can easily be converted into money. Only the occasional thief or petty crook bother with stealing articles the disposition of which might prove difficult. Every professional thief realizes that nothing is worth stealing unless it can be easily and readily converted into cash without fear of detection. The man or woman who steals any article of value and carries it to the nearest pawn shop in the hope of realizing a little ready cash, might just as well walk into police headquarters after committing a theft and make a full confession. There is a law in most states making it compulsory for the owner of a pawn shop to co-operate with the detective and police departments in all their daily transactions. The pawn broker is too wise to permit his license to become revoked or to be hauled into court on a charge of receiving stolen goods.

The pawn broker makes a mental note of every person who would do business with him, and to the detective and police divulges any valuable information that he may have. In some large cities pawn brokers are furnished with a list describing stolen articles, and there is an electrical sign or signal connected from the store to police headquarters to be used in an emergency.

CHAPTER III.

Elementary Principles.

There is perhaps a greater demand for experienced detectives today than ever has been in the history of this country. That class of persons who seek to obtain a livelihood in violating the law, is constantly growing larger, and it is upon the detective, and the police department of the country that society must depend for protection from this menacing element.

In taking up detective work as a business in life, I would advise persons interested in this profession to first acquire some of the elementary principles. The young man or woman who hopes to make a success as a detective must learn something of the effect and cause. Every effect has its cause and while the cause of many effects is apparent, the detective often finds a situation the real cause of which is not self-evident. When I start out to conduct an investigation, the first thing I try is to determine the cause. That is, I try to ascertain a theory for the action. There must have been some motive for the offense, assuming, of course, it was committed by a normal, sane person.

Every crime presents some moral features that are intrinsic and essential. Such a feature is motive. "Who benefits by this crime?" is the first thing to be asked. This first step will eliminate many persons. The second clue should be found by answering the question. "Who had sufficient knowledge to commit the crime?" For instance, in a burglary where jewels or money are taken, the existence of which was known only to certain people. Thus many crimes are classified as inside jobs or outside jobs, meaning that some one inside the house committed the crime or that the evidence showed that someone entered the house from without.

Another point to be looked into is the character of the crime itself. Some crimes require real skill, such as forgery, bank robbery or counterfeiting. In this instance a knowledge of criminals and their peculiarities of work is essential to the detective and this knowledge is supplied only by experience.

The radius of action is another feature that calls for attention. This means that only people within a certain distance could have committed the

crime, and all those outside that boundary can be eliminated. The proof of an alibi is the most simple counter to the detective.

A final caution must be given. Good judgment must be used in weighing the relative value of clues and the detective must not be too easily misled by appearances. Every claim must be tested and every physical fact must be verified. Where arrests are made the stories told by different suspects must be minutely examined and checked up, not only with other stories told, but also with physical facts of the case. For example, whether a door is locked on the inside or on the outside; whether glass that is broken falls to the inside or to the outside, whether blows can be struck from certain angles. The position of bullet marks on the walls, and a thousand other details must be carefully weighed, compared and classified before accurate deductions can be drawn.

Reconstruction is the greatest method of detection. While this involves, to a great extent, the creative imagination, it is, nevertheless, based upon a most minute collection of facts and cold experience in assigning them their proper places. While some great geniuses may be able to attain results by intuitive processes, it is a fact that practically all cases are solved by close observation, by common sense, by persistency and by understanding the meaning of evidence.

A final rule of universal application should be noted, and that is, the detective should always choose the most probable and least extravagant hypothesis to work upon. He should base his reasoning upon the common facts of human nature and the common occurrences of physical events, rather than be led away into fantastic suppositions by many points that at the same time seem mysterious and incapable of a rational explanation.



CHAPTER IV.

Origin of Criminals.

The normally intelligent person is not given to crime; the riff-raff and flotsam and jetsam of society is more apt to be criminally inclined than others. Pauperism, bad associates, gambling, drinking, the use of drugs, such as morphine, cocaine, etc., are causes leading to crime. The pauper criminal is generally known as a tramp, hobo, panhandler and beggar; they constitute the great majority of petty offenders and very seldom resort to grave crimes such as murder, especially murdering some one above their station in life, although they hold life cheaply among themselves and will often kill each other over trivial matters, depending upon their ability to escape through their knowledge of the country, being aware of the fact that the officials will not spend much time investigating the murder of a tramp or hobo.

The knowledge of being afflicted with some incurable disease, such as consumption, or some physical defect accompanied by poverty and ignorance, will often drive one to crime, for the simple reason that they are aware of the fact that they are sufferers and do not value their life and liberty the same as a normal man. Young men between the ages of sixteen and twenty-five years are the greatest offenders, especially those who have the wanderlust; their lack of early training and home influences, coupled with poverty and bad associates, often drives them to crime. A great majority of the convicts in the penitentiaries are under thirty years of age, and after their discharge from some penal institution they gradually drift back to crime.

The Detection of Crime—In the popular mind the methods of the detectives are shrouded in romance and mystery. Detective stories flood the country and the various figures that stalk through the pages of fiction, from “Sherlock Holmes” to the “Thinking Machine” are beings of strange powers who solve mysterious crimes by the marvelous effects of deductive reasoning or by the intuition of genius.

The truth of the matter is, that detection of crime is simply a skilled business and wherein the successful detective is simply the man who understands the laws governing scientific detection and applies them carefully to each case. Detection is simply a process of elimination on the one hand and of accumulation of possibilities on the other.

The first step in detection is the examination of both the physical and moral evidences involved in each case. The examination of these physical and moral evidences furnish the detective with what are called clues.

Clues—Clues are either external or internal. External clues have to deal with the physical aspects of the case, and internal clues have to deal with the moral aspects of the case. The detective must proceed in an orderly way, and, first examine the external clues.

These external clues include objects that have been used in the perpetration of the crime and all objects that show any imprint of the criminal's use; for example, weapons, tools, articles of clothing, foot prints and finger prints. The detective will therefore carefully examine the entire locality of a crime to see if inanimate objects suggest the criminal.

The science of finger prints alone is practically an absolute means of identification. Care should be taken to examine all objects for such marks. Clues must be examined, imprints or weapons inspected carefully and the entire scene of the crime should be reconstructed so that each alteration in furniture, etc., would suggest a new method or throw light upon the commission of the act. Close observation is the first requisite to discovering clues and this should be done most systematically.

The first step is to group your facts and afterwards to draw your deductions. The larger number of facts you have to deal with the easier should be the solution of the problem, as each fact is a link in the chain.

Another class of clues which is important in murder cases is poison. The exact poison should be determined by a careful analysis, and this properly belongs to the scientist rather than to the detective. Among the poisons generally used may be mentioned potassium cyanide (which is the most powerful of all), white arsenic, bichloride of mercury, etc. The first step for the detective is to investigate the source from which the poison is bought and this will infallibly lead to a strong clue against some individual.

Some cases are reported where medical science was called into play and the murderer used a culture of some virulent bacteria, simulating death from natural causes. Elaborate investigation is required in such cases as this.

The First Offense—First offenders are, just as the term implies, those not habitually given to crime.

Their criminal acts are not due to morbidness or weak mindedness, but usually are the result of pressing circumstances and committed only after their powers of reasoning against the act, their ability to realize their own best interest in not doing, their conscience and their fear of the consequences have been triumphed over by their inclination to do by the cause or motive underlying that inclination.

Most men are at times, under the stress of circumstances, tempted to commit crime. Usually their reasoning will successfully oppose the idea and the crime remains unattempted. In cases of insufficient training or education, however, where powers of reasoning are insufficient to override the inclination born of the motive; where men of greater intelligence would have let mental and moral opposition down the temptation, men of the single offender class are wont to see only the “red” of cause and motive and blunder into the act.

Take the case of any single offender, consider the motive underlying his act, consider his education, training, status of intelligence and you will find that the act naturally followed the circumstances preceding it, which formed the motive; whereas, with instinctive criminals, the morbid mind of the offender really forms the cause or motive for the crime, and produces a result without any direct bearing on preceding events, and in cases of crimes committed by professional criminals, the offender has no interest in the scene of his crime and his mind actuated by criminal habits makes the end to be gained the motive.

Taking the first mental characteristics of the offender, and the circumstances surrounding him, it would be comparatively easy to classify the crime. But in most cases the detective must begin with the crime and from the manner of its execution and the circumstances leading to it the motive must be deduced. With the motive as a working basis an actor must be found whose interest in the scene of the crime harmonizes with the

motive, and also whose mental characteristics fit the nature of the crime and the manner in which it was committed.

We have, therefore, to consider first, what motives compel men to commit crimes, and second, what are the criminal characteristics of the human mind.

The motives which are capable of inducing normal men to commit crime may be classified under three heads: (1) a desire for profit, (2) passion, (3) fear.

The profit or gain sought may be either money, the possession of some coveted article or even some intangible end, such as freedom from circumstances not compatible with the offender's desires; for instance, matrimonial bonds, jail sentences, etc. (In this latter case the act would be that of breaking jail, and the motive for profit would be the freedom sought).

Usually there is something stronger than money to tempt, something to augment the desire, *i.e.*, a particular use or pressing need—such as the meeting of debts incurred by sickness, financial troubles, high living or dissipation, or a desire to obtain money to spend on the woman (or man) with whom the offender is in love.

Absolute destitution is often a sufficient motive for crime, but the fact is then one of self-preservation. Poverty alone is seldom a sufficient motive, but comparative poverty to one accustomed to plenty is often a cause of crime. Envy of those possessing wealth and a desire to imitate them is often the motive in cases where, for instance, the profit to be derived becomes very great. A man who would not think of stealing a small amount might easily give way to temptation and embezzle thousands of dollars if the opportunity presented itself.

In cases where the offender appropriates money to his own use, expecting to use it only as capital with which to earn more money and then pay back the principal without the knowledge of the owner, the offender does not intend to injure or defraud the owner and does not do so unless through financial losses he is unable to make the return and the shortage is discovered. Although there is no criminal intent involved the act is then

construed to be a crime, as a matter of public policy and to serve as a lesson and warning in general.

Theft, breach of trust, embezzlement, forgery, arson and murder are the most ordinary crimes for profit. Arson for profit is the act of setting fire to property which has been heavily insured; first secretly removing as much of the more valuable property as possible with a view of collecting the insurance on the whole.

Murder is sometimes committed for life insurance, inheritance or as a means of severing an unhappy matrimonial bond; however, murders from the latter motive are usually committed by morbid persons, since a normal minded person would seek some other means of gaining the desired end. Another motive for profit is that of covering the evidences of crime.

The passions most productive of crime are anger, jealousy, revenge, etc. Hate may not be regarded as a motive of serious crime with offenders of this class, because hatred cannot become strong enough, except in a morbid mind, to serve as a motive.

The crimes due to anger are usually crimes of violence, such as assault, and although they are not legally considered to have criminal intent, are, nevertheless, punishable to some extent. Such crimes are usually unpremeditated and vary in degree of violence according to the tempers common to different races and individuals; and on these same racial and individual temperaments depend the extent and violence of crime due directly to a motive of jealousy, the most common form being assault or homicide. The Italian, French and Spanish people are exceedingly jealous natured, while this trait is much less noticeable in English, Irish, Scotch and German people. Jealousy is a primitive expression and finds most encouragement during the period of greatest sexual development, between sixteen and twenty-five with women, and eighteen and thirty with men.

Fear of physical violence, of death, of loss either financial or otherwise, of punishment, exposure or shame, either to the offender personally or to his family, becomes a motive for crime and justifies all acts in the eyes of the offender. The law recognizes the instinct of self-preservation and justifies any act where the motive is fear of physical violence or death, provided the danger is immediate; however, where the danger is distant, the

law refuses to sanction the act as it provides other measures for the protection of the individual.

Among the influences that determine crime, the most powerful are environment and association with respectable people. Home life is and has always been a great conservator of society. Every man hesitates to bring disgrace to his family. Therefore, when we find an habitual criminal, it is almost sure that he is without home ties. If a crime is committed by a highly respected man, who is bound by family ties, it is certain that some great need or influence rendered him susceptible to the crime.

Legal restraint is another conserving force. The folly of using illegal means to gain an end is oftentimes brought home to the criminal if he stops to consider what will be the result of his act. A mistaken idea of the easiest way to accomplish a purpose blinds a criminal to the fact that it could be done with less risk if done in conformity with the laws. It is an established fact that when there are laws that punish crimes adequately, the offenses of that particular kind are greatly diminished. White slavery is a well known illustration of this.

The influence of alcohol, morphine, cocaine and other drugs, however, render possible the perpetration of many crimes. Alcohol stimulates the body and vicious passions of men and brings about deeds of violence. Drugs lead to sneaky and petty offenses, thievery and lying. In a very short time the users of drugs become habitual offenders and cannot be classed as "single" criminals.

CHAPTER V.

Methods and Procedure of the Profession.

Shadowing.—Shadowing means to follow a person and note their movements and actions; what they do; where they go; in fact each and every movement. It is customary with the large detective agencies to start the beginner on a shadow case and watch the movements of the beginner by one of their experienced shadow men. This is done to keep the beginner from making a false report. Shadowing is a very important branch of detective work for the reason so many cases require this form of work. Most all important cases demand that some person or persons be shadowed, and in a large number of cases that never reach the public press the principals have been shadowed for weeks, months, and sometimes for years.

In shadowing a person, keep your mind on your subject all the time, also keep such close watch of the person's actions and movements that he is never out of your sight for a moment. Never allow the subject to see you looking at him. Never imagine what you think the subject will do or where he is going; the work you undertake is to note where he does go and his movements. Guessing on a proposition in this line is likely to divulge your identity and allow the subject to know your business. Do not allow your friends to stop or molest you while on this kind of work. It only takes you off your subject and interferes with your business. If the subject you are following becomes suspicious that he is being shadowed, he will likely enter an office building which has two entrances, entering one and departing by the other.

One of the most efficient methods of perfecting shadowing is to commence when the shadowed party leaves his home early in the morning. Where this is done, care should be taken that your actions are natural and normal, so as not to arouse suspicion of his friends or others on the street. Frequently, persons who suspect they are being shadowed have look-outs, whom they depend upon to inform them if any shadowing is being done.

When taking a shadowing job it is very important to find out as much as possible from the client, or in some other way have the subject designated to you. By this means the shadow does not have to come in contact with his subject.

In doing shadow work in cities the man assigned to this work should understand the different streets and buildings, be acquainted with the street car lines, the location of all prominent buildings and entrances to same, as it will often occur that a subject will go in one entrance in the building and come out at another, so the shadow will want to take the position, if he can possibly do so, where he can cover all entrances. Of course, this is impossible in some cases, as some large buildings cover an entire block. In a case like this you should follow the subject into the building, and, if possible, take the elevator and get off at the same floor with him.

Always note the time the person you are shadowing enters and leaves the building. The one being shadowed, no doubt, has certain fixed habits, and after shadowing him for a short while you will learn these—where he usually visits, how long he remains, etc. Make a note of all these things, so that in case of accident, and you lose track of your subject your notes will help you to pick him up again. In shadow work it often occurs the subject recognizes the detective and learns that he is being shadowed. Should this happen notify the main office so that they may send another man to take your place. Do not allow the subject to see you with the new man. Sometimes the best of detectives will be recognized by the man they are shadowing. Incidents of this kind grow less, however, as the detective acquires more experience in shadow work.

Investigation.—Investigation is another important matter in detective work. In the investigation of civil and criminal cases the detective is obliged to get the necessary evidence or information for his clients from many different sources, often entailing considerable time, patience, and expense. The investigation may cover a lot of territory, and the detective will then find it necessary to communicate with trusted agents or correspondents in different parts of the country to secure what information or evidence is needed to win his case. Care should be taken to see that all matters placed in other hands will receive prompt attention. You should remember that you are the agent of your client, and as such should always endeavor to give all

matters placed in your hands due consideration and prompt attention. The detective should never divulge any information given him by his clients to relatives or near friends. He should be truthful in his reports, economical with expense money entrusted in his care and never discuss any of his cases with outsiders.

“Roping” and Open Investigation Work.—“To draw out” or “rope in” with a person for the purpose of making an undercover investigation, you must first make their acquaintance, and, if possible to do so, do it in the way that your subject will never suspect that you are a detective. You must first get acquainted with some friend of his or hers, whoever the subject may be, then get his friend to introduce you, is the best way to get acquainted. Sometimes in cases you can pick up an acquaintance with a person in a way that would not arouse his suspicion and after your acquaintance work out of them by degrees the information you are trying to obtain. You will be called upon constantly to perform this class of work and will become naturally more and more expert with practice. In criminal cases, you have to be particularly careful, as the criminal is always more or less suspicious of strangers, and will not give out much information until you gain his confidence and get better acquainted. It is best to “frame” some story as to who you are and where you are from, etc. Do not state you are from some city that you are not from and could not give any information that would be asked you, as this is likely to “put you in bad”. It may be, you have gotten fairly well in the confidence of your subject and you have been leading him to believe right along that you were from Cincinnati when in fact you were never in Cincinnati in your life. Then you are introduced by the subject to a friend of his, who is really from Cincinnati, probably being born and raised there, and the subject would at once say to the newly met friend, “This man is from your old town or city,” and this new friend would begin to question you and talk to you about Cincinnati, and it would not take him two minutes to find out that you had never been in Cincinnati. Then all you had done would be undone, as the subject would become suspicious of you. Another thing, while on work of this kind, you are liable to meet two or more people whom you do not know or with whom you are unacquainted, but you might all be good friends of the subject. They meet and get to talking over having met you, and if you told them all different stories as to what your name was,

where you were from, etc., it will at once arouse the subject's suspicion, and your work with him will be worthless in the future.

Special Agents and Detectives Employed in Railroad Work and by Express Companies.—The larger railroads, as well as most of the smaller railroads, have a detective or special agency department. Where there is an organized department, there is always a chief of detectives, or chief special agent who is located in a city or town where the general offices of the company are located. His assistants are located at certain towns on the division over which he presides. The railroads also employ a system of watchmen, under the chief special agent, who are located in various cities and towns on this division. All orders pertaining to this line of work come through the chief special agent's office. The smaller railroads, where they do not have the organized department, but have a special agent, get their instructions from the superintendents of the railroads for whom they work. The special agent is commissioned under a "special railroad" law by the Governor of the state in which the railroad is located. To have authority in all counties in which this railroad enters, it is necessary for the special agent to have his commission recorded in each county, and this gives him no other police power other than authority on the right of way of the railroad company for which he is commissioned.

The railroad detective's, or special agent's, duties are to investigate all crimes committed against the railroad, train robberies, depot burglaries, car robberies, robbery of freight trains while in transit, freight depots, investigating "overs" and "shorts" in freight shipments, seeing to the safety of passengers while on the trains or at the depots and protecting them against confidence games, short-change men, pickpockets and so forth. It is also his duty to trace lost baggage, or baggage that has been pilfered while in transit. Investigating claims for personal injury of passengers or employees of the company, investigating reports and complaints made against employees. Special agents should become well acquainted with all employees and officials on the division to which he is assigned and make each and every one of them his friend, as in most all cases which he has to investigate it will be necessary to get information to assist him in this work from the officials and employees. He should not, under any circumstances, compromise himself with the officials or employee. But, if possible, he should always keep them under obligations to him, as he cannot tell at what

time he will be called upon to investigate an official or employee. At any time he is making an investigation, and there is any doubt about the complaint against the employee, he should give the man under investigation the benefit of same. In this manner you can establish a record with the officials and employees that will gain their confidence and naturally their assistance and makes it much easier for you to be successful. Be sure you have evidence to secure a conviction before detaining or causing a person or persons to be arrested.

It always is best to first consult the prosecuting attorney, or the attorney who represents the railroad company, laying before them the evidence you have in the case, and if, in their judgment the evidence which you have already obtained is sufficient to convict, then secure your warrant and make the arrest.

If it should be a case which does not require prompt attention, get your evidence in proper form, together with a list of witnesses, and present it before the next term of the grand jury in the county in which the crime or offense is committed. If the above instructions are carried out, and you fail on the conviction, there would be no one responsible for false imprisonment or arrest. The detective, or special agent, should be well versed in law governing his profession in the state in which he operates, as in most states the prisoner could recover damages for false arrest.

The express companies transact a very heavy volume of business in commodities of great value. Jewelry and valuables are shipped, much money is sent from place to place, and money orders and remittances are passed through the hands of the clerk to the customer constantly. In this class of business many irregularities occur. In the express detective business your knowledge of railroad detective work will be of great assistance, as the two are frequently called upon to work together.

CHAPTER VI.

The House Man or Hotel Detective.

The house man, or hotel detective, is employed by the hotel to guard the property and reputation of the hotel. To guard the property of guests, to watch dishonest employees and suspicious guests.

When the guest reports the loss of money or valuables it is the hotel detective's business to make an investigation, and to find out among the bell boys or other employees who had access to the room where the valuables were stolen. Chambermaids and new bell boys should be carefully watched, as this class of petty thieves seldom stay in one place long. When a certain employee is accused test him out; arrange for him to go on an errand to a guest's room while the guest is absent. If this boy is under suspicion place some money on the dresser or in the room in such a manner that the boy may see it. Do not let any of the help or the boy know they are suspicioned, or even that a robbery has occurred. These thefts are not always committed by hotel help. The professional crooks stop at the large hotels in the cities purposely to steal what they can. These crooks as a rule are fashionably dressed and pose as traveling men, insurance men, etc. They generally make it plain to the clerk that they are selling goods and frequently mention some particular local business man they intend to call on. While the other guests are asleep they will try to visit their rooms; also when the guests are at their meals. Up-to-date hotels use a double lock on their doors which makes it impossible, should the door be locked on the inside, for the hotel thief to open from the outside with a skeleton key. The transoms over the doors are also constructed so they open from the top, which makes it impossible for the hotel thief to gain entrance in that way. It is surprising, however, to a person not familiar with hotel detective work, to know the large number of guests in a hotel who do not take the trouble to, or forget to lock their doors when leaving their room for a meal or on business purposes, or when retiring at night, and of course, it is an easy matter for the hotel thief to rob all such guests.

We have another class of thief who causes hotels considerable trouble by getting them to cash fraudulent checks for them, but lately it is almost

impossible for any guest to have a personal check cashed, as the larger hotels make the clerk responsible. When a clerk in a hotel is suspicious of a guest, it is his duty to supply the house detective with such information; also instructions to be on the lookout; then the hotel detective usually has a better chance to observe the actions of guests than do the clerks, for the reason the detective is not known, but is supposed to be a guest at the hotel. The hotel detective should be supplied with all information and data relating to all the well-known hotel crooks, photographs, measurements, descriptions, etc., as these crooks frequently play the same hotel numerous times under different names. The larger hotels are infested by petty thieves, thieves who steal overcoats, wraps, hats and wearing apparel. Women, as well as men, ply this occupation and work usually in the lobbies, waiting rooms and writing rooms of the hotel. These thieves mingle where the guests are thickest and manage to sit near where a guest sits reading, his coat or wrap thrown carelessly over a chair. Then the well dressed thief waits the opportunity when the owner of the coat or wrap is busy with the book, or has his attention directed elsewhere, then he carelessly picks up the overcoat or wrap and leaves the hotel. A more common nuisance around the hotel is the "masher". This type of men and women are found in abundance and one class makes about as much trouble as the other. Real hotels have no desire to keep either of these classes, as they damage the reputation and the business of the hotel. The male of this class usually will be found hanging around the telephone booths and the waiting rooms. The female inhabits the balcony and corridors. The detective, in dealing with these two classes, must use great caution in order that a mistake may be avoided, as great damage could be done a hotel by a detective making himself obnoxious to reputable, well-mannered guests, and it is well to have the evidence on any one reported before any action is taken. The house man, or hotel detective, is not only custodian of the property of the hotel, but is responsible for the morals and general behavior of both guest and employee. He should familiarize himself with all frequenters of the hotel and know as much as possible about the various employees, even down to the scrub woman. This should be easy for him, as he has plenty of time for observation and is recognized by very few persons as being an official or connected with the hotel. It is the hotel detective's duty to look out for all gambling and confidence games going on in the hotel. The confidence men and gamblers generally pick out some man whom they know to have money, make his

acquaintance, find out if he has a weakness for gambling, and if so, suggest that they have a card game. The gambler will then meet one or more of his confederates, introduce them to the stranger, or “sucker” as he is called by them, of course introducing his confederates also as traveling men, and they will take him to his room or their room and there start a little game. They will then send one of the confederates out for a deck of cards, and he will return claiming he got them from the drug store, but they really are cards prepared or stamped which they can read. These cards they call “paper” and the “sucker” has no chance to make a win. They then increase the limit and the stranger or “sucker” is broke, and nothing more is mentioned of the game. They will sometimes go so strong as to have one of their confederates impersonate the house detective and he will appear when the game is in progress at the appointed time, and threaten to arrest all the players, in this way intimidating the stranger or “sucker” so that he will not mention his loss or game to the hotel management.

CHAPTER VII.

Industrial Detective Work.

Large factories, warehouses and wholesale houses and other industrial plants employing numbers of workers have a great deal of work for the industrial detective. In taking up work for a wholesale house, for instance, the detective must secure employment in the department where “leaks” are occurring, or where the information is to be obtained; then, as soon as possible, gain the confidence of the employees. Note where they keep their coats, overcoats and other wearing apparel, and if you suspect a certain employee, watch and see whether or not he carries out any bundles concealed in his coat or about his person. When they take an article, they usually hide it somewhere, and if wearing an overcoat, they usually put it in their overcoat pocket, so just before quitting time, go to where the overcoat or coat is hanging, and see if they have anything in their coat pockets. If so, examine it so you will know whether or not they have bought such article. If not, you will then know that they are stealing. It should then be arranged to have some one on the outside shadow or place them under surveillance to see what disposition they are making of the stolen goods, as this employee may be one of a gang working in the house, and then if a watch is kept on the place where the goods are being disposed of, it will only be a short time until the rest of the gang will be found out.

In looking after dishonest employees you should not be too quick to act, for the reason that as stated above, he may be one of a large gang operating in the house. The detective who does the inside work should not be assigned to the outside work of shadowing. His duties should be to cultivate the acquaintance of the employees, but he should not, under any circumstances, try to make a thief out of an employee or encourage any employee to do any stealing. In following this kind of work in warehouses, freight house or manufacturing establishments and in looking after thieves, or dishonest employees the same tactics should be used.

Another class of industrial work is in manufacturing plants where a large number of men and women are employed, where the employer wants to know whether or not the employees are loyal or disloyal; whether there is

any agitation among the employees. If so, who the agitators are? If there are any grievances on the part of the employees, what the grievances are? If it should be a non-union plant, whether or not there are any union men employed in the plant? Whether they are trying to unionize the plant? To do this kind of detective work, it is necessary for the detective to understand some kind of work around the factory or business plant so that he could go there and secure a position on his own resources. Getting into a plant in this way never arouses the suspicions of the employees, and after he is employed he should associate with the other employees during the noon hour. Should he find that there is any large number of them rooming or boarding at the same house or hotel in the vicinity of the plant to secure room and board there himself.

If this should not be the case, if he should learn of a place where a number of them gather, or loaf in the evenings, or when not working, make it a point to be around there. Get on friendly terms with as many of them as possible, and in this way you will soon know everything that is going on in the factory or plant. In doing this line of work, you should be very careful that you do not over-do it by spending too much money for drinks or other purposes. If you should do this, finally they will get suspicious of you and your work would be worthless. The best way is to simply act natural and live within what you are really earning at the place you are working. Do not try to fool any of the experienced mechanics as to your capability in certain lines of work. If you do they will surely get on to you. In doing any kind of industrial work, it is very important to not carry any credentials of any kind on your person that would identify you as a detective. It is sometimes better to change your entire clothing while working in the factory or shop, as the first thing a person would do if they were suspicious of you would be to look through your clothing to see if they could find any credential or card which would identify you as a detective. You should also be careful not to leave any credentials or in fact anything where you are living or boarding, as they are also likely to be searched during your absence.

This class of work is also called secret service work. Any young man of ordinary intelligence or education could be successful in this kind of work. The factory or plant makes a contract with the detective agency and sometimes the beginner is used in this class of work.

Railroads, street car lines and coal companies have a large amount of industrial or special work done, such as placing detectives who are members of the various railroad orders or unions among the employees, such as conductors, engineers, firemen, brake-men, bridge builders, machinists, blacksmiths, freight hustlers, clerks in the general offices, telegraph operators, and even down to section men, to get at irregularities, disloyalty, etc. The detective taking up this work should be a member of these various organizations to get the desired results.

CHAPTER VIII.

Insurance Detectives.

Insurance companies, both life and fire, offer a very broad field for the detective. In fire insurance, practically every fire is of unknown origin. A percentage, of course, are regular “burn-outs”, where the proprietor or owner is seeking to defraud the insurance company.

Fire insurance companies, however, must act very cautiously to not reflect suspicion on anyone, as they might be sued for damages. Fire insurance companies, therefore, never accuse anyone until they have the positive proof, and in order to get this proof careful detective work is necessary.

It is astonishing how many fires of this “burn-out” class occur. Men, engaged in business, carry a large stock of goods, and fail to make their business pay. They see disaster staring them in the face and they deliberately set fire to store and contents in order to save themselves. Others have their money invested in buildings; bad luck overtakes them, the buildings remain idle, and they plan to “burn-out” and collect the insurance. As mentioned above, even where all indications point to the owner setting fire to his own property, yet the fire insurance company dare not accuse him. Instead they delay settlement on some pretext or another, meanwhile investigating all phases of the fire. There is a wonderful opportunity in this work for good, ordinary detective work. In the case of a suspicious fire, the detective secures all the information possible without allowing the suspected man to know an investigation is being made.

It is well to find out the man’s past history, where he was located previously, whether he had any previous fires, or failures, what his reputation has been, whether he had any expensive habits, also whether his business at the present location was on a profitable basis, together with all conditions relating to his taking out the present insurance.

In investigating “burn-outs” the detective must follow the same policies as the insurance companies and be careful to avoid throwing suspicion on anyone. He must work along the lines suggested by the insurance company,

and with only one object in view—to secure facts. He must not draw his own conclusions that the man is guilty—he is not being paid for his opinion. He must secure all the facts possible as directed by the insurance company and place these facts in the hands of his company to be dealt with by the latter as their judgment directs. He must also remember the company will not prosecute unless the evidence is positive and honest.

In reports on this line of work the detective should make the information stand out plain and clear and give facts which he has learned in a truthful and unbiased manner. He must be honest with the man under suspicion as well as the company, as many fires have all the earmarks of crooked “burn-outs” and yet turn out to be regular accidents and perfectly legitimate.

Frequently, it is necessary for the detective to spend lots of money in getting into the confidence of a man suspected of incendiarism. If the evidence points strongly to incendiarism, however, the company is willing to spend money to catch him, as he might be the cause of a great number of “burn-outs” unless stopped permanently.

It was only a few years ago the insurance companies in a large city suspected that there was a regular arson gang operating, due to the fact that they had so many suspicious losses, altogether amounting to more than a million dollars. I was employed for the purpose of making this investigation, and to determine whether it was one organized gang doing this work or whether it was being done by various individuals acting independently of each other.

After several months of hard work and careful investigation I determined that the most of the big fires were being done by an organized gang, and after further work, with the assistance of the local city detective department, I succeeded in rounding up this gang, which not only included the real fire bugs and the persons insured, but an insurance solicitor, an insurance agent, and an insurance adjuster. The fire bugs were caught red-handed with several barrels of gasoline, hundreds of feet of fuse and powder, as they entered a big plant for the purpose of burning the same. These men were tried and convicted, as the evidence against them was complete.

CHAPTER IX.

Criminal Slang—Used by All Classes of Criminals.

Auntie or Mother—Keeper of an assignation house, or house of ill-fame.

Alias—A false name used by crooks.

Alley Rat—One who robs persons in alleys.

A Panhandler—A beggar, or one who solicits alms on the streets.

A Mizzen Mast Worker—A top story thief.

A Moll Buzzer—A thief who robs women only.

A Green Goods Man—One who sells worthless securities.

A Flying Jib—A talkative drunk.

A Four-flusher—A bluffer, a braggart.

A Bum Shaft—A bad leg.

A Bum Mit—A sore arm, or crippled hand.

A Bum Lamp—A bad eye.

A Bum Steer—False information, or direction.

A Fall Guy—One who assumes blame to shield others.

A Stool Pigeon—Thief who informs on others for protection.

A Valentine—A short jail sentence.

A Gum Moll—A woman pickpocket.

A Rag—A woman.

A Skirt—A woman.

A Hunch—A tip; a presentiment.

A Flat Wheel—A crippled leg or foot.

A Lift—A help.

Blackstone—A judge.

Blew in—Came in; came in town.

Bowl of Suds—Glass of beer.

Bats—Delirium tremens.

Blow—To tell around; to leave a place; to let alone.

Beak—A magistrate; a judge.

Bolt—To leave in haste.

Buggy—Insane.

Benny—An overcoat.

Benny (wooden)—A coffin.

Big House—Penitentiary.

Bilked—Fooled, evaded.

Bloke—Another person; a dumb fellow.

Brief—Pawn ticket.

Bracelets—Handcuffs.

Beefer—A complaining or informing person.

Belched—Told it; informed; gave up information.

Body Snatcher—Undertaker.

Beat—To escape; to defraud; to overcome.

Bang-up—Done right; good; red handed; without warning.

Bug House—Insane asylum.

Blowing a Peter—Blowing open a safe.

Blink—No good.

Bull—A policeman.

Baldy—An old man.

Blind—A make-believe; a stall; a pretense; an excuse.

Brass—Nerve.

Booked—Registered at a police station.

Brush—Whiskers.

Cannon—Gun; a pickpocket.

Canuck—A French Canadian.

Coffin Varnish—Bad whiskey.

Cell 99—Coroner's office; unidentified.

Chi—Chicago.

Cop—Policeman; steal.

Copper—Policeman.

Cold Feet—Lost courage.

Can—Police station.

Chuck—Meals.

Cop the Coin—Steal the money.

Croak—To die.

Crocus—A doctor.

Cove—A fellow.

Cush—Money.

Charlie Adams—A Yankee jail.

Chippie—A young woman of doubtful character.

Cooler—A cell.

Crumb—A louse.

Cuter—The prosecuting attorney.

Cinch—A certainty.

Coffin Nails—Cigarettes.

Coke Head—A user of cocaine.

Dame—A girl.

Dip—A pickpocket.

Ditch—To leave.

Dope—Information.

Dough—Money.

Duck—To sneak; to dodge; to sneak away.

Dump—Hang-out; low resort.

Drag—Horse and wagon; burglars' tools; political influence; draw smoke from pipe, cigarette or cigar.

Daffy—Demented or insane.

Dress Suit Burglar—Lobbyist; slippery fellow; smooth person.

Damp Powder—Not to be feared; a fake agitator.

Double Crossed—To betray confidence; to fool.

Dippy—Insane; crazy.

Dressed in—To prepare for prison sentence, being measured, photographed, hair cut, and donned with uniform.

Dressed out—To receive discharge, suit money, etc., when leaving prison.

D. & S.—Dangerous and suspicious.

Douse the Glim—Turn out the light.

Disciples—Jury.

Doniker—Cell; water closet.

Fagin—Thief; a person who teaches others how to steal.

Flat Joint—Crooked gambling joint.

Fall Guy—Thief who takes blame and penalty to save pals.

Fall Money—A fund maintained by thieves for their protection.

Fence—A receiver of stolen goods.
Finger—An officer of the law.
Flag—To stop.
Frame-up—A pre-arranged affair.
Frisk—A search.
Front—A showing, good clothes.
Flop—To stop; lie down; rest.
Flush—With plenty of money.
Fixed—Bribed; bought; pre-arranged.
Four-flusher—One who acts for effect.
Fine as Silk—In good condition.
Front Office—Office of Chief of Police or Detectives.
Floater—A traveler; a tramp.
Fresh Fish—A new hand; a new-comer.
Flossie—A blonde.
Gat—Revolver.
Gran—Leg; an old person.
Gofer—Safe, with time lock.
Gaff—Punishment.
Houseman—Burglar.
Hash Slinger—Waiter; restaurant worker.
Hop Joint—Place where opium is smoked.
Hot Air—Senseless talk.
Hot Foot—Run.
Hitting the Pipe—Smoking opium.
Harness Bull—Uniform officer.

Hinky Dink's—Clark St., Chicago; a resort in Chicago.
Hay Rack—Cell bed.
Hip—Wire; aware of.
Hoof—Walk.
Hike—Walk.
Hep—To be aware; to catch on.
Head Light—Diamond stud; a whiskey nose.
Heat on—Drunk.
Jersey Lightning—Bad whiskey.
Jobbed—Pre-arranged; unjustly convicted.
Jugged—Arrested.
Jagged—Drunk.
Jimmy—A bar with a crook in it so as to produce leverage.
Jacob—A ladder.
Jimmying a Bull—To stop or kill a policeman.
Jobs Put Over—Crimes committed.
Kicks—Shoes.
Knocker—One who speaks against the interests of another.
Kite—An immoral woman.
Knockout Drops—A drug used to stupefy.
Kike—A worthless or unsuccessful Jew thief.
Laying on the Side—Smoking opium.
Lingo—Foreign talk.
Lip—Talk.
Leery—Afraid; doubtful of.
Leather—Purse.

Laying Out—Assaulting.

Lay-out—Gambling outfit; opium outfit; an illegal collection.

Laying Paper—Passing worthless checks, drafts, etc.

Life Boat—A pardon.

Life Saver—Drink of whiskey.

Lemon Pool—Two playing against one in a game of pool; beat at pool by two confederates.

Law Ghost—A lawyer who never appears in court, but prepares cases for trial, looking up law, etc.

Mouthpiece—A lawyer.

Moniker—A name; an alias.

Mission Stiff—A missionary worker; a convert.

Pick-up—Arrested accidentally without any specific charge.

Punk—Bread.

Phoney—A substitute; bogus; not real.

Puffin Rod—A revolver.

Pipe Dream—Something not real; idealistic idea.

Plug—A horse; anything old or broken down.

Suds—Beer.

Slop—Stale beer.

Swig—A drink.

Swipe—Steal.

Stick—To remain; to wait.

Slats—Ribs.

Sixer—Six months.

Scot Free—Escaped; with no restraint.

Shiner—A black eye.

Sheeney—A Jew, a Hebrew; a stingy person.

Soaking—Placing in pawn; hitting.

Switch—Transferred; passing to another; substituting.

Spieling—Talking; walking; waltzing.

Snide—Mean; cheap.

Scratcher—Forger.

Shoving the Queer—Passing counterfeit.

Scrub Squad—Sanitary gang in prison.

Shark—Money lender.

Sidetracked—Left.

Soup—A concoction made by boiling dynamite in water and then drawing off the bottom, which is nitroglycerine, used in safe blowing.

Smoke Wagon—Revolver.

Sinkers—Doughnuts.

Side Door Sleeper—A box car.

Shadowed—Followed; kept track of; actions noted.

Snow—Cocaine.

Salve—Cheap talk.

Shy—Short.

Tribunal—Court.

Twist—Waltz.

Tart—A girl of questionable character.

Togs—Clothes.

Tanking Up—Drinking.

Tip—A warning.

Tommy—A girl of questionable character.

Toad Skins—Paper money.

Turnip—A watch.

Threwed Down—Betrayed.

Third Rail—A pickpocket on a R. R.

Tommy Buster—A man who beats prostitutes and lewd women.

Turn a Trick—A theft accomplished.

Trailed—Followed by a detective.

Track 13 and a Washout—A term in a western prison.

Third Degree—A violent method of the police; a re-enaction of the crime that one is accused of.

Twenty-three—An invitation to leave; originated in New Orleans, La.

Top-piece—Reward; hat.

To the Sheets—To bed.

Tip Your Mitt—Make known your purpose.

Uncle—A prefix to the name of pawnbroker.

Up the River—Sentenced to Sing Sing, a New York prison.

Use the Wax—Take an impression of a key.

Vagged—Convicted of vagrancy.

Velvet—Easy.

Windjammer—A talkative person.

Whiskey Tenor—A bad soloist.

White Mule—Alcohol.

White Stuff—Morphine.

Wet Goods—Stolen goods.

Yenshee—Residue left in the pipe after smoking opium, which is boiled over again and smoked.

CHAPTER X.

Scotland Yard Detectives.

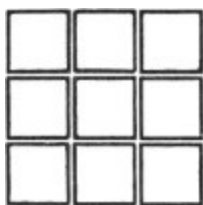
There are but few officers who fully understand what is meant by the term "Scotland Yard". Scotland Yard means the headquarters of the London Police, said to be the shrewdest detectives in the world. It is located on the Thames embankment and still retains its celebrated name because, when located at Whitehall, it was reputed to have served as the residence of early Scottish Kings. This system has four definite divisions with the minor, though important, fifth division: (1) There is a special branch that looks after secret service matters relating to the protection of the King and his ministers. (2) The criminal registry. (3) The convict supervision office. (4) Finger print branch, and the additional division is the office squad, which is subject to be called out or detailed in extraordinary cases.

If we understand the English system fully, we must take into account the fact that the English mind thinks in a straight line; that is, it reasons directly from cause to effect and effect to cause, and it seizes only the essentials and drives home to its object with them. The English rely on straight thinking and common sense instead of intricate reasoning and psychical research. This fact accounts for the type of workers employed. The men are not laboratory specialists or medical experts, but practical policemen, for the most part, from the country districts. There are several different reasons for this choice: (1) A country fellow is not acquainted with city ways and customs, and is therefore not liable to be influenced by them. Again since crime is regarded by the Englishman, not as a result of hereditary tendencies or a psychic phenomenon, but as a mere violation of law, it demands no intricate reasoning. A country fellow is more apt to see things clearly than is the city bred man. There are only two distinguishing characteristics. The first is the direct action in cases of arrest. The second, or most important, is the method of following dominant clues. The direct action in cases of arrest is a very dangerous method, as the criminals are wholly capable of a good pitched battle or a running fight; and they are almost invariably as well armed as their assailants. Still the Englishman will not allow a capture by a ruse or finesse. It must be direct. The method of

following the dominant clue is, as I have said, the distinguishing characteristics of the English method. The detective, instead of taking into consideration every thread of the woof and warp of the evidence, chooses one single item—the essential clue. On this one item of circumstantial evidence hangs the entire decision. This organization of Scotland Yard is entirely independent, entirely under the control of a commissioner, who is responsible to the home secretary alone. It is not accountable to the public in any way, gives no information, corrects or discredits nothing reported, never affirms or denies a newspaper rumor, and offers no explanation for its expenditures. It is thus enabled to work without any interference or outside pressure.

The greatest difficulty Scotland Yard is forced to meet is the handling of continental criminals, because of the great amount of red tape necessary in order to get in contact with the foreign detective agency. All communications are to be made first to the foreign minister. He informs the Ambassador in London, who in turn takes up the matter with the British secretary of foreign affairs, who turns it over to the home secretary, who in turn, turns it over to Scotland Yard. These peculiar methods remind one of the house that Jack built. Still these matters must be handled with the greatest delicacy and diplomacy.

The Scotland Yard detectives maintain a sensible man hunt by an experienced officer, and this will do more good than all the laboratory experiment the continent can carry on, and the American detective, in order to be successful, should follow these methods.



CHAPTER XI.

Legal Phrases of Criminal and Civil Law.

Accessory—One who is not the chief actor in the perpetration of the offense, nor present in its performance, but is some way concerned therein, either before or after the fact committed.

Accessory Before the Fact—One who, knowing a felony to have been committed, receives, relieves, comforts or assists the felon.

Accomplice—One who is in some way concerned in the commission of a crime, though not as a principal.

Administrator—A person authorized by court to manage and distribute the estate of an intestate, or of a testator, who has appointed no executor, or when the executor declines to act.

Alibi—Presence in another place than that described.

Alimony—The allowance which a husband by the order of court pays to his wife who lives apart from him for her maintenance. It may be *pendente lite*, *i.e.*: during trial, or permanent, *i. e.*: during their joint lives after termination of suit.

Answer—A defense in writing made by a defendant to the charges contained in a bill filed by the plaintiff against him.

Appeal—The removal of a cause from a court of inferior to one of superior jurisdiction for the purpose of obtaining a review and retrial.

Apprehension—The capture or arrest of a person on a criminal charge.

Arrests—Apprehending a person and detaining him in order that he may be forthcoming to answer to an alleged or suspected crime.

Assaults—An unlawful offer or attempt with force or violence to do a corporal hurt to another.

Assignee—One to whom the transfer is made.

Assignment—A transfer or making over to another of the whole of any property, real or personal, in possession or in action, or of any estate or right therein. An assignment is a transfer by writing and not by delivery.

Attachment—A writ issued by the court commanding the sheriff, or other proper officer, to attach the property, rights, credits, or effects of the defendant to satisfy the demands of the plaintiff.

Bastard—One born of an illicit connection and before the lawful marriage of its parents. One begotten and born out of lawful wedlock. A man is a bastard if born before the lawful marriage of his parents, but he is not a bastard if born after their marriage, although begotten before. A man is a bastard if born during coverture under such circumstances as to make it impossible that the husband of his mother can be his father, as if the husband has been absent on a sea-voyage for twelve months prior to his birth. A man is a bastard if born beyond a competent time after coverture has ceased, as twelve months after the death of the husband or after divorce. Most of the states provide that if a man marry a woman after she has borne children for him, that fact legitimizes the children.

Battery—An unlawful beating, or other wrongful physical violence or constraint, inflicted upon a human being without his consent.

Bigamy—A man who has two wives living at the same time, or a woman who has two husbands living at the same time. If more than two wives or two husbands, the proper term is polygamy.

Blackmail—In modern use, the extortion of money from a person by threats of accusation or exposure. The term originated in England and was first applied to those rents which were paid in grain or labor. They were called blackmail in distinction from white rents, which were paid in silver. The bands of marauders that infested the borders of England and Scotland about the middle of the sixteenth century levied contributions yearly from the inhabitants for alleged security and protection. This was called blackmail.

Bond—An obligation in writing under seal. It is usually for the payment of money upon certain conditions, as the malfeasance in office of the party for whose good conduct the bondsmen vouch, or the failure of a prisoner to appear in court for trial.

Bribery—The receiving or offering any undue reward by or to any person whomsoever, whose ordinary profession or business relates to the administration of public justice, in order to influence his behavior in office, and to incline him to act contrary to his duty, and the known rules of honesty and integrity.

Chastity—Purity from all unlawful intercourse. A woman may defend her chastity by taking the life of her assailant.

Coercion—Constraint, compulsion, force.

Cohabit—To live together in the same house claiming to be husband and wife.

Compounding a Felony—The act of a party injured in agreeing with a thief or felon that he will not prosecute him if he will return the goods stolen or in taking a reward not to prosecute.

Corpus Delicti—The essence of the crime; the body.

Embezzlement—The act of fraudulently removing and secreting personal property with the care and management of which the party has been entrusted, for the purpose of applying it to his own use.

Exemption—The right given by law to a debtor to hold a portion of his property free from liability to execution at the suit of a creditor, or to distress from rent.

False Pretenses; In Criminal Law—False representations of facts made with a fraudulent design to obtain money, goods, or merchandise, with intent to cheat. The representation must be of a present, existing state of things or a past event. An assurance with reference to a future transaction will not amount to a statutory false pretense.

Foeticide—Criminal abortion.

Forgery—The falsely making or materially altering with intent to defraud, any writing, which, if genuine, might apparently be of legal efficacy, or the foundation of legal liability. The statutes of most of the states define forgery with great particularity and reference should be made to them.

Guardian—One who has legally the care and management of the person or the estate, or both, of a child during minority.

Homicide—A killing under such circumstances of accident or necessity that the party is relieved from the penalty annexed to the commission of a felonious homicide.

Justifiable Homicide—A killing committed with full intent, but under such circumstances of duty as to render the act one proper to be performed. Self defense.

Felonious Homicide—A killing committed wilfully, and under such circumstances as to make it punishable.

Excusable Homicide—A killing under such circumstances of accident or necessity that the party is relieved from the penalty annexed to the commission of a felonious homicide.

Illicit—Unlawful.

Injunction—A prohibitory writ issued by a court of equity to restrain one of the parties to a suit in equity from doing an act which is deemed unjust or inequitable.

Manslaughter; Criminal Law—The unlawful killing of another without malice. Manslaughter differs from murder in lacking the essential elements of malice and premeditation. There being no premeditation, there can be no accessories before the fact. Manslaughter may be voluntary, as when the person intends to produce the injury, or involuntary, as that which occurs without the intention to inflict the injury, but in the performance of an unlawful act. The different grades of homicide are defined and their punishments fixed by the statutes of the various states.

Murder; Criminal Law—The wilful killing of any person, with malice aforethought. In nearly all states murder has been divided into degrees.

Parricide—The unlawful killing of father or mother, the murder of anyone to whom reverence is due.

Perjury—The wilful giving, under oath, in a judicial proceeding or court of justice, of false testimony material to the point at issue.

Poaching—Unlawful entering land in the night time, armed with intent to take or destroy game.

Rape—The carnal knowledge of a woman by a man forcibly and unlawfully and against her will. Man in this definition means a male of the human species of the age of fourteen and upwards.

Search Warrant—A warrant requiring the officer to whom it is addressed to search a house specified for property alleged to have been stolen and secreted therein. The officer must bring the goods if found and the body of the person occupying the premises, who must be named before the justice issuing the warrant or some other legally authorized officer.

Self-Defense—The protection of one's person and property from injury. A man may repel force by force, of his person, property, habitation against anyone who attempts to commit a forcible felony, as murder, burglary, rape, arson, robbery. He is not required to retreat but may resist and even pursue his adversary until he has secured himself from all danger.

Treason—Against the United States, according to the Constitution, consists in levying war against them, or in adhering to their enemies, giving them aid and comfort. It can only be committed by a person who owes allegiance to the government. In monarchies an attempt to kill the king is treason.

Vagrant—An idle person who has no settled home, who refuses to work and goes about begging, commonly called a tramp.

Verdict—The unanimous decision of a jury reported to the court on the case submitted to them in the trial of a case or cause.

Violence—The abuse of force; that force which is employed against the common right, against law and order and against public property.

Void—That which has no force or effect.

Voidable—That which has some force or effect, but which in consequence of some inherent quality may be legally annulled or avoided. An infant's note or contract with an adult is a familiar example. The infant may avoid or confirm the contract upon coming of age.

Warrant—A writ issued by a justice of the peace or other authorized officer and directed to a constable or other officer of the law ordering him

to arrest a person therein named charged with committing some offense and bring him before the justice.

Witness—One who testifies under oath to what he knows of his own knowledge not acquired by hearsay.

Without Prejudice—Anything said or done without prejudice is without affecting anyone's rights in the controversy or question at issue.

CHAPTER XII.

Tricks of the Up-to-Date Crook.

Pickpockets—Professional pickpockets, or “dips”, generally work in gangs of from two to five, in places that are crowded, or on street cars and railroad trains. Some are so successful that they can get through a crowd and “lift” or “dip” half a dozen pocket-books, watches or other valuables in a few minutes. When they work in groups the leader will spot the intended victim and jostle him or step on his toes, and while excusing himself, or otherwise attracting his attention, the rest of the gang will go through his pockets. Another method is for the gang to arrive on the platform of a street car, and as the victim squeezes himself on to the platform to pick his pockets, or one of the gang will stand at the entrance and help the intended victim aboard the car, and when the car starts throw his arms about him as though to keep from falling; while he has his arms about the victim, the other members close around him and proceed to relieve him of his valuables. Women pickpockets travel on street cars and sometimes have a false arm lying in their lap, giving them the appearance of having both hands in their lap, while they rob the one sitting next with the free arm. In larger cities the “squeeze game” is worked on the street cars and they have even robbed passengers by getting diamond studs from their shirt bosoms with their teeth.

Flat Workers—Flat workers operate in pairs. One acts as a “stall”; that is, finds the lay of the ground; the “stall” enters the flat first, rings the bell, and if answered, asks for someone whom he knows does not live there. When he finally locates an apartment that the occupants have left, he signals his partner, who goes up to the door and opens it with a skeleton key, or small jimmy, and ransacks the place thoroughly. While he is upstairs his partner inserts a letter in the letter box of the apartment while his partner is working, and if the occupant arrives in the meantime and abstracts the letter the “stall” rings the bell as a signal a number of times, giving the thief upstairs time to get out, either through the front or rear door. Flat workers are generally young men, well dressed, and if accosted in the hall of an apartment give some excuse or pretend to be on the wrong floor. This is

easy when it is taken into consideration that flats or apartments are from two to fifteen stories high and contain a large number of occupants.

Shoplifters—The professional shoplifter is to be found in every large city; large department stores are their field of operation. They generally work in pairs, sometimes two women or a man and a woman; one engages the attention of the clerk while the other does the work. They are most active during the winter and the holidays. In the winter the woman wears a large coat or cloak fitted with large false pockets reaching almost to the ground, in which she places the stolen articles. While in the store they never recognize each other, and never leave the store at the same time. The one doing the stealing leaves first, the other makes some small purchases, at the same time planning another job if the present one is successful.

Kleptomaniacs—Kleptomaniacs are supposed to be persons who steal for the reason that they do not realize the difference between wrong and right. When some woman of means, who can easily afford to purchase her wants, steals, she is said to be a kleptomaniac. Cases have been known where women would purchase hundreds of dollars of goods a month from some store and while in the store could not resist the temptation to steal small articles of very little value. Sometimes a detective will follow her around and make a note of the articles she steals and charge it to her account; the proprietors of the establishment finding that the better manner of handling such cases, rather than losing her trade. Kleptomaniacs are very seldom found among the poorer classes of shoplifters.

The Green Goods Swindler—The green goods game, as it is sometimes called, is generally worked on the green countryman, or some “sucker” in a little town. They generally insert an advertisement in a small monthly magazine, “Hearth and Home”, “Home and Fireside”, etc. This advertisement catches the “sucker’s” eye and he corresponds with a man who gives an alias in some little town. He will request that the “sucker” return each and every letter that he receives, and the “sucker” when the meeting is completed has even been given a new twenty dollar bill out of a roll of the supposed green goods to take to the bank to get it changed. The “sucker” is then informed that if it is good enough for the bank to take, and cannot be detected by them, he could use it without being detected. He is then met with a proposition that they would give him \$1,000.00 for \$250.00 cash and the money is placed in a grip or envelope and is then switched and

the “sucker” gets nothing but blank paper. After the exchange the “sucker” is accompanied to the train by the green goods man, at the same time impressing upon him the necessity of keeping the grip or large envelope in his possession, and to not open it or examine the contents until he reaches home and is alone. The “sucker” never complains for fear of being arrested for attempting to defraud the government by handling counterfeit money.

Fake Jewelry Swindlers—One of the most common swindles practiced in the large cities is the fake jewelry swindle. The swindler approaches some well dressed, prosperous person, generally a young man, exhibits a piece of jewelry, saying that it was stolen or found, and offers it for sale at a small price. When the purchaser finds he is “stung” he pockets his loss, fearing to expose his cupidity. A favorite place for these jewelry workers is on down town streets or around hotels. They always work at night, for it is hard to judge fake diamonds and other stones under a light. Another swindle is to offer a pair of supposed gold eye glasses saying they were found on the street or in some hotel toilet room. The eye glass game, as described above, is used by news agents on railroad trains throughout the country.

Death Notice Fraud—The most despicable form of a fraud is the crook who robs the members of bereaved families, especially widows and orphans. He watches closely the death notices in the large daily papers, and immediately expresses a package containing a Bible, a fountain pen, piece of jewelry, etc., addressed to the person who has just died. The article sent will be engraved with the initials or name of the deceased and will be accompanied by a receipt, showing that the deceased has paid a certain amount on the article, leaving a balance usually from \$2.00 to \$20.00 due, or mails them shares of stock in a mining or manufacturing concern, the price of which is greatly in excess of the real value, and on which the deceased is supposed to have made a partial payment. The members of the family, desiring to possess the last purchase of their beloved ones, will pay the balance, and afterward learn they have been defrauded.

The Badger Game—This game is carried out by a man and a woman who are supposed to be husband and wife; the woman must be good looking, well dressed, etc.; they operate in the following manner: The woman selects some prominent man of affairs, goes to his place of business and induces him to visit her home; after he has done so, she confides in him that she is a married woman and that her husband is a traveling salesman

and is rarely ever at home. After a visit or two the business man is confronted in the home by the husband, who apparently becomes enraged and threatens to kill them both. During this argument, another person enters the room and advises the enraged husband to desist from his intention of killing, that the better way would be to quit his faithless wife, at the same time demanding a cash settlement from the man who has ruined his home. The man generally settles to prevent an exposure. Another method of working the badger game is for a woman to entice a man of means to her apartments and while in a compromising position, have the room broken into by two or three men who claim to be detectives, who have been employed to shadow the woman for her husband in order to secure evidence for a divorce. They release the man and in a day or so he receives a letter from a lawyer requesting his presence at his office. If he complies with the lawyer's request he is shown two or three affidavits signed by the supposed detectives and a signed statement from the woman, together with a copy of a proposed suit by the wronged husband for alienating the affections of his wife, the suit to be filed immediately, unless he, the victim, settled for a good round sum of money. The whole thing is a frame-up and the couple probably work the game over the country. If the victim hesitates to settle, saying he will call later and consult his attorney, the woman in the meantime visits him at his place of business and begs him to settle, threatening to commit suicide right then and there—showing him a phial supposed to contain some kind of poison—unless some kind of a settlement is made.

Legitimate detectives are often called upon to run down this class of swindlers. To my own personal knowledge a great number of cases of this kind have occurred in the City of Charleston, West Virginia.

CHAPTER XIII.

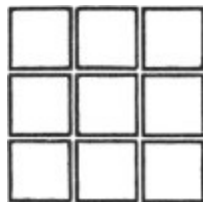
Private Detectives.

In the State of West Virginia the law does not require the private detective to be bonded, pay license to operate, etc. A detective employed by an agency or corporation does not need a license or commission as an officer of the law. The agencies and corporations have the necessary power to employ anyone to investigate any matter for them pertaining to their business. The successful detective does not make arrests, he gets the evidence, works up the case and lets the police, sheriff, constable or his superior officer make the arrest. The private detective who is trained by the correspondence schools does not follow the instructions given him, and through the lessons he is given it does not give him any experience in this line of work. I do not attempt to say that the detective training schools do not give the beginner a lot of valuable information, but most of the new beginners want to take out a license to carry weapons, wear a badge and exhibit his credentials in a general way to the public. This, however, is not the instructions of the training school. The making of a detective is not a simple matter—it's not uniform or badges, nor medals of heroism; even natural ability does not make a great detective, without the proper training and experience. More and more the prosecuting attorney and the court demand proper evidence upon which to base convictions, thus it falls to the lot of the man who wants to be a detective to be scientifically trained and have considerable experience before going into court.

The detective should acquaint himself with the law of extradition. Extradition means to extradite a prisoner from one state to another for a trial on a felony. Fugitives may be extradited from one state to another for any crime whatever. Proper procedure to extradite a prisoner from one state to another consists of a lot of "red tape". You must first make sure that the man under arrest in another state is the man wanted; then if the man has been indicted by the grand jury of your county, you must secure from the clerk of the court a certified copy of the indictment. Your next step is to get affidavits from the clerk of the county court certifying that so and so is the prosecuting attorney of your county and that (blank) is the judge of the

court; then the prosecuting attorney makes an affidavit stating that the man wanted is a fugitive from justice and that his arrest is not wanted to recover any damages or money in a civil action. After these papers are prepared they are taken before the Governor of the State, who issues a requisition on the Governor of the State in which the prisoner is confined, and employs some citizen or officer as his representative or agent to convey the prisoner back to the state in which he is under indictment. Where no indictment has been returned, and a warrant has been issued for the person charged with crime, practically the above procedure is followed. In all cases of this kind it is necessary to first consult the prosecuting attorney. After you have arrived in the city in which the prisoner is confined it is best to consult the local officers first, as in many cases the person charged with crime is willing to return without the necessity of securing extradition papers.

After you have your man, take him out of the state as quietly as possible to prevent his attorney from invoking the aid of the local courts through *habeas corpus* proceedings. Sometimes a Governor refuses to honor extradition papers, believing the prisoner will not be given a fair trial or is unjustly prosecuted.



CHAPTER XIV.

Description, or How to Describe Person Wanted.

The detective must be able to recognize faces from a written or verbal description, should be trained to penetrate all disguises or altered appearance caused by burns, loss of flesh, scars, sickness, or through gaining weight; and he should familiarize himself with the proper method in receiving and giving descriptions. Some people have this natural accomplishment; others must study and acquire it through training.

It is easy for an intelligent person, with the proper training, to develop and remember faces.

He should take pains to notice any peculiarities, pay strict attention to the color of the hair and eyes and remember that a man can change his appearance by letting his mustache or beard grow and by shaving his beard and mustache off. The beginner at his first glance only sees a confusion of curves, lines, eyes, a mouth, but notes nothing of a tangible form to enable him to memorize his face, but the experienced detective analyzes every definite and exact characteristic, each of which he impresses upon his memory. The wearing of colored glasses, or the absence of glasses on one who constantly wears them, the dyeing of the hair, the crowning of a tooth in the mouth, or the absence of a tooth changes the appearance of a person. These changes should be remembered when the detective is trying to locate a party of any description.

When the detective learns of a description of a person wanted for a crime, he must first commit to his memory the description of the face and general appearance, and he should remember the above changes in a description. The next step would be to ascertain where the person wanted visits or makes his home, his habits in general and who his associates are.

When taking a description the following questions should be asked: Age, height, weight, color of eyes, color of hair, carriage of the person, scars, burns, deformed in any way, defects of the nose, bones, peculiarities of speech or walk, description of clothing generally worn, the kind of a ring the person wears, size of shoes, whether or not he uses cigarettes or tobacco

in any form, what language he speaks, nationality, whether or not he is addicted to any drug habit. If you are unable to obtain a photograph, ascertain the name of his friends and try to persuade them to get you a picture of him. This will give you a general idea to work on.

We will first describe the FOREHEAD. It is necessary to note the profile, whether or not it is straight, slanting, medium, low or high. Whether or not the frontal bones are prominent, whether the arches above the eyes protrude to any extent. Also note the difference between the frontal bones and the arches.

The NOSE. The nose is either straight, concave or convex. The Roman nose convex, the Negro's concave, a Grecian nose is called straight. The upper portion of the nose between the eyes is called the root. It should be described as either prominent or not prominent. The elevation of the nose is elevated (slanting downward) level or depressed. By an elevated nose, we mean a pug nose.

When we speak of level, we mean a Grecian nose. A typical Jewish nose we call depressed. The ridge should be noted as very fleshy, or thin and bony. In many cases the nose is crooked, bending toward the right or left of the face, sometimes it is straight to the ridge of the center and then bends towards the right or left.

The CHIN. This can be described as receding (slanting backward) or protruding, sometimes described as ball shaped, pointed or square, flat, sometimes double or dimpled and containing an indentation. Sometimes the chin is hidden by a beard. In this case it is difficult to get a description of the chin.

The CHEEK. There are many ways to describe the cheek, such as high, low or medium. Sometimes we say "his eyes give him the appearance of having high cheek bones." When the jaw teeth are absent this causes hollow cheeks.

MOUTH and LIPS. The mouth, eyes and lips give the expression of the face. The mouth may be curved downward, curved upward or straight, "giving the expression of always smiling;" large, medium or small. The mustache greatly alters the appearance of the mouth. In conversation a person will show the upper teeth or the lower teeth prominently. You may

describe the lips as being thick, thin, full, bloodless, full color or pale, pouting or protruding. In working on a description, particular attention should be paid to the mouth and lips.

The EAR. We describe the ear as long, short, thin rimmed, full rimmed, round or pointed, whether the ear slants forward or backward. Sometimes the ear hangs downward, caused by the constant use of a cap. Some ears are square and some round, and should be described as medium or small. The right and left ear should both be described as many persons' ears are not the same. It is claimed that blood relationship has been determined by the shape of the ears.

The HAIR. The hair should be described as coarse, fine, straight, wavy, curly, thick, thin and the color of same. The person with light hair is termed a blonde; black hair, a brunette, and is usually found upon a person with a dark complexion. When we speak of blue-black hair, it is the darkest hue and only found in the Indian, Latin or Oriental races. Hair may be changed in color by the use of chemicals; the blonde can be changed to a brunette and the brunette to a blonde.

The COMPLEXION. The complexion may be described as medium, light, pale, sallow, dark, light reddish, ruddy, dark reddish, or full blooded, and the detective should bear in mind that confinement, sickness or use of drugs changes the complexion.

WRINKLES. There are three vertical wrinkles evidenced above the root of the nose. Sometimes there are only two. Occasionally only one; if only one it should be noted relative to the center, right or left. In middle aged, or elderly people, wrinkles show either horizontally or vertically. They sometimes extend entirely across the forehead and other times only half way. Wrinkles in a face may also be noted as extending from about middle ways of the nose towards the corners of the mouth. These wrinkles are in evidence when smiling.

SCARS. You should note all scars on the head, face or nose, on hands, deformed or crooked fingers, enlarged knuckles, discoloration of fingers caused by smoking cigarettes. Burns, moles, birth marks, tattoo marks should all be noted.

The FACE. You describe the face as round, oval, full, long, narrow, thin or regular.

The EYES. The eyes may be described as long, protruding, deep, “pop eyed”, outer corners drooping or elevated, squint, open, half closed or regular, also close together.

The WEIGHT. The weight of a person may be judged within a few pounds. It is well to remember that an athlete is a well muscled man and his looks as to weight may deceive you.



CHAPTER XV.

Modern Methods of Detecting Crime.

The method of finger prints at the present date seems to be the most efficient manner of identification. All the leading detective bureaus of the world use the finger print method. Thousands of sample finger prints will be found in their files. The detective and officer who is up-to-date, is trained to understand this method of identification. Leading experts all over the world accept the finger print as positive proof of identification.

Special paper prepared for such purposes can be purchased from the Detective Publishing Company, Chicago, Illinois.

Finger prints are readily made by coating the tips of the fingers with a fine layer of ink and pressing them upon specially prepared paper as described above. Finger print outfits and preparations for taking prints may be purchased from W. K. Evans, Director of Finger Print Department, Evans University, Chicago, Illinois.

Finger print experts claim to have records which will show that Chinese Monarchs used the thumb print as an identification one thousand years ago. Most experts claim that Sir William Herschel was the first to use them in India to identify documents.

They are used by the United States Army and Navy for the identification of deserters who try to re-enlist. They are used by a great many banks to identify a depositor. A great number of corporations use them for their employees to prevent the padding of pay-rolls and identification in case of accident, etc. They are used by schools, colleges and universities during examinations where substitution is liable to occur. Attorneys also use finger prints on deeds, wills and other legal documents to establish infallible proof of their genuineness.

Another method of identification is the Bertillon System, of which there are three chief parts, which means a general description, including the photograph. Part first—the physical measurements, of which there are only eleven parts. Part two—the general description of the prisoner, including his

photograph. Part three—the record of scars and peculiar marks, such as tattoo, deformities, etc. This system is used in Europe, Asia, Africa, North America, South America, Australia and the United States.

In taking the measurement of a prisoner, it is customary for one man to take the measurements and call them off, while another writes them down.

After a little practice it is possible to take the entire eleven measurements in about five minutes. This means taking the measurements and calling them off.

The Bertillon Measurement System was invented by Doctor Alphonse Bertillon, of Paris, France. This system was first introduced in the United States in 1887 and is used in all the principal cities in the United States and at the large Federal prisons.

The eleven measurements taken of each individual are all based on the bony structure of the body or skeleton. All experts claim that after a person arrives at the age of twenty-one that this measurement does not change. No other measurements are of any value. The Bertillon Measurement System can be secured in book form and all identification equipment by corresponding with Yawman and Erbe Manufacturing Company, Rochester, New York.

Some years ago the only evidence allowed to be given in court as to handwriting was that of the writer himself, or someone who had seen the writing done, or who was acquainted with the handwriting in question. Handwriting experts are now to be found in most of the large banks in the United States. These men are called to give expert testimony in all of the courts from justice of the peace up. It is a very common occurrence for a judge in summing up a case to the jury to emphasize the point that the evidence of the expert is only a matter of opinion, and the decision rests with the jury.

In order to detect forgeries on checks and legal documents, it is best to use the microscope, which frequently reveals erasing, etc., not visible to the naked eye.

An erasure may be detected on any instrument of writing by holding the same between the eye and an electric light, and the microscope will show the ruffled fiber on the face of the paper.

A very simple test that will reveal erasing is the use of iodine vapor which will often cause a blue coloration upon the moistened surface from which sizing had been removed, but will only color the remainder of the paper brown.

The detection of a mechanical erasure, such as is mentioned above, is frequently indicated by the paper being thinner and more transparent at that place; it is often rendered more certain by a photographer. If the document on which a suspected erasure is placed between a strong light and the camera, the negative will show a darkened area corresponding to the place where more light was transmitted through the paper.

Of recent years photography has supplied another valuable means of detecting alterations in documents, and it has been found particularly useful for demonstrating to a judge and jury the result of a microscopical examination. Photographic reproductions and enlargements have the advantage over chemical methods of not producing any alterations in the ink or paper, and in some instances is just as effective as the latter.

All leading details of the writing and the texture of the paper you can record by the camera. A photographic enlargement may then be made to any required extent so as to obtain what practically amounts to a record of the microscopical appearance. This process has an additional advantage over the microscopical examinations, and a large portion of the magnified surface may be examined at the same time. In studying a document under the microscope you may restrict the view to a very minute portion of the surface.



CHAPTER XVI.

Proof of Positive Identification—the Finger Print.

Crime is developing at a great rate, yet but comparatively few police departments have provided themselves with the necessary instruction and equipment to successfully combat it. A vast majority of the police departments in this enlightened age continue to pin their faith to the flint-lock musket of a by-gone day, while the lawbreaker eludes and evades and convictions grow fewer and farther between.

The greatest factor in the detection of crime—the one indisputable incriminating evidence of guilt—the present tell-tale imprint of the finger, is more often overlooked than it is pressed into service in bringing the guilty to the bar of justice.

Perhaps one of the greatest chief reasons for the lack of a world-wide use of the simplest known method of directly connecting the criminal with his crime is the misconception of the utter simplicity of securing such evidence and the certainty of it.

The following are a few of the great number of crimes committed in which the finger print alone played the important part and furnished proof of identification.

JENNINGS CASE.

On September 19, 1910, Clarence B. Hiller, who lived at 1837 104th Street, Chicago, Illinois, was murdered in his home, evidently by a burglar.

The following morning Capt. Michael Evans and his son, Wm. M. Evans, of the Chicago Bureau of Identification, went to the Hiller residence to look for finger prints. They found three on the newly painted porch railing. The rail was sawed off and taken to headquarters, where the prints were photographed.

Certain circumstances pointed to a negro, named Thomas Jennings, as the murderer, and he was arrested and his finger prints taken. They corresponded exactly with those found on the porch rail.

Jennings was brought to trial before Judge Marcus A. Kavanaugh, at Chicago, and was convicted November 11th.

Jennings' attorney fought against the admission of finger prints as evidence and argued that, as a means of identification, finger prints were unsubstantial. He was overruled by Judge Kavanaugh and four experts testified to the many points of similarity that existed between the prints found on the porch rail and those taken from Jennings' fingers.

One of the jurymen said, after Jennings had been convicted: "The finger prints, and the finger prints alone, convinced us that Jennings was guilty."

The case was taken to the Supreme Court of Illinois on appeal, but the verdict was upheld. In handing down their decision the justices of the Supreme Court said:

"When photography was first introduced, it was seriously questioned whether pictures thus created could properly be introduced as evidence. But this method of proof, as well as by means of X-ray and the microscope, is now admitted without question.

"We are disposed to hold, from the evidence of the four witnesses who testified and from the writings we have referred to on this subject, that there is a scientific basis for the system of finger print identification and that the courts are justified in admitting this class of evidence.

"Such evidence may or may not be of independent strength, but it is admissible, with other proof, tending to make out a case. If references as to the identity of persons based on the voice, the appearance or age, are admissible, why does not this record justify the admission of finger print testimony under common law rules of evidence."

Jennings was hanged on February 16 1912, at Chicago.

THE CHARLES CRISPI CASE.

In the winter of 1911, the loft of H. M. Bernstein and Brothers, 1701 Wooster street, manufacturers of ladies' garments, was burglarized in the early morning. Finger prints found in the burglary were discovered to be those of Cesare J. Selle, alias Charles Crispi, who, upon this identification, was arrested and indicted for the crime of burglary, in the second degree, second offense. At first, Selle's attorneys proceeded with the trial on a plea of not guilty, but after Joseph Faurot, the finger print expert, had testified the attorneys for the defense withdrew the plea of not guilty and pleaded guilty to the crime of burglary. Judge Rosalsky after the plea had been taken said to Selle:

"I want you to make a full confession. I can assure you that no indictment will be found against you or any witness who testified in your behalf in the course of your trial for perjury, but it is more

for the interest of justice and science that you tell the truth. It is invaluable for us to know whether or not the expert testimony given during your trial was correct or otherwise. The finger print experts are of the opinion that the science of identification, by means of finger prints, is more exact than the Bertillon System of photography. Did you remove the pane of glass, in evidence here, from the door of the loft of H. M. Bernstein and Brothers?"

The defendant answered that he did. In view of the fact that he had assisted the officers in helping to establish the authenticity of the finger print identification he was given a sentence of only six months.

In the year of 1910, two men broke into a home in Flatbush; they were discovered and one of them shot a member of the household. One of the burglars was also shot, and his injury led to the arrest of the other. Finger prints of both were taken, but the New York Finger Print Files contained no record of the injured burgler. He insisted that he had never been arrested before and that he had, by chance, been induced to take part in the Flatbush burglary. Captain Faurot researched his files, but could find no duplicate of his finger print card; still there was something strangely familiar with one of his prints. Suddenly it came to him. Some months before, there had been a burglary in Brooklyn, and upon a cut glass rose jar one of the thieves had left a thumb print, and a large photograph of this print was on file at the identification bureau. This photograph was compared with the impression of the wounded man, and found to agree with the print of his left thumb. Going directly to the hospital where the man was confined, Captain Faurot said to him: "When you broke into that house on Park Slope, three months ago, why did you not take that cut glass rose bowl?" "It was too heavy to carry away," replied the man.

In the Coppersmith case in Chicago, Russell Pethick, a grocery delivery boy, who murdered Mrs. Coppersmith and her baby boy, endeavored to put the officers on the wrong trail by giving the description of a man he saw going into the Coppersmith home about the time of the murder, and when taken to the Bureau of Identification in that city, through a ruse, his finger prints were obtained and afterwards fourteen points of comparison were

found in two fingers and on the bloody handle of the hammer with which he killed Mrs. Coppersmith. When confronted with his finger prints he pleaded guilty and is now serving a life sentence in the Illinois penitentiary at Joliet.

Another case of more recent date comes to my mind, where a clever identification was made. In San Francisco an expert burglar robbed several rooms in the St. Francis, the leading hotel of San Francisco. Among the people robbed was Miss "Billie" Burke, the celebrated actress, from whose room was taken about ten thousand dollars worth of valuable jewelry. There was no possibility of getting identification as to the thief; but a few days later an officer of the San Francisco police department arrested a man while attempting to dispose of some of the stolen jewelry. This man was a Swede or Norwegian named Peter Johansen, and he positively refused to give any information regarding himself. Through the kindness of Chief White of the San Francisco Police Department several copies of the man's photograph were obtained and sent to Europe for identification, together with his finger prints, as it was the opinion that this man, who had only been in this country but a short time, had come from Europe for the purpose of operating in San Francisco during the progress of the World's Fair. Chief White also wrote to Europe, enclosing pictures and finger prints of him, and we both got copies from Superintendent McCarthy at Scotland Yard identifying the man, not alone by his photograph, but positively by his finger prints. He gave a long criminal history of Johansen, where he had served time in England, Sweden, South Africa and Australia. I consider this a marvelous case of identification, as the finger prints in all of these different countries compared with those taken in San Francisco.

Story Section

Author's Announcement

The stories following relate my experiences and those of other officers and detectives. They are stories of cases in real life, handled successfully by different officers of the law. The stories are educational, covering several branches of the detective profession, both in police circles and private detective agencies.

The detectives, the police officer and all peace officers may derive both pleasure and profit by a reading of these stories.

RUFUS H. CLENDENEN.

Professional Bootlegging, 1915–1921.

(Written before National Prohibition became effective)

Mountains subserve important uses of the economy of nature, especially with the water system of the world. They are at once great collectors and distributors of water. But from time immemorial the mountains of the Virginias, Kentucky and Tennessee have been famed for things other than the uses of water.

Who is there who has not read of the mountain character who relied upon his “still” in some brush covered cove to produce the mountain nectar from yellow corn that has waved its golden bannerets on those sun-kissed hills, and which has brought imagined happiness to the wearied soul of the mountaineer—and not infrequently filled his heart with murder—for the juice of the yellow corn breeds dangerous lightning in the blood.

We have also read of the hatred these men have borne towards the law's representatives,—the “revenu” officers and detectives. Of the many and bloody battles, of the strategic moves adopted by the one and of the deadly aim of the other's rifle.

But this story deals not with the mountain “still” but rather with the new mountain, the “bootlegger”—the man who smuggles whiskey into dry territory in violation of the law and sells it to those who are ready and willing to pay the price.

The different dry states have raised a great crop of those “bootleggers” but West Virginia, in proportion to its size, has perhaps outstripped them all. In cities of 5,000 or more there are several “professionals” who vie with one another in their anxiety to break the law. By the “professional” is meant the man of means who is financially able to hire from one to a dozen men, or women, to work for him. These workers are called “runners” and when caught bringing more than one quart of whiskey a month into the state, or selling or attempting to sell the liquor, they are frequently sentenced to serve sixty days in jail and fined \$100, or more, while the “professional” goes unmolested.

But the professional “bootlegger” invariably places the indelible mark of his nefarious profession upon himself, for he stands by his “runners” and secures for them the best of counsel, who continues their cases from term to term on one pretext or another, and if eventually convicted, he sees that they receive good meals while in jail, and when the sentence is finished he sees that the fine is paid. The old legend, that there is “Honor among thieves” seems to hold in these cases, for the “runner” never connects the man higher up, the “professional”, with his misfortune, and receives his confinement and punishment without a word of complaint. No doubt the man receives a financial consideration for his silence.

It is estimated that in the City of Charleston, West Virginia, the State capital, which has a population of something like 40,000, there are at least two thousand persons engaged in violating the prohibition law. Hundreds are convicted each year. It is charged that there is lack of co-operation between the Prohibition Department of the state and the municipal and county officers. The laxity in this respect on the part of municipal officers may be due to the fact that there is no fee attached to the conviction of violators of the prohibition law.

The schemes invented to evade the law are about as remarkable and numerous as the violators themselves. It is known that automobiles have slipped into the state carrying as many as thirty-two cases of whiskey,

which is seven hundred and sixty pints. The “bootlegger” can buy the whiskey at \$27.00 a case and can sell it in wholesale lots at \$80.00 a case. Should he conclude to retail it he can get \$5.00 a pint, out of which he must pay his runner \$1.00. Thus it can be seen that the “professional” bootlegging business is a rather profitable enterprise.

It is remarkable the extent and the ingeniousness of the schemes adopted and devised in order to bring whiskey into the state. A short time ago a funeral procession wound its way slowly and majestically down the turnpike that connects Ohio and West Virginia. An alert officer was impressed with the extreme seriousness of the driver of the hearse and the undertaker who sat by his side. The hearse was stopped and an inspection made, and to the surprise of the officer he found the hearse packed with cases of the rarest brands of whiskey.

Farm houses and buildings are frequently used by the “professional” to secrete quantities of whiskey until such time as it is safe to attempt distribution. It is marvelous the amount of ingenuity that is being wasted in the construction of false partitions, sliding floors, window facings, door facings and traps and other devices that almost defy detection. The freight train is also used by the common “bootlegger”, and daily deliveries are made of supposed coffee in huge sacks, while in reality the coffee is just around the outside, as the center of the sack is filled with whiskey bottles.

It is surprising how many men of shady character and dishonest methods have grown in corpulence since the passing of the prohibition law. An investigation of the person of some of those “big” boys have revealed specially made vests with various and sundry pockets which invariably contain a pint of whiskey. As many as twenty-four pints have been found in the pockets of one man. While engaged in the search of a Virginian train at the Chesapeake and Ohio depot in the City of Charleston one morning, the writer and Sam Fields, a local prohibition officer, noticed an unusually large colored preacher across the aisle from where we were standing. Fields approached the preacher and said “Good morning, Parson.” Fields and I engaged the colored man in conversation and soon confirmed our suspicion that the man was a “bootlegger” owing to the fullness of his clothing. A search of the clothing of the supposed “Parson” disclosed an under-jacket made of bed-ticking, underclothing made of canvass containing pockets, thirty-six pockets in all, and each one containing a pint of whiskey. When

taken from the coach to the platform it required aid to get him from the seat, he was so burdened with contraband.

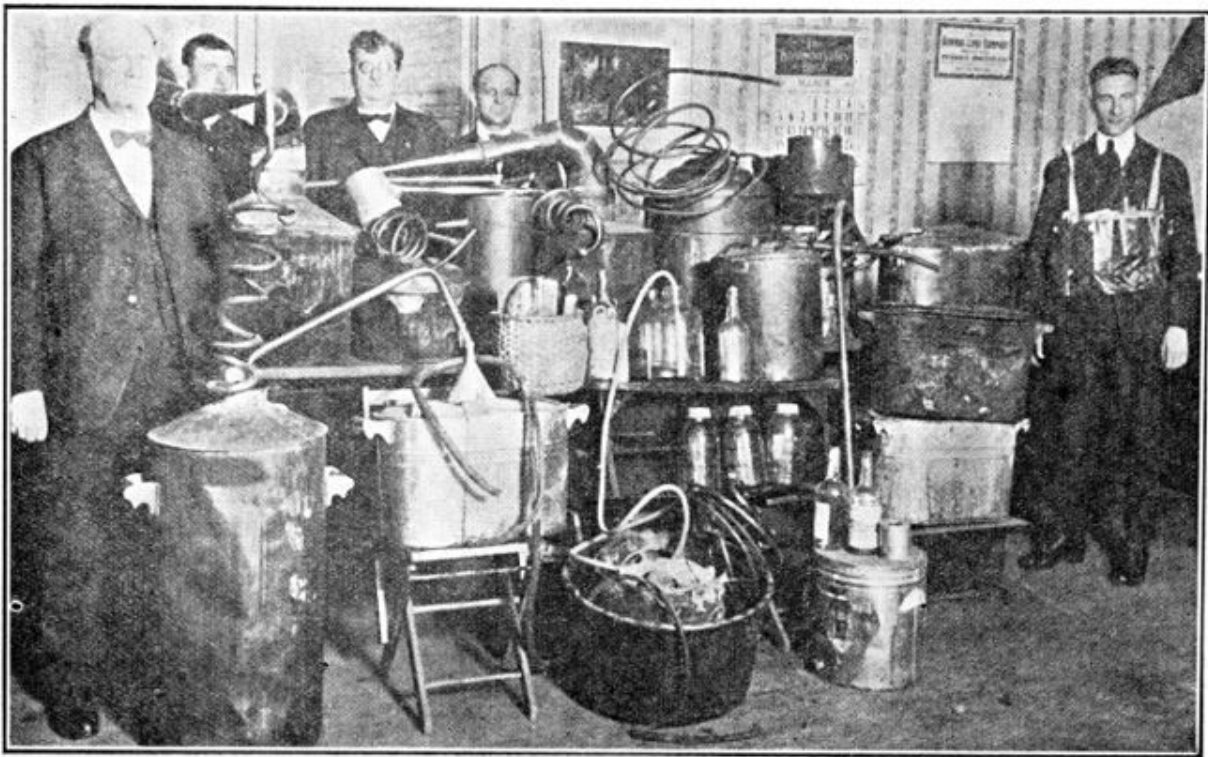
Often I have taken from a person a caulking hammer with a bunch of oakum tied around it so as to hide from two to six pints of whiskey. I have relieved the male and female foreigner of corsets made of tin and shaped and soldered so as to fit the breast and abdomen, containing approximately one gallon of liquor. The extra tires on automobiles, copper lined, have been found to contain a large quantity of liquor. False bottoms, radiators, extra gasoline tanks, etc., have been confiscated containing gallons of liquors. I have frequently caught both men and women with from three to five hot water bottles on their person—and each bottle filled with whiskey. Violin, mandolin, guitar and banjo cases are frequently placed very carefully in the racks of passenger coaches and when inspected more often hold whiskey than musical instruments. Trunks and express packages are used as a means of conveyance, but the trained detective soon discerns the odor coming from such articles, and when the goods are called for arrests follow. Even a casket supposed to contain a corpse and bearing a doctor's certificate has been found to contain "Old Crow" instead of the remains of some recently departed soul. A one-legged negro in Charleston capitalized his misfortune by adopting and using a hollow cork leg which would hold five gallons of whiskey. He was caught and a solid leg was substituted for the shell-like affair.

Even the well-to-do people of this State who are possessed with an unquenchable thirst resort to all sorts of tricks to get whiskey either for themselves or friends. One prominent woman pretended to have broken her arm and it was discovered that the supposed injured member was bound with splints of half pints instead of pieces of wood. Even old saw mill boilers have been used to convey liquors into the state, to say nothing of milk cans, egg shells and dozens of other methods. The bootleggers were so numerous in this state a few months back that it was considered among themselves that some plan or means of identification would soon be necessary to prevent wasting time trying to sell to one another. The officers might suggest a red badge.

The up-to-date and modern bootlegger has gone all the rest one better. He has himself fitted with a corset which is hollow and has hinges at

various points. The same enterprising variety of mankind also has similar outfits made of rubber or oil cloth.

Several persons in this state have died from drinking wood alcohol, not knowing that it was deadly poison. A negro porter in a hospital was recently arrested and convicted of selling, to men of the back counties, alcohol which had been used in preserving freak babies. Another brand of drink which is made in sections of the state is called “cow cider” and is in reality the juice from the grain and fodder of the silo. It not only causes intoxication but carries with it a severe headache for several days thereafter. A hop brew called “old hen” is another of the strange drinks made for the purpose of making drunk come.



These stills are products of the West Virginia Mountains.

Whether prohibition develops booze maniacs has not as yet been determined by the medical fraternity, but it seems to be a proven fact that human nature wants that which it is told it cannot have. Man is something like a marauding old muley cow. A muley cow will eat anything on top of this majestic earth that she can steal, from a hickory shirt to a temperance newspaper, and anything she can't get through her throat she will chew and

suck the juice. That is human nature to a T. Man values that which is hardest to get. I fear that until the law of nature is reversed the legitimate effect of prohibition will be blind tigers, mountain and cellar stills, the breeding of bootleggers and the sale and consumption of a death dealing brand of booze.

We shall not commence at 1921 to 1922. The white corn nectar is now made in each little village, coal camp, oil fields and principal cities in the Virginias, Kentucky and Tennessee, and this mountain dew is flavored with ground ivy, drugs of different kinds and sometimes even lye is put into it to make it taste hot like whiskey of high proof. People are now complaining of the theft of their wash tubs, rain barrels, wash boilers, etc. Stills are made of zinc tubs, oil cans, milk cans, tin boilers, gasoline tubes, kettles, etc.

They have a coloring (caramel) making the color of corn whiskey red. Dried peaches used as a "mash" makes the liquor yellow in color like peach brandy. About 75% of the stills captured are made of zinc vessels, tin and iron pipes, making a poison called "moonshine" which is killing people every day.

In West Virginia you will find the moonshiners organized and assistance and aid given them from people in good standing. It is also the case in Kentucky and Tennessee. In the Blue Ridge and Cumberland mountains of Virginia moonshining has been going on since the civil war. They are an organized band, and when the approach of officers of the law is noticed, where no telephone system is used, they use a ramshorn, gun barrel, conch shells, high power rifles, etc., to warn the offenders of the approach of the officers. Very often a woman will go to the back door of her home and call her cows at the hour of midnight, using this method to warn her husband or other members of the family that officials are at the house or are near. The sounds made by these different signals can be heard for a long distance at night among the mountains and 80% of the contemplated raids of officers of the law on moonshiners and moonshine stills are "tipped-off" in this manner. The old method of building fires of wood has given way to the more modern and less easy to detect method of using gasoline or kerosene stoves, which method is a very good one, owing to the fact that no smoke arises from the fires and the light is very easily shielded from view.

It has been worked many times that a man would come in from the mountains, disclose to officers of the law the location of a “still” and receive from said officers a small reward for the information. As soon as he leaves the officers he will return to the moonshine region and tell the moonshiners that a raid is to be made on a certain day. In this way the informer will receive a reward from both officers of the law and the moonshiners.

When moonshine liquor cannot be obtained in the cities the “topers” resort to all kind of drugs to satisfy their thirst, such as hair tonic, pre-digested beef, Jamaica ginger, lemon extracts, all of which contain a certain per cent of alcohol.

Prohibition Amendment.

Amendment of Section 46, Article 6 of the State Constitution, ratified by vote of the people at a general election held in the month of November, 1912, known as the Prohibition Amendment.

“Sec. 46. On and after the first day of July, one thousand nine hundred and fourteen, the manufacture, sale and keeping for sale of malt, vinous or spirituous liquors, wine, ale, porter, beer or any intoxicating drink, mixture or preparation of like nature, except as hereinafter provided, are hereby prohibited in this State. *Provided, however,* that the manufacture and sale and keeping for sale of such liquors for medicinal, pharmaceutical, mechanical, sacramental, and scientific purposes, and the manufacture and sale of denatured alcohol for industrial purposes may be permitted under such regulations as the legislature may prescribe. The legislature shall, without delay, enact such laws, with regulations, conditions, securities and penalties as may be necessary to carry into effect the provisions of this section.”

An Act of Congress of the United States known as the

Webb-Kenyon Law.

“An Act divesting intoxicating liquors of their inter-state character in certain cases.”

“Be it enacted by the Senate and House of Representatives of the United States of America in Congress Assembled, That the shipment or transportation, in any manner or by any means whatsoever, of any spirituous, vinous, malted, fermented, or other intoxicating liquor of any kind, from one State, Territory or District of the United States, or place non-contiguous to but subject to the jurisdiction thereof, into any other State, Territory or District of the United States, or place non-contiguous to but subject to the jurisdiction thereof, or from any foreign country into any State, Territory or District of the United States, or place non-contiguous to but subject to the jurisdiction thereof, which said spirituous, vinous, malted, fermented, or other intoxicating liquor is intended, by any person interested therein, to be received, possessed, sold, or in any manner used, either in the original package or otherwise, in violation of any law of such State, Territory or District of the United States, or place non-contiguous to but subject to the jurisdiction thereof, is hereby prohibited.

Postal Regulations—Parcels Post.

The regulations of the United States Postal Department prohibit the shipment of intoxicating liquors by mail—the language of the rule being as follows:

“There shall be prohibited from the mails all spirituous, vinous, fermented or other intoxicating liquors of any kind.”—Section 16, paragraph 2, Parcels Post Regulations.

Sec. 37. It shall be unlawful for any person to own, operate, maintain or have in his possession, or interest in any apparatus for the manufacture of intoxicating liquors, commonly known as “moonshine still”, or any device of like kind or character. For the purposes of this act, any mechanism, apparatus or device that is kept or maintained in any desert, secluded, hidden, secret or solitary place, away from the observation of the general public, or in any building, dwelling-house or other place, for the purpose of distilling, making or manufacturing intoxicating liquors, or which by any process of evaporation, separate alcoholic liquor from grain, molasses, fruit, or any other fermented substance, or that is capable of any such use, shall be taken and deemed to be a “moonshine still”; and the owner or operator of any such “moonshine still” shall be deemed a “moonshiner”. Any person

owning, operating, maintaining or having in his possession, or having any interest in any moonshine still, shall be guilty of a felony, and upon conviction thereof shall be fined not less than three hundred dollars nor more than one thousand dollars, and be confined in the penitentiary not less than two nor more than five years. Any person who aids or abets in the operation or maintenance of any moonshine still shall be guilty of a felony, and upon conviction thereof shall be fined not less than two hundred dollars nor more than five hundred dollars, and confined in the penitentiary not less than one nor more than three years.

Gunnoe Murder Case.

On the banks of the Great Kanawha river, two miles above the City of Charleston, West Virginia, lived a dairyman by the name of Willard Gunnoe. Gunnoe, together with his wife and his wife's sister, Ocie Mullens, lived in a brown cabin surrounded by the picturesque mountains of West Virginia and five acres of fertile soil, on which grazed the milch cows of his dairy. The nearest cabin to Gunnoe's place was about one quarter of a mile away.

In the month of April, in the Spring of 1914, Mrs. Gunnoe was reported to have been found dead in her kitchen by Willard Gunnoe, her husband, and Ocie Mullens, her sister. The Mullens girl and Gunnoe had been to the barn, some seventy-five yards from the house, attending the cows. The alarm or report of the finding of Mrs. Gunnoe was given by her husband to neighbors. On information furnished to the Prosecuting Attorney of Kanawha County, that official instructed G. D. Acree, a constable of Charleston District, to investigate the circumstances surrounding the case. The Prosecuting Attorney also requested the writer to work in conjunction with Mr. Acree in making the investigation.

On our arrival at Gunnoe's house we started our investigations and found foot prints from a large foot on the kitchen cabinet and the condition of the room showed there had been a struggle. Our next step was to examine the body of Mrs. Gunnoe. A careful examination disclosed finger prints on her throat and bruises on her arms. Her lips and right side of her face were burned, apparently by carbolic acid. These findings aroused our suspicions and we called Doctor O. L. Aultz, then the county physician. Dr. Aultz advised a post-mortem examination of the body, and all witnesses

were hastily summoned before C. W. Dering, a Justice of the Peace of Charleston District, who acted as coroner.

Mr. Gunnoe's testimony before the coroner's jury was to the effect that he, together with Ocie Mullens, were in the habit of going to the barn and milking before daylight in order to make early deliveries of milk in the City of Charleston and suburbs; that after completing their work they returned to the house and found Mrs. Gunnoe's body lying on the kitchen floor. He stated that at the time he returned to the house day was breaking and he saw a man running from the kitchen door; that he and his wife had had no trouble and there was no reason for her committing suicide; that he was positive she had been murdered by the unknown man he saw running from the house. Mr. Gunnoe also stated that he heard no cries or commotion in the house whatsoever. Gunnoe showed no emotion over the matter and acted unconcerned. His actions caused no suspicion. Gunnoe had a long scratch from the left eye leading to the tip of the nose as if caused by a finger nail and when asked the question as to the cause of the scratch, he stated that while watering his horse down at the river a sharp stick struck him in the face and made the scratched place.

Ocie Mullens testified that she had heard no struggle or cries and that she had also seen the man running from the house as Gunnoe had testified. The witnesses were not separated during the examination and she corroborated Gunnoe's statements. After the hearing of the evidence, the jury returned a verdict that Mrs. Gunnoe had been murdered at the hands of an unknown person. For the purpose of further investigating the matter, a warrant was sworn out for the arrest of Gunnoe and Miss Mullens on instructions from the Prosecuting Attorney and they were held without bond to await the action of the next grand jury.

Constable Acree and I made repeated trips to Kanawha City and continued our investigations and found foot prints in the mud leading from the rear of the house to the barn and from the barn to the kitchen. About half way between the barn and the house we discovered tracks which led us to believe there had been a struggle at that point. One of the prints compared with that found on the kitchen cabinet and the other tallied with that of Mrs. Gunnoe, showing that she and her husband had been at this point on the morning of the murder. To further bear out this point, Mrs. Gunnoe's shoes were covered with mud. On our return from the Gunnoe house we visited

the morgue and viewed again the body of Mrs. Gunnoe. Our purpose for the second examination was to try and determine, if possible, whether or not the scratch on Gunnoe's face was caused by Mrs. Gunnoe during some kind of a struggle or fight. We examined beneath the finger nails of Mrs. Gunnoe and cleaned them out with a tooth pick. The result of this disclosed human flesh.

Our next step in the line of evidence was obtained from the post-mortem examination made by Doctor Aultz, which disclosed that death preceded the apparent taking of the carbolic acid, as when her throat was examined it showed no discoloration.

Gunnoe was indicted and tried in the Intermediate Court of Kanawha county for the murder of his wife. The jury returned a verdict of guilty of murder in the second degree, which carries a sentence of from five to eighteen years in the penitentiary. Judge H. K. Black sentenced Gunnoe to serve twelve years. Gunnoe resorted to all legal steps to avoid the serving of his sentence, carrying his case to the State Supreme Court, which court sustained the judgment of the court below. After failing in his purpose Gunnoe, while confined in jail awaiting transportation to the penitentiary requested permission to converse with the Prosecuting Attorney. This leave was granted and in the presence of Hon. T. C. Townsend, then Prosecuting Attorney for Kanawha County, and the writer, Gunnoe confessed to the crime and stated that he killed his wife accidentally by strangling her to death. The altercation between them which led to the killing was caused by jealousy on the part of Mrs. Gunnoe, she accusing him of being intimate with her sister.



Strange Creek Case.

In September, in the Fall of 1915, the writer was called to Glenville, the county seat of Gilmer county, and was also called upon about the same time by the Prosecuting Attorney of Braxton county in regard to the above case.

Near Gilmer Station, on the then Coal and Coke Railway (now the B. & O.) a young boy was rowing a small boat in Elk river and found the corpse

of a fully developed baby about three months old. The boy was somewhat frightened at his gruesome find and went to the Town of Gilmer and reported the finding of the dead baby. For some time there was a question of jurisdiction between the authorities of Braxton and Gilmer counties, and after a conference between L. H. Barnett, Prosecuting Attorney of Gilmer county, and James E. Cutlip, Prosecuting Attorney of Braxton county, it was decided that Gilmer county had jurisdiction.

I was then detailed on the case by Mr. Barnett and began my investigation the latter part of September. No clue was in evidence and no information to start from. For several days I visited each little town on the Coal and Coke road between Orlando in Lewis county and Clay Court House in Clay county. About ten days after I started my investigation I was lunching at a small hotel at Burnsville and heard a lady speaking of a young woman who had left the station at Burnsville one night before the arrival of the B. & O. train carrying a small baby and a yellow suit case. Upon investigating this matter I found that a yellow suit case filling this description had been checked to a station a few miles away, called Strange Creek on the C. & C. railway. After securing all the information I could around Burnsville I went to Strange Creek and found out that a young lady who had been teaching school at Uniontown, Pennsylvania, had returned home and lived on a farm up Strange Creek a few miles from Strange Creek station. No one suspicioned the young school teacher, whose name was Ora Wilson. She was from a good and respectable family which owned several farms in Braxton and Clay counties.

I received at Strange Creek a description, as best I could, of Ora Wilson and went back to Burnsville with this description. I found it tallied with the one given me by the agent and the woman who had seen her leave the depot a few nights before. I then walked from Burnsville to Gassaway, a distance of about fourteen miles, inquiring as I went if any one had seen a lady carrying a baby the night that she was seen at Burnsville. There is a little school house about one mile from the station at Gilmer and I ascertained that a strange woman had stayed there all night alone. My next step was to proceed to Strange Creek where I gathered from dates which I had that Miss Ora Wilson had reached Strange Creek the evening after the woman had been seen in the school house near Gilmer station.

Through an intimate friend of the Wilson family I found out that Ora Wilson had been stopping at Weston, the county seat of Lewis county, and that she had a three months old baby. This friend also advised me that she was at her home on Strange Creek and that the baby was missing. After receiving this information I satisfied myself that Miss Wilson was the party wanted for the drowning of the child. I secured a warrant for her arrest and went to Strange Creek and proceeded up Strange Creek on horse back. On my way up the Creek I tapped the telephone wires and learned from conversations on the rural line that my presence and purpose in the neighborhood had been divulged to the Wilson family and others along the line. When I arrived at the Wilson home Miss Wilson was not there, and on account of it being a stormy night it was impossible for me to make any search at that time. The next morning Miss Wilson's brother, who is a farmer, came to me at the place where I stopped over night and stated that his sister, Ora Wilson, had been out all night in the woods and wished to give herself up. Mr. Wilson said he would accompany me to Gassaway that night and we would then take the morning train there to Gilmer Station. When we arrived at Gilmer station the whole town and vicinity had turned out to see us, about two hundred in number. We hurried her from the train to a taxi-cab which was waiting and from there went to Glenville where she was placed in the county jail. Miss Wilson would make no statement and would not converse with me. Her brother remarked to me on different occasions that his sister was insane and that he was going to employ the best counsel to do what he could for her. He employed Senator Kidd, a very able attorney. At the preliminary hearing of Miss Wilson, held at Glenville, Senator Kidd waived examination and she was held without bond to await the action of the next grand jury.

When the grand jury finished its work, it failed to return an indictment against her. The jury's action in this matter, I have always thought, was brought about by Senator Kidd's cleverness. He would take every farmer and citizen who would come to Glenville on business to see "the crazy woman up here in jail." This caused the sentiment of the people to favor Miss Wilson and so many of the people and citizens of the county had seen her it was impossible to get a jury who was not in sympathy with her and she was released from custody.



The Smith Gang, or the Lucky Thirteen.

In the year 1906, the Smith family, originally from Kentucky, moved to Crown Hill, West Virginia, a mining town a short distance from Charleston, known as one of the toughest little centers in the State of West Virginia.

The father, W. H. "Bud" Smith, by occupation a miner, with a chief side line in making counterfeit ten dollar gold pieces, which he passed in poker games, at country stores and on persons who were unable to detect them. This counterfeit would only last a few days, as its color would change. The United States Marshal and other officers pursued him for about four years and about the year 1910 found his molds in the "Black Cat" mine near Crown Hill.

Tot Smith, a son of W. H. "Bud" Smith was a very young and desperate outlaw. While engaged in a friendly wrestling match at Crown Hill one Sunday evening, a young man by the name of Albert Summerfield threw Tot to the ground twice, when Smith became aggravated and shot Summerfield through the body. Mrs. Charles Summerfield interfered and tried to take the pistol from Tot and he discharged a shot into her body from which she afterwards died. Tot was apprehended for this murder and was incarcerated in the county jail for a number of months, when he became ill and one of Charleston's best citizens aided and assisted him in getting a \$5,000.00 bond. When his case was called for trial in the Intermediate Court he was absent and his bond was forfeited. His bondsman at this time detailed the writer to apprehend young Smith. In my investigation I found that young Smith would mail a package to his mother from some point in Oklahoma and his next letter would be mailed in Missouri or Kansas, never giving us a chance to apprehend him in any city from where he would communicate. I made several trips to Kentucky, Ohio and Indiana and parts of West Virginia in an effort to secure the proper information to effect his arrest, but he evaded me at all times. One winter day in 1913 I went to

Crown Hill to capture him when he and his father quietly got into a row boat, each having a Springfield rifle and crossed the Kanawha river, leaving me behind. They took the mountain trail which is just back of Riverside, West Virginia, and not having anyone to assist me I did not follow them into the woods.

My investigation quietly went on, and at all times I had the house of Richard Hager (his uncle), under surveillance. On Friday evening, March 13, 1913, (Lucky Thirteen) I received a telephone call which stated that two strange men were at the Hager home at Paint Branch on Cabin Creek. Being well armed, I summoned a local officer to accompany me, but between Charleston and a stop on the C. & O. called South Ruffner he gave up the trip and returned to Charleston. I then walked on to South Ruffner and caught what is known as the "Bull Moose" train, a local C. & O. freight, and went to Cabin Creek Junction and walked up to Paint Branch, a distance of five miles, arriving there just before dawn.

Upon my arrival the Hager family was up making a fire in the kitchen stove when I knocked on the door. Mrs. Hager came to the door and asked me what I wanted. I stated to her that I had been informed that Tot Smith, who was wanted for murder, was in the house. She told me there had been two men from Kentucky staying with them for a few days but they had gone. By this time Richard Hager came through the house and told me that there were two strange men up stairs, but neither of them was Tot Smith or Bud Smith. I told them I wanted to look the situation over myself and started up the stairs. Mrs. Hager told me that if I went up the steps I would never come back alive, at the same time urging her husband to shoot me in the back. I went up the stairs where the children of Hager's were sleeping and there were two young girls, aged about 12 and 16 years in the first room I entered. I examined the under mattress and found two feet which did not belong to either of the girls, which feet were between the mattress. I was satisfied that these were Tot Smith's feminine feet. At this point I heard a door open and Bud Smith said, "You will take nobody from this house," and saying this ran down the stairs. I ran down the stairs after him and he ran into the front room and picked up a Mauser rifle. I demanded at the point of my pistol that he drop the rifle, which he did. I did not fear Tot Smith and I was sure that it was he up stairs and thought he was securely hidden. I then told Bud Smith that I knew Tot was upstairs and that I was

going to search the place. At this point Tot Smith knocked on the window while I was standing in front of the house and called to me and remarked, "Clendenen, if you won't shoot, I will come down and give up." I told him not to bring anyone with him and to come down the stairs with his hands up, which he did. I had their clothes brought to the front door where they dressed.

Mrs. Hager proceeded to curse me and call me all manner of vile names till her husband made her cease.

By this time breakfast was ready and the prisoners asked me to allow them to eat. Over the protest of Mrs. Hager I sat down and joined them at the table. After breakfast both men requested me not to handcuff them and I complied with their request, bringing them to Charleston to the Kanawha county jail. In this case I received a reward of \$700.00.

Fred Smith, a younger son, became a notorious burglar, having served a term in the state penitentiary for robbery committed in Boone county. He was arrested and convicted by the writer and members of the police department for highway robbery. While waiting to serve his sentence he made good his escape from the county jail, in company with another Smith, named Dot, convicted of the same crime. At this time fifteen prisoners sawed their way to freedom.

W. H. "Bud" Smith was tried and convicted at Charleston in the United States Court for the Southern District of West Virginia and given a sentence of a number of years, which he served, and on returning died at Leewood on Cabin Creek, West Virginia, in the year 1919.

Tot Smith was tried for murder and convicted and given eight years in the penitentiary at Moundsville. Serving about four years of this sentence he was paroled on good behavior and became a noted bootlegger, carrying liquor from Kentucky to the coal fields of West Virginia. While leaving Ashland, Kentucky, with a considerable quantity of liquor, riding in a coal car a special agent of the C. & O. at Ashland saw him. Tot saw the special agent first and pulled his gun and instantly killed him. After this affair he escaped. Being indicted for this murder a reward was offered for his apprehension and about six months later he was accidentally arrested for hoboing and identified by Special Agent Johnson of the C. & O. as Tot Smith. He was returned to Ashland, Kentucky, tried for murder and

convicted of murder in the first degree. He is now serving a life sentence in the Kentucky State Penitentiary at Frankfort, Kentucky.



A Railroad Theft.

During the holidays it is customary for railroads to employ what is termed “relief agents” or men who are experienced in railroad agent work, to take the places of men wishing to be absent during the holidays.

The agent at Clendenin, West Virginia, on the Coal and Coke Railway, wanted to be relieved for ten days. H. Crawford Bosworth, alias R. W. Edwards, called on the train master of the Coal and Coke at Charleston, West Virginia, and advised him that he was a telegraph operator and had had considerable experience as station agent and that if there was a position open as “relief agent” he would like to have the same.

Bosworth was employed by E. O. McGrain to relieve the station agent at Clendenin for ten days. At this time the oil fields were running in full blast and Clendenin was in the center of the field. Considerable money was taken in by the railroad from freight and passenger traffic during the holidays. At one time Bosworth had over four thousand dollars in his possession and the assistant agent became suspicious of him and notified one of the Clendenin banks just across the street from the depot to call and get about twenty-six hundred dollars, which he knew should be placed in the bank. The bank did so, leaving several hundred dollars in cash still in Bosworth’s hands. On Monday evening before Christmas, 1915, Bosworth came to Charleston, bringing with him several hundred dollars and never returned to Clendenin. The writer, being Special Agent of the Coal and Coke system, was notified of the theft and I immediately started an investigation.

No one was acquainted with Bosworth. No one knew of any of his relatives or place of abode. In a few days I understood that some of the references Bosworth gave to Mr. McGrain had been dead for a number of

years. I gathered all the data and information I could and consulted with the different employees, passenger conductors, etc. We received some information from a conductor on a local freight who stated that he had seen Bosworth over on the B. & O. about Chillicothe, Ohio. I went to Chillicothe and made an investigation but received no information or clue that would lead to his identity. On this trip I visited several small Ohio towns on the B. & O. but failed to get any information as to my man. On returning from Chillicothe I purchased a Cincinnati Post from the news agent, dated January 26, 1916. In this issue of the Post I found a photograph of one Miss Myrta Snider, stating that she had been holding a "man's job" on the B. & O. at Orient, Ohio, which is on the B. & O. S. W. Miss Snider was in Cincinnati at the time seeking employment and had made application to Miss Margaret Maxon, in charge of the State Cities Free Employment Bureau in the City Hall. I went to Cincinnati and located Miss Snider and had an interview with her in reference to the description of Bosworth. She stated that at one time she had a sweetheart on the B. & O. at Manchester, Ohio, by the name of H. Crawford Bosworth and she told me that he had married a girl by the name of Marjorie Smithson, a daughter of a blacksmith at Cuba, Ohio. I followed this clue and found it genuine, but found that the Smithsons had moved to Manchester, Ohio. I detailed one of my female representatives to make the trip to Manchester, Ohio, by way of Cincinnati and she went there under the disguise of an agent of the Prisoner's Relief and Aid Society of Huntington, West Virginia. The operative was in Manchester but a few days when she made the acquaintance of Mr. Smithson, who was still engaged in the blacksmith business and informed him of her business, saying that she was appointing sub-agents on a nice percentage to work for her. He immediately informed her that his daughter Marjorie had been "down south" and had returned home and would be glad to assist her. My representative went to the Smithson home where she met Marjorie Bosworth, the wife of H. Crawford Bosworth. After gaining her confidence and employing her as an agent, she gradually extracted from her the information that Bosworth was in business in Atlanta, Georgia.

Upon receiving this information from my representative I immediately started for Atlanta, Georgia, and on my arrival there went to police headquarters. The chief of police at Atlanta detailed two of his best detectives at that time, namely: Hollingsworth and Sturdevant to assist me

in locating Bosworth and making the arrest. After two days of investigation we found that Bosworth had owned a pool room at No. 249 Whitehall street, but had sold out and had left the city. The detectives gave up the case when they were assured by persons whom they trusted that Bosworth was not there any longer. I then started the investigation myself and in two days I had Bosworth located and called the two detectives above mentioned. We arrested him as he was entering a fashionable rooming house. When told we wanted him for the embezzlement, he said he would not return alive and started to fight. We were compelled to give him a severe beating before he was subdued. After the fight, he and two other crooks were taken to the hospital which adjoins the city hall. Bosworth engaged the services of Lawton Nalley as counsel and for several days fought requisition papers. We were granted an audience at 11:45 on Saturday morning before the Governor. Mr. Nalley called us at the State House forty-five minutes later stating that he had withdrawn from the case. Governor Harris of Georgia immediately honored the requisition of Governor Hatfield of West Virginia and we left with Bosworth for West Virginia.

After Bosworth's arrival in Charleston we received telegrams from numerous railroads and bonding companies who wanted him. The reward would have amounted to about \$2500.00 in all, but while confined in the county jail, Bosworth made the statement that if the bonding companies would not allow him to settle for all the thefts he had committed that he would not be tried. A week before the convening of the grand jury, Bosworth in some mysterious manner sawed his way from the jail and escaped.

Holly Griffith—West Virginia's Most Noted Criminal.

A little over thirty years ago there was born in Harrison county, West Virginia, near the City of Clarksburg, a young man by the name of Holly Griffith. Griffith was born of poor parents and had very little chance to secure an education. The thought never entered the minds of his parents that their child would turn out to be the case-hardened criminal and murderer that he is, but such was his fate, as never before in the annals of history of criminals in the State of West Virginia has there been a man who led such a spectacular life of crime as did Griffith.

In the month of May, 1915, Chief of Police Orden Thompson, of Gassaway, West Virginia, while attempting to arrest Holly Griffith on a warrant charging him with passing bogus checks, was shot and fatally wounded by Griffith, and a bystander shot in the leg. As Griffith ran from the scene of the shooting, he turned and told the crowd that had gathered, "Don't any of you men follow me." He left Gassaway going toward Gilmer county.

A mob was soon formed of Braxton and Gilmer county citizens and the man hunt was on. The posse followed him through Braxton, Gilmer and Jackson counties, and at times were only one mile behind Griffith. Griffith showed cleverness in going to farmers and using the Citizens Telephone lines and several times turned the mob back by giving them the wrong information as to his own trail.

At one time in Gilmer county, the prosecuting attorney and other members of the posse who were driving in automobiles came upon a man near a little creek bank and almost surrounded him. This man was Griffith and he picked out the prosecuting attorney, who was talking to him at the time, and shot several times at the telephone pole behind which the prosecuting attorney was hiding, splinters flying in every direction. This posse claimed to be unarmed and Griffith escaped.

The next time he was seen was near Ravenswood in Jackson county by a posse there. He knew that he was surrounded and had no chance of escape. Griffith came down to the county road from the edge of the hill and displayed two automatics, a deputy sheriff's badge and a pair of handcuffs, asking the posse if they were trying to apprehend Griffith. They told him they were and he replied: "I have seen him and will get in your car and assist you in finding him." Griffith rode about three miles in this car. At this time his left hand was bandaged from a bullet wound inflicted while in the scuffle with Thompson at Gassaway. Griffith saw some other cars coming in the opposite direction and figured that he would be captured. He had the car he was riding in stopped and said he would go into the hill and search for him. When the two posses met they discovered that Griffith was the man they wanted and went into the hill and separated and tried to surround him. He evaded them by taking a boat and crossing the Ohio river near Ravenswood. He was shot in the head while in the boat, which was only a flesh wound and when he went up the bank on the other side his right shoe

heel was shot off. He then went about three miles from Ravenswood into the country and got information from a farmer as to the telephone connections, etc., and talked with the posse over the telephone, telling them that Griffith had gone in another direction and threw them entirely off the trail. At this farm house he had them prepare a meal as he had not eaten in four days, being continually on the "go".



HOLLY GRIFFITH alias F. S. ROSE

Serving three life sentences in Moundsville State Penitentiary and will be tried for the murder of Jeff Goff, a constable of Wirt County, West Virginia.

Griffith then went to Parkersburg, where he stayed a few days and while there visited his wife. He went from Parkersburg to Wheeling, West Virginia. While in the act of boarding a B. & O. train bound for Pittsburgh an officer attempted to arrest him and he knocked the officer down, and I have been informed that the officer's leg was broken in the scrap. Griffith then went to Pittsburgh, where he pawned one of his automatics and from Pittsburgh went to East Youngstown, Ohio, on a freight train.

I had secured information that he had sent his wife a post card from Pittsburgh and that he was on his way to Youngstown. I was at this time City Detective for the Police Department of Charleston. One day while searching the waste basket (this in the month of May, 1915) I found a letter addressed to the Chief of Police, asking him if he wanted a man by the name of Rose, for a crime, stating that he was under arrest for resisting an officer, carrying concealed weapons and hoboing at East Youngstown, Ohio. This letter was signed by the Town Marshal of East Youngstown, James Murray. Murray stated that he had blank checks from the Kanawha Valley Bank of Charleston, West Virginia, on his person when arrested and also that he had a flesh wound in his left hand. I asked permission of the Chief of Police to investigate this letter and advised him that it was my opinion from the information that I had secured before that it was Griffith who was apprehended at East Youngstown. I sent several telegrams and told them that we wanted Rose in this county for a forgery. As soon as I was satisfied that the man was Griffith I went to East Youngstown, Ohio. I arrived there and presented my warrant for S. F. Rose on a forgery charge and asked him if I could not speak privately with the prisoner. I was granted permission and was placed in a cell 6x10 feet with Rose. Rose (Griffith) informed me that he was not able to talk much as the authorities had been giving him a "sweating" for two days in order to get him to tell where he was from and what he was wanted for. They had kept him two days in this cell with a large Burnside stove, which is usually found in small school houses, going full blast. They gave him very little water and nothing to eat. Still Griffith refused and would not talk. I told Rose his right name and said, "Holly, I remember you distinctly. When you were in Charleston your chum was Grover Roush and you are the same man that visited a certain dive on Dryden street, and the same that gave Lawrence Beller a bad check for \$100.00 for a motor boat." I also told him that the scar that was on his left hand was caused by a bullet wound when he shot and fatally wounded the Chief of Police at Gassaway. He then opened up and said to me: "Clendenen, I thought several times of writing you a letter and telling you where I was so that you would come and get me and return me to either Wirt or Braxton county for a trial for the crimes that I have committed, and as you are 'on to me', and if you will agree to take me to the Clarksburg jail and leave me there until I am tried in either county, I will go back with you

without requisition papers, but please go and get me something to eat as I am suffering from hunger.”

I told Griffith not to do any talking until I could investigate the charges against him to see whether or not I could get the authorities to allow him to go back to West Virginia on charges of forgery. At this point, I want to state that I tried to get an officer from either Youngstown or East Youngstown to accompany me to Charleston with Griffith but without avail. My purpose in asking this was that a large reward had been offered for the arrest and detention of Griffith and I felt that the officer who had arrested him in Ohio should get his share of same, but could not afford to give them full details as they were holding him on two charges in Mahoning county, Ohio.

After several days’ deliberation, the prosecuting attorney of Mahoning county agreed for Griffith to return with me on a forgery charge and I brought him back, arriving in Charleston May 24, 1915. It has been stated by the press that Griffith attempted to assault me in a restaurant in Pittsburgh, but this is not true, as he was a model prisoner at all times while in my care. It was not necessary to handcuff him—this being one of our agreements when he agreed to return without the necessary papers.

By some mysterious manipulation of “police routine” Griffith was taken from Charleston to Sutton by another officer of the Charleston Police Department and the whole credit for his apprehension and arrest was given to another member of the department, which was unjust in every sense of the word. Neither of these officers were familiar with the crimes Griffith had committed and had not devoted one moment of their time in looking up data in regard to him which might have led to his apprehension.

When Griffith’s case was called for trial at the county seat of Braxton county I assisted Hon. James E. Cutlip, the prosecuting attorney of Braxton county, in the prosecution. While on the witness stand I related Griffith’s confession to me, which was as follows:

“I was born of poor parents near Clarksburg, West Virginia, and have worked considerable of my time at hard labor and had very little chance to secure an education owing to the financial standing of my parents. I have only been married a short time, living near Elizabeth in Wirt county. While dealing at a country store in the neighborhood I gave a merchant a check for merchandise which was turned down by the bank and a warrant was issued for my arrest and placed in the hands of Jeff Goff, a constable of Wirt county. Goff came to my house one night in the winter of 1914 with a warrant for my arrest. He knocked at the door and I asked him who was there. He stated his business and said if I did not open the door at once he would kick it down, which he did. My wife told him I would go

without any trouble and he began cursing and swearing. He shoved my wife to one side and came at me in an angry way. I reached for my pistol and shot Goff. He went outside through the door and some of his friends came to his rescue and carried him home. There is no doubt in my mind but what Goff was drunk on this night as I had never done anything to him and was afraid that he would do me bodily harm. I left my little cottage that night and walked several miles and came to Charleston. I stayed around Charleston for a few weeks in company with Grover Roush and assisted him in selling liquor. I went to a house boat near the Kanawha river bridge and contracted a deal for a motor boat with a man by the name of Lawrence Beller, giving him a bum check for \$100.00 for the boat. I left in the boat and he became suspicious of the check and was advised by one of the Charleston banks that it was bad. Beller 'phoned to Lock Ten on the Kanawha river and got me on the telephone there. He told me the check was bad and I told him that if it was bad that there must be some mistake about it; but this was not a fact—the check was a forgery. He told me he was coming down to get his boat and I told him that if the check was bad to come on and get it that it would be there.

“I left the boat and went to a little place called Robertsburg, in Putnam county. I stayed there a few days and gained the confidence of some old people at a farm house. When I left I showed them my deputy sheriff's badge, two pistols and handcuffs and told them I was going in the country after a man who was wanted for murder. I gave them a bad check for my board bill and secured \$28.00 in cash. I then went to Clarksburg and again met my relatives and came from Clarksburg over the B. & O. to Burnsville. I went from Burnsville to Sutton and deposited a check for \$500.00 on a Clarksburg bank, which check was a forgery. I then passed several checks at Gassaway on the Home National Bank of Sutton, drawing on the account. For these checks Orden Thompson secured warrants and tried to apprehend me. When he approached me with the warrants, which I learned later were for bad checks, I thought it was a warrant for my arrest in connection with the killing of Jeff Goff in Wirt county. I resisted arrest and shot Thompson and in the scuffle shot a bystander who was near. This occurred in a little store at Gassaway. I was at one time with the mob while they were looking for me and talked several times with the posse over the telephone. This bunch seemed to be a bunch of cowards. I do not believe I should be convicted for either murder, because I think I acted in self-defense in each case. I admit I did wrong in forging checks and trying to get by with it—it is one of my mistakes. I can show you fence posts near my home in Clarksburg filled with steel jacket and lead bullets fired from the pistols which I carried. I did this in order to become a sure shot and thought maybe sometime I might need my pistols to defend myself.”

Holly Griffith made several desperate attempts to escape from the Moundsville State Penitentiary. At one time he was hidden in a shop in which he worked and had prepared a dummy made of a pair of trousers, an old coat and other clothing and put it in his cell in a position that would look like a person. The guard discovered this was a dummy by speaking to Griffith and when he found that Griffith was not in the cell, they made a search of the shops and found him concealed there.

On January 6, 1921, Griffith succeeded in making a daring escape from the institution. He first set fire to several buildings and then proceeded to the power house in an attempt to destroy the lighting system. A fellow inmate interfered with Griffith in this attempt and Griffith immediately drew a knife and stabbed the fellow so severely that his death resulted. He also assaulted several other inmates and scaled the walls. In going over the

wall he passed within fifteen feet of a guard who was so excited that he permitted Griffith to make his escape.

Griffith came down the Ohio river on foot and by freight train and stopped at a house on the Ohio side of the river where lived a family by the name of Roush. One of the sons, a young man, owned a motor boat which was for sale. Griffith induced him to run him to Portsmouth where he said he would draw money out of the bank and purchase the boat. After they had traveled a short distance Griffith shot the young man in the back of the head and then finished the job by beating him over the head with the butt of the gun, throwing him into the Ohio river. Griffith then proceeded alone to Portsmouth. Just as he was landing the motor boat several persons acquainted with young Roush inquired of Griffith where he was, to which Griffith replied that Roush had gotten off in the east end of town and would be down soon. Griffith then landed the boat on the Kentucky side of the river at a place called South Portsmouth, and was never seen again until he was captured.

Griffith was captured in Greenwood, South Carolina, by policeman C. T. Nelson and turned over to Newberry county officers for the robbery of the Post Office, Express Office and three stores at Silverstreet in that county on the night of January 24th. He confessed to all the robberies when arrested. A blank check has been the cause of Griffith's arrest each time. When apprehended at East Youngstown, Ohio, a Kanawha Valley Bank check was found on his person and this information led up to his arrest. When caught at Greenwood, South Carolina, a blank check from a Moundsville bank was found on his person which led to his identity. The following is a facsimile of one of Griffith's forged checks given in the City of Charleston, West Virginia, under the assumed name he used—"S. F. Rose".

My information is that when Griffith was arrested he had upon his person four pistols, two razors and two pocket knives. No doubt this was one of Griffith's clever tricks to get a short term in the Federal prison for the post office robbery in order to evade the officers who were on his trail to collect the \$1000.00 reward which was offered for his apprehension. I understand that Griffith smiled and made a full confession of all his criminal actions to the authorities at the Newberry county jail. This was one of his polite ways in deceiving the public.



This check was one of Holly Griffith's forgeries under the alias of F. S. Rose.

Griffith was returned on requisition papers to Moundsville, West Virginia, and tried in Marshall county for the murder of his fellow inmate. The jury returned a verdict of guilty and he was again sentenced to life imprisonment. After this trial Griffith was taken to Point Pleasant, the county seat of Mason county and tried on the charge of killing young Roush. The jury there also returned a verdict of guilty and he was again sentenced to life imprisonment, this making three life sentences he is now serving in the State penal institution.

At each of his trials Griffith in some way managed to either quote himself or have quoted to the jury the following from the Bible: "Do not take that which you cannot give."

Griffith still stands charged with the murder of Jeff Goff in Wirt county in 1914, and it has been intimated that he will be tried for this crime, in an endeavor to hang him. He is the only man in the United States now serving three life sentences.

A Moonlight Tragedy.

At one A. M. on the morning of March 26, 1921, T. E. Martin, a Justice of the Peace for Loudon District, Kanawha County, West Virginia, together with Special Officers Pete Tyler, Lawson Tyler and George Jarrold, conducted a raid on the Davis Creek section, three miles from the City of Charleston. The party was in search of moonshiners, and during their progress from the mouth of the creek they discovered a large mash box

containing about two hundred gallons of sour corn mash hidden in the underbrush in a small ravine above what is known as Jack Dodson's farm.

The officers, on finding the mash, came to the conclusion that the ones interested in it would return soon and start their run. In carrying out their plans, the officers concealed themselves and awaited the return of the moonshiners. It later developed that the moonshiners had seen the officers approaching and had hidden in the thick underbrush. Two of the moonshiners rose from their hiding place and Pete Tyler discovered them, saying to Martin: "Tom, there are two men." Martin immediately arose from the ground and promptly raised his shot gun to his shoulder with the command to "throw up your hands," Pete Tyler rising at the same time. No sooner had these words been uttered by Martin than a volley from the hillside echoed through the still night and Martin and Tyler fell to the ground, Martin with a bullet wound in his neck and Tyler shot just below the left eye. After the volley Lawson Tyler and Jarrold fled from the scene, and reaching the nearest telephone notified members of the Charleston Police Department, who together with J. Walter Bee, Prohibition Officer; Clark Martin, a Constable for Charleston District, and other officers left immediately for the scene of the shooting.

On reaching the scene the injured men were placed in an ambulance and rushed to the Saint Francis Hospital in Charleston where four days later Martin died, Tyler recovering from his wound.

On delivering the men to the hospital a posse was formed under the command of J. Walter Bee and Clark Martin and left for Davis Creek with warrants for Jim Richards, Gilbert Hall, Jim Smith, Deward Huffman, Charles Aldridge, Arthur Hudson and Herman Hudson. These men were brought before G. D. Acree, a Justice of the Peace, charged with the shooting of Martin and Tyler. They were placed in the county jail and held without bond awaiting the outcome of Martin's injuries. They were later charged with murder and released from custody under heavy bonds. After the preliminary examination Deward Huffman, Arthur Hudson and Herman Hudson were released from custody and Richards, Hall, Aldridge and Smith were held to await the action of the grand jury.

The author was absent from the city at the time of this murder on his farm at Rural Retreat, Virginia. I was advised by wire of the crime and

immediately left for Charleston and on my arrival was given personal charge of the investigation. Having a very good idea of who the assassins were, I immediately began work on the case. My knowledge of who the guilty men were came from several trips I made with Squire Martin and other officers into this locality where Martin was killed.

At that time I had information that this mash belonged to Jim Richards and others.

The prisoners all employed the same counsel and were advised to do no talking. It was at all times impossible to get any statements from them relative to the shooting and their whereabouts on the night of the shooting.

In my investigation I saw that a mistake had been made by these men being apprehended before there was an investigation made as to the shooting, because as soon as they were apprehended their wives and relatives began arranging an alibi for each man, and Davis Creek being a moonshining neighborhood, and clannish, it was easy for this sort of evidence to be secured for the defense.

After the indictments were returned Richards would make frequent trips to Charleston declaring his innocence and talked as if insane upon the streets, remarking that he knew a lot about the murder but was not guilty and was afraid that his life would be taken because he had informed on the other prisoners.

One beautiful spring day before the trial the sheriff was notified that Jim Richards had been murdered and burned up in his log cabin home on Davis Creek. Deputy sheriffs were sent to the scene to make an investigation, bringing back with them what seemed to be the bones of Richards tied up in a piece of cloth. These bones were shown to the writer as soon as they returned. I saw immediately that they were not the bones of a human body. I immediately left for the scene of the fire and collected a number of small bones and turned them over to Dr. W. P. Black, County Coroner, who was assisting in conducting the investigation. We then held a consultation with the prosecuting attorney and the State Fire Marshal. The Fire Marshal immediately filed a complaint and had a warrant issued for the arrest of Venie Richards, the wife of Jim, for the burning of her residence. She refused to give any statement regarding the fire and murder, other than to remark:

“Jim and I were sitting in our little cabin on Davis Creek when a rap came to the door and some one requested admittance. On opening the door, thinking that it was some of our neighbors, five masked men pushed their way through to where Jim was standing and said, ‘Jim, we have come for you and are going to put you out of the way.’ Jim saw that he was up against it and said, ‘Well you have me,’ and picking up the old banjo, which was a family relic, handed it to me and said: ‘Venie, you take the old banjo and keep it, I may never see you anymore.’ I ran from the house and as I started up the hillside I heard a pistol shot and knew that poor Jim had been murdered. I turned and saw the house was in flames and everything was silent. I never seen poor Jim anymore.”

With these remarks she burst into tears.

She was placed in the county jail and could not arrange bond for her appearance. Doctor Black examined the bones that were found in the ruins of the home and discovered what were supposed to be human bones were really sheep bones which had been sawed with a meat saw in a butcher shop. The saw marks were very distinct. We gave Mrs. Richards every chance to make a true statement but she refused and the above story was repeated to everyone who interviewed her, even her close friends.

The search was then instituted for Jim Richards. Several Charleston citizens were on his bond as surety in the sum of six thousand dollars. A close watch was kept for mail that might come to Mrs. Richards and after a patient vigil, Henry A. Walker, Sheriff of Kanawha, discovered a telegram for Mrs. Richards from some man in Boone’s Mills, Virginia. After a careful investigation he located Richards in Rocky Mount, Virginia, and had him arrested, returning him to Charleston where a reward of two hundred dollars had been offered for his apprehension by his bondsmen, this reward going to J. P. Hodges, Sheriff of Franklin county, Virginia. The writer at this time was at the Ponce de Leon Hotel in Roanoke, Virginia, making an investigation as to the character of Jim Smith, etc., and while there met Sheriff Walker and others, in the lobby of the hotel. I remarked, “Well, boys, where is Jim?” and they told me he was in the county jail. My investigation was completed and we all returned from Roanoke to Charleston on the Virginian train. Several people from Princeton and other places on the Virginian Railway identified Richards as the man who had been riding the Virginian train between Deepwater and Roanoke and told us they believed he was crazy, as he had made several proposals of marriage to young girls, telling them that he had a fine farm in the Blue Ridge Mountains of Virginia and that he was a single man at present and wanted a wife. He would carry with him on these trips a small Bible and quote scripture.

Richards made a complete confession coming from Roanoke to Charleston as to the arrangements made for getting the bones and burning his own residence, and offered as an excuse that a Voodoo Man from Virginia had worked some kind of a hoodoo on him until he did not have his own mind; that this man had sent word to him by a detective from Virginia telling him that if he burned his house and put the bones in the ashes that everything would be alright. He still denied any connection with the murder of Martin.

Thinking that our strongest case was against Richards we proceeded to try him at the next term of court on a charge of murder. He was tried and the jury, after a short deliberation, returned into court with a verdict of "Not Guilty". The jury in rendering this verdict based their actions on the fact that the only eye witness who identified Richards as one of the men who did the shooting was himself shot in the eye, Pete Tyler, together with the fact that it was in the night time and the men were some forty feet away from Martin at the time of the shooting.

Gilbert Hall was next tried and acquitted and the cases against the others are still pending.

An odd incident occurred in connection with this case. During our search of the ruins and the discovery of the bones, a resident of that section of the district remarked: "Jim Richards is now in the Blue Ridge Mountains of Virginia souring his mash."



An Investigation I Feared.

In the spring of 1921 I received a telegram from a friend of mine in Carter County, Kentucky, asking me to report at Soldier, Kentucky, which is on the Lexington Division of the Chesapeake and Ohio Railroad out from Ashland, Kentucky. I communicated with my friend by letter and ascertained that there had been a murder committed near Soldier, Kentucky. After arranging a contract which was satisfactory I took a young lady

operative and we together went to Soldier, Kentucky. We were met at the station by Albert Bailey and taken to the farm of I. N. Edens. After arriving there, Mr. Edens and his wife told us the following story:

“We only had two sons and both of them went to war. My youngest son was shell-shocked and lived but a short time after his return home. Our other boy lived on a nearby farm, a faithful and true son to his parents and was loved by all who knew him. It was customary for him about two evenings each week when the weather was favorable to take a hunting trip by himself at night, carrying with him a sixteen gauge shot gun, a carbide light and his faithful hunting dog, Ned. One beautiful moonlight night he left his home and went in the direction of the farm of Kate Tolliver. On this farm is a large still house containing a large copper still. This still had been running for a number of years in Rowan County, Kentucky. Our boy failed to return from his hunting trip at his usual time and about ten o’clock the following day we started a search for him.

“Kate Tolliver had posted a sign on his land stating that no one was allowed to hunt upon the premises. About 11:30 A. M. the following day we found our boy in a dying condition near a little mud hole about two hundreds yards from the still house on Kate Tolliver’s farm. He only lived about twenty minutes after we reached him. He told us that he was coming from the top of the mountain towards the still house when a man, unknown to him, sprang out in front of him and fired two shots from a high powered rifle, both shots taking effect. He told us that after being shot he had made it to this mud hole for a drink of water, a distance of two hundred yards. The parties with me when I found our boy had several different kinds of horns and shot guns, and when we were near the scene one of the men would blow into the barrel of a sixteen gauge shot gun and we could hear the whines and bark of our boy’s dog. We discovered that the only sound he would answer was that which came from a sixteen gauge shot gun. By this means we located him.”

During my investigation in Rowan, Lewis and Carter Counties, a number of men approached me on horse back and asked permission to form a mob to go to the farm of Kate Tolliver and hang both him and Buck McKenzie. Generally speaking the public believed that young Edens was killed by Buck McKenzie at the instance of Kate Tolliver.

During my investigation I examined the thirty acre laurel patch in Carter County which was at one time a noted moonshine den. A notice was made on a small board with the following inscription: “This is as far as any officer is allowed to come.” My understanding is that none would venture beyond that sign.

The next day after the murder of young Edens, the prosecuting attorney, sheriff and other officers came from the county seat to the farm of Tolliver and burned his still house, but the night before Kate Tolliver, with a gray team of horses and a sled, had hauled the still away into Lewis County where it had been destroyed by the roadside. The posse tried several times to catch Tolliver at home, but when he would see them coming he would

proceed to the hills and would not be seen again for several days. We never located McKenzie.

Kate Tolliver was a member of a noted family of criminals living in Rowan and Carter Counties, Kentucky, he having served a number of sentences for murder in the Kentucky state prison and at this time was on parole from a life sentence for murder. He was a member of the same family of which four were murdered by Logan and a number of other citizens about thirty years ago in Moorehead, Kentucky.

While completing my evidence ready for an indictment at Moorehead Kate Tolliver rode into the county seat of Rowan county in a drunken and disorderly manner. He was stopped by the Marshal and a pistol duel ensued in which Tolliver was shot to death by the Marshal. This finished my investigation, one that I feared more than any other I ever made in a criminal case.



DAN CUNNINGHAM

AND SOME STORIES FROM HIS SCRAP-BOOK

Dan Cunningham and His Slow Vengeance.

“Dan Cunningham, Huntsman of the Law,” was the title of a very interesting article in a current number of McClure’s Magazine which attracted considerable attention in this state about the year 1900. The author, Samuel Hopkins Adams, author also of the pamphlet putting forth a strong defense for Caleb Powers, goes on to show that a mission of revenge through the instrumentality of the law dominates the life of Cunningham.

While Cunningham was teaching school in Jackson County, West Virginia, in 1877, his brother, Nathan Cunningham, was waylaid and murdered by what the author called a “consolidated band”, a great secret organization engaged in murder and moonshining. After endeavoring to secure the conviction of Wade Counts, Joe Kiser and others of the band and failing on account of the fear of the officials to molest the band, Cunningham left Jackson County.

For ten years he taught school in Roane County, Putnam and Kanawha Counties. School teaching was all he knew and he had to make a living while learning certain things the normal school does not teach—such as rifle and revolver shooting, wood-craft, mountain training and tricks of the moonshiner. For Dan Cunningham was seeking a job under the United States Government as a local revenue officer. The law that this breed had established and defended at the risk of their lives had failed him. He would try Uncle Sam’s Law. He shrewdly suspected that the band would be moonshining. The band, gaining prestige from the successful murder of Nathan Cunningham, had by terrorizing and political weight, strengthened their hold on the county until in 1887, they dominated it completely. They were thoroughly organized on a clan principle with a “legal adviser” and a “spiritual adviser”. Murders of the most brutal kind were laid to the band’s account. Robbery, arson and other crimes were credited to its various members. Nobody dared to testify against them; the death rate among their

enemies was too high. Their distilling industries and their land grabbing were making them prosperous; it was fair weather for the clan.

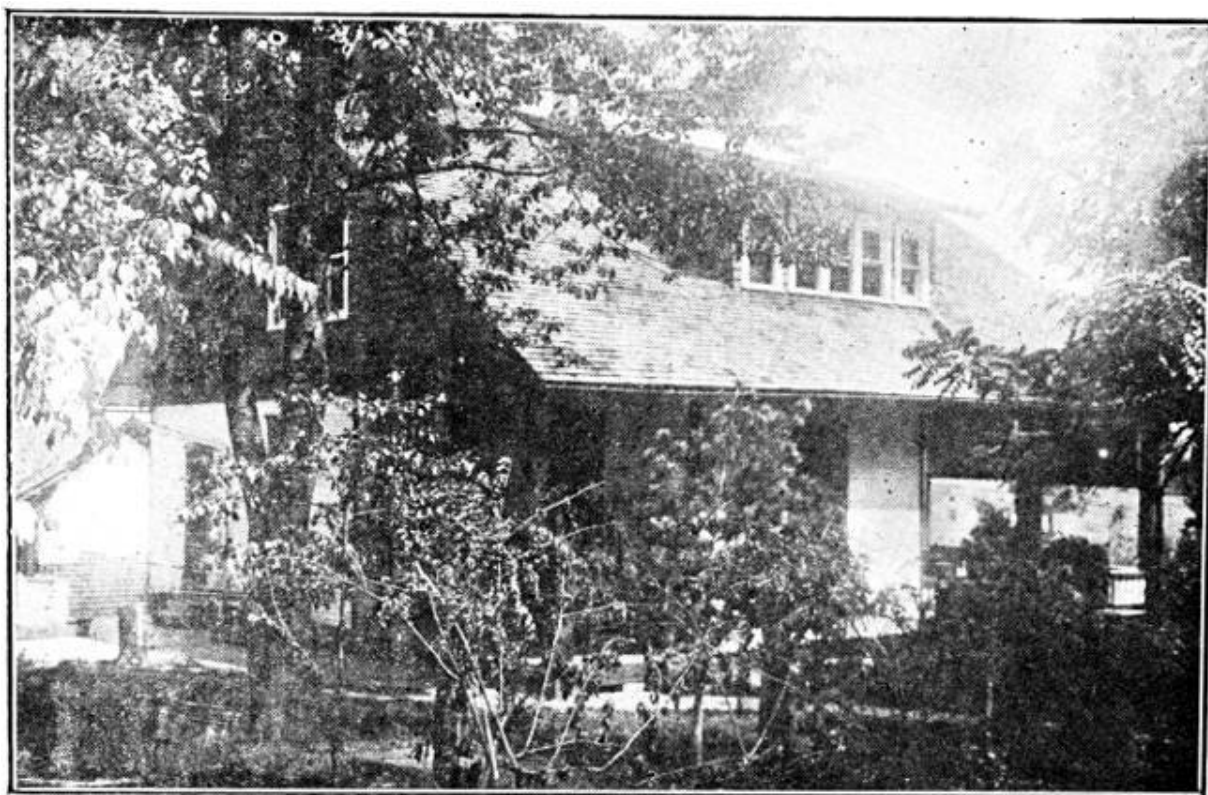
Being successful in procuring an appointment as Deputy United States Marshal for the southern District of West Virginia, Cunningham returned to Jackson County, raided several stills, secured the conviction of two of the Kiser family and one Counts and broke up the band, which emigrated to Roane County. Cunningham followed them up and here comes in the incident as related by Mr. Adams which will arouse some discussion upon the part of those familiar with the subject—the murder of Reverend T. P. Ryan, the father of J. L. and M. W. Ryan and T. P. Ryan, well known attorneys of Fayette County. The affair is related as follows by Mr. Adams:



DAN W. CUNNINGHAM

“In the District of Harper in Roane County, West Virginia, lived the Reverend T. P. Ryan, generally known as Father Ryan. He was a man of clean and up-right life, a hater of crime and disorder and a fearless preacher, therefore, the unerring instinct of the clan saw an enemy. He was shot to death through the window of his own house and before the murder was committed the Skeens and Counts settlements, twelve miles distant, knew all about it. Long before the news could have reached their settlement, the gang were armed and enroute to the spot, to accuse and arrest the Duff boys and a man by the name of Coon, all of whom had been associated with Cunningham in raiding the Jackson County illicit stills. After a mock trial, in secret session, they shot George Duff to death, hanged Coon, and cut Robert Duff’s throat in the presence of his wife. As soon as he learned of this Cunningham started for Roane County. Here was his chance to secure a conviction for murder against the slayers of his brother. He collected the evidence, even to the proceedings and the pass word at the meeting which sentenced the victims, and was about to present them when to his amazement he learned that a warrant had been sworn out charging him with the murder of Father Ryan. To be taken then meant the same death that had been meted out to his friends. For the first and only time in his life, Dan Cunningham evaded the law. He made good his escape while the clan was gathering. The prosecuting attorney, who had married the niece of the consolidated gang, sent word that if the United States Marshal would agree to keep away from Roane County the case would be nollied. The answer was prompt, Cunningham would be there when the case came up for trial and he would bring protection against lynching, but not against any due process of law. The case was called. Witnesses had been subpoenaed to swear that they saw Cunningham fire the shot. Some fled, some were silent; no one testified, the jury returned a verdict of acquittal without leaving their seats. Now came Cunningham’s inning. With his evidence of the murder of Duff and Coon, he went to the prosecuting attorney. That official refused to proceed against the murderers. The inquest, he said, had decided that the victims came to their death at the hands of parties unknown. “Very well,” said Cunningham, “this is another Jackson County. I will await for them to commit a Federal crime.” The Federal crimes were committed—post office robberies, moonshining and counterfeiting. One by one Cunningham got his men. Once he met on a lonely roadway one of the elder Kisers who had borne a part in the slaying of Nathan, his brother. By way of precaution

Cunningham covered him with his revolver. Kiser fell to his knees and began to pray. "Get up," said the Marshal, "if I wanted to kill you and your like, couldn't I have done it a hundred times? Go on and do not turn around." Gossip was then circulated about the countryside that Dan Cunningham was witched against bullets and poison. Both had been tried by the band and both had failed. The bullet fired, fired with a close and steady aim from ambush by the crack shot of the clan which sleeps with its rifle, cut through the breast of his coat, barely burning the skin; the arsenic skillfully prepared in an apple by the "yarb witch" of the band he tried on a hen and watched the hen die, and he went out and arrested two young hopefuls of the Skean family for petit larceny.



Pine-Beech Hill—Home of Dan W. Cunningham.

By repeated arrests and minor convictions he broke up the consolidated band in Roane County as he had in Jackson County. They split, a few remaining in their dens, but too weakened and cowed to be any longer a menace to their district. One faction went down into Tennessee and effected a location there. Several times he went to the county seat of Roane County to present his evidence against the murderers of the Duff boys. Always with

the same negative result. The entry in his diary of one of these failures is followed by this note:

“Some day there will be another prosecuting attorney in Roane County and I will apprehend and bring to justice my brother’s murderers.”

There came a time when the event lay in Cunningham’s hand in Parkersburg, West Virginia. He found lying senseless on the railroad track the official who stood between him and his twenty year deferred vengeance. There was a train in hearing, he had only to walk away. He had, twenty years before, held his hand from the vengeance of murder, so now he forewent his reckoning rather than have a life on his conscience. He dragged the stupefied man from the track and left him lying. If the official reads this, it will be his first knowledge of who saved his life.

Another Case from Cunningham’s Scrap-Book.

“In the year of 1904, a most horrible and cruel murder was committed in Putnam County, West Virginia. Never in the history of this county did a crime so incense the residents of this section as did the foul assassination of Thomas N. Starks, on the night of February 15, 1904. At the time the Charleston Daily Mail reported in full all the horrible details and from time to time recorded the progress of the officers who were investigating the case.

Thomas N. Starks, one of the most respected citizens of the county, was discovered by his daughter, Miss Minerva Starks, who had returned from a visit to neighbors, lying on the floor of his room in his home, bathed in blood from a wound in his temple that had been done by a charge from a shot gun entering his brain. Friends were summoned and medical attention was rendered the wounded man, but with no avail.

The shooting must have occurred about ten-thirty. Thomas Starks, who for eighty-three years had lived without strife and turmoil, died of the assassin’s wounds.

The defense was represented by Attorney Stevens, of Winfield, West Virginia, and E. L. Stone, of Jackson County.

Adam B. Littlepage, of Charleston, West Virginia, opened the case in a statement of the theory of the prosecution. He detailed the surroundings of the murder, and finally announced that the state was in possession of

evidence such as he did not doubt would convict the prisoner, Charles Hawkins, of the fearful crime.

E. L. Stone responded for the defense and stated that the defense would prove their client not guilty to the satisfaction of the court and jury. J. L. Stevens made an additional statement for the defense, to which Mr. Littlepage responded briefly.

The hearing of the evidence commenced in the afternoon. Miss Minerva Starks, the daughter of the murdered man, herself a white-haired old lady, was the first witness called by the state. She stated that on the night of February 15th, she left her father's house just before dark and went about a quarter of a mile to the house of a neighbor named Schultz. Here she remained about three quarters of an hour. When she returned home she saw her father lying on his side in the room usually occupied by him and his face covered with blood. She picked him up and dragged him in the room and then ran for help. She stated that her father frequently kept money at home, sometimes in large sums. He had a boot jack with a hidden receptacle under it where he frequently hid money. The boot jack was exhibited by the state. The cross examination brought out very little except that Mat Bright had been in her father's employ some months prior to his death and that they had had some little differences, the old man having accused Bright of stealing some potatoes from his potato hole. Bright's innocence was afterwards proven and her father had apologized to Bright. Bright was somewhat familiar with the arrangement of the house and the habits of her father. The next witness called was Doctor A. Y. Martin, who gave a professional opinion regarding the wound, its location and the angle at which the charge was fired. Doctor Meyer, the other physician who attended the murdered man, testified to practically the same thing. C. L. Bowyer testified the condition under which he found Starks when he got there just before the arrival of the Doctor. C. A. Howell, the jailer of the county and a deputy sheriff, one of the first to reach the spot from Winfield on the night of the murder, testified regarding the location of furniture in the room when he arrived. He also told of the range of the charge from the shot gun and stated that the chimney of the lamp on the table beside Mr. Starks was also shattered by the charge. J. P. Smith and his wife were both placed on the stand and stated that about nine o'clock on the night of the murder, they heard two men run by their house, which is near the bridge over Big

Hurricane. J. Francis, who resides near the same bridge, corroborated their statements.

Marion Adkins and Raymond Adkins, both of whom were at this time in the Kanawha County jail on a charge of stealing a cow on Cabin Creek several weeks before, were brought to Winfield to testify in the trial.

These men on the night of the 15th of February were on their way to Parkersburg, making across Putnam County on foot from the C. & O. to the K. & M., and saw Hawkins and Bright within a mile of the Starks home.

This is considered a very important link in the chain of circumstances against these men.

The most important witness in the case on trial is none other than Mat Bright, who is under indictment for the same crime.

A month or two ago, his confession in the Kanawha County jail led to the arrest of Charles Hawkins. It was Bright's evidence before the grand jury at a special term, called for the purpose of investigating this murder, that indicted both Hawkins and himself.

The testimony of Bright, who will go on the stand Wednesday, will be one of the most sensational ever heard.

His statements to the officers have been borne out by the other facts secured, and when he faces the jury Wednesday and details to them how Hawkins and he planned the entire crime, and how it was executed, and the disposal of the pitiful returns that resulted from the crime, the effect will be little less than terrible.

Early Tuesday morning, a party consisting of Bright, one of the Adkins, Detective H. C. Smith, T. G. Cochran and Dan W. Cunningham and several newspaper representatives visited the scene of the murder. The Starks farm is a small one located about one and a half miles below Winfield, on the Kanawha River Turnpike.

The house is a comfortable two-story dwelling with a one-story extension in the rear. It was in the room in the extension that the aged farmer was murdered.

Bright explained in detail how, on the night of February 14th, Hawkins made one of his numerous visits to Bright's home, and that there they

planned to kill and rob Thomas N. Starks on the following night.

It was agreed to meet at Hickory Post Office during the following day. Bright was seen on the road with something done up in a paper flour sack which was at the time supposed to have been a banjo, but was in reality the shotgun taken apart with which on that night Hawkins did the killing.

According to the statement of Bright the pair of plotters met at the appointed place and proceeded across the hill to the Starks farm. Bright waited up in a small hollow while Hawkins took the gun and proceeded up the small knoll to the house. Bright heard the report of the gun and the hurried footsteps of the murderer. Hawkins and Bright proceeded down the road and across the bridge of Big Hurricane.

Finally Hawkins divided the spoils, giving Bright a revolver and overcoat and \$2.50 in money, claiming he only secured \$5.00. The County jail here, an antiquated and rather vulnerable looking building, is now occupied by Charles Hawkins and Mat Bright, who are under indictment for murder, and by the two Adkins boys, who are here as witnesses. The Sheriff has the place heavily guarded at all times and especially so after midnight. Last evening there was considerable gossip that a mob was organizing and the jail would be broken into and the prisoners hanged; however, this did not materialize, though a rather ugly looking crowd had assembled near the scene of the murder. On Tuesday afternoon there was still some talk of lynching the men and a proposition was discussed of slipping the two men under indictment out of town and taking them to Charleston for the night.

The sheriff considered this inadvisable and the project was abandoned.

One of the prettiest places in the Kanawha Valley marks the home of Thomas N. Starks. Just back of his house a beautiful green knoll stands out from the surrounding slopes; here, amid the waving grass and under shady trees, is the grave of the murdered man.



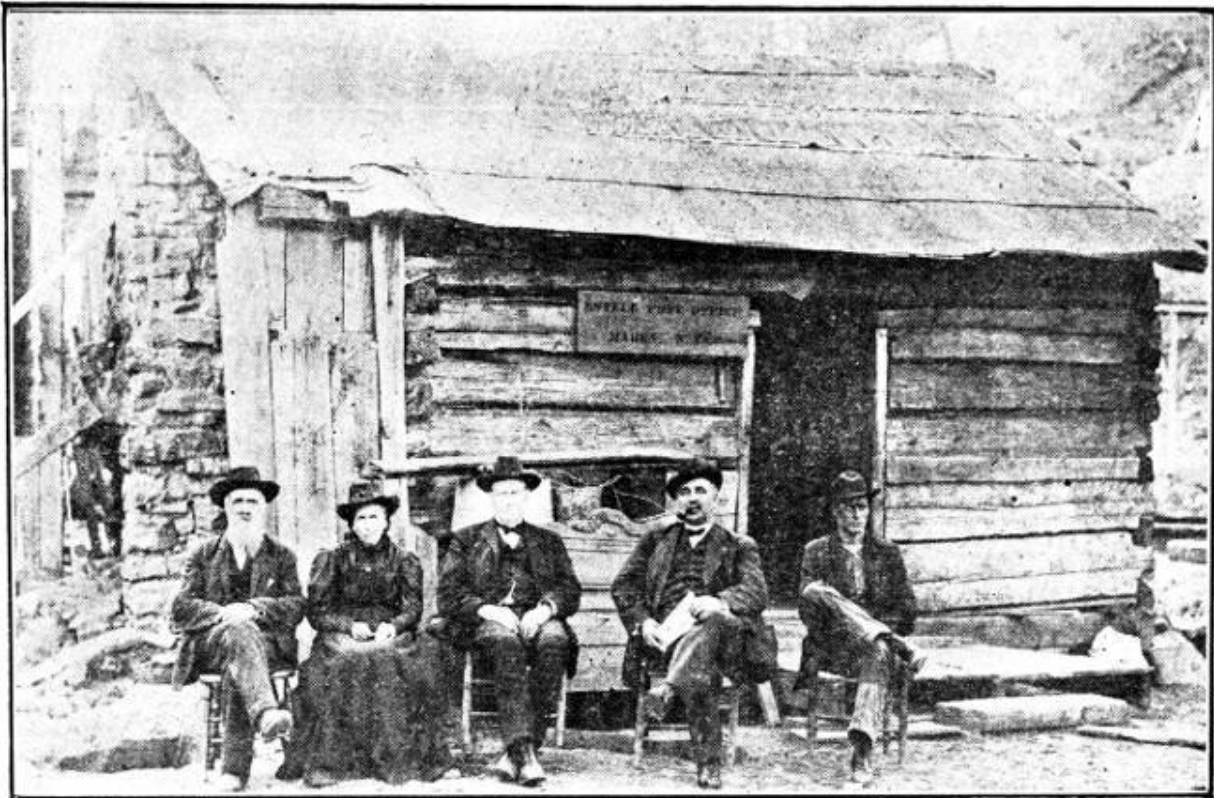
A Typical West Virginia Mountain Abode.

The picture opposite is the first house of what is now, and was then Maben, West Virginia. Maben now is a flourishing little town on the Virginian Railway and the center of a large lumber industry—the Ritter Lumber Company.

In the picture may be seen a pioneer of West Virginia and his wife, who were postmaster and postmistress, respectively, for the town of Maben. The next in the picture is that of myself, D. W. Cunningham. To the right of me is Charles E. Wright, former Special Agent of the Department of Justice, Washington, D. C. To the extreme right is a man under arrest for counterfeiting, who was apprehended by myself and Mr. Wright.

For many years this place was a resting place for officers of the law, as in those days the only mode of transportation was by wagon and foot along narrow trails. The old folks shown would prepare meals for the hungry that passed along the trail.

From a close observation you can see that the man on the extreme right is concealing his hands in his lap, not wanting to disclose the fact that his hands are securely fastened together by handcuffs.



Log Cabin—The Pioneer Home of Maben, W. Va.

A Horrible Crime.

About fifteen years ago, in the peaceful, quiet little town of Barboursville, in Cabell County, West Virginia, nine miles south of the City of Huntington, lived a man by the name of Baker, eighty-four years of age, who ran a small confectionery store, in the rear of which was his living quarters.

One summer evening, while the old gentleman was asleep on his cot, some unknown person entered his little store and home and using the pick shown in the picture herewith, killed him in the most brutal manner, robbery being the motive.

The assassin used the pick with such force that he drove it clear through the head several times.

I accompanied the prosecuting attorney of Cabell County to the awful scene, and we found Mr. Baker as shown in the photograph, and after an investigation located the pick. This pick was taken from the tool house of

the Chesapeake and Ohio Railroad Company about one-half mile south of Barboursville, but we failed to apprehend the man that committed this terrible crime. Several suspects were arrested only to be released from custody after a severe examination. The best clue ever obtained was to the effect that a colored man from some point in Kentucky had been absent from the construction camp a short distance away on the Sunday night of the crime and that he did not show up until the next evening. We tried in every way to locate this man in the State of Kentucky and elsewhere but failed, and to this date the assassin is still at large.



Confessions of An Amateur Yegg.

During the early teens the counties of Lincoln, Raleigh, Boone, Kanawha, Nicholas, Clay, Pocahontas and Webster were terrorized by a

series of store and postoffice robberies and safe blowing. Lincoln county alone had in the neighborhood of forty robberies within two weeks.

The writer was employed by the different merchants in the localities where the robberies occurred to make an investigation. I went from Charleston to Racine, in Boone county, where the general store had been robbed. From this store I was able to obtain some soap with finger prints on it which I kept and followed up this point. The postoffice and general store at Enon, in Nicholas county, was robbed and the iron safe, which was a four way combination affair, was hauled about three hundred yards from the store building and residence of the postmaster by his own sled and horse and blown open with nitroglycerin. The charge was too heavy and blew papers and other documents in the safe several hundred feet away. The robbers obtained nothing but a small amount of money and one ring which had been sent by registered mail to a party at Enon.

While at Racine on my third trip, I accidentally came across some information in a little store by over-hearing a conversation about a young man, whose name I do not care to mention, who had been ordering shoes from Sears, Roebuck & Company and sending them stamps of large denominations to pay for same.

For months I went from county to county securing information on this gang of thieves. The young man from Racine had been sent to the State Hospital at Huntington, West Virginia, to be given treatment for the drug habit. I watched faithfully for his recovery and notified the physician in charge that when he was able I wanted to be wired and would come to Huntington to interview him. The wire came and I went to Huntington. After questioning him, he confessed as follows:

“About one year ago I became acquainted with three men by the names of Calvin Doe, Milton Doe and C. & O. Red, who was a professional yeggman. We traveled from county to county robbing small stores and postoffices, sleeping at night in barns and in the woods. We would go into the woods and when out of nitroglycerin, would make our ‘soup’ by boiling down dynamite. We also carried a small quantity of peroxide to color our hair. One morning while under the influence of drugs, tired and worn out, in the mountains of Pocahontas county, the three above mentioned by me prepared breakfast and they handed me a mirror and told me to take a peep at myself. I did so and discovered that my head of black hair had been dyed a light red color. This process was used while I was sleeping. We all used the hypodermic needle containing morphine when we could not get liquor. I would make an estimate of one hundred or more stores that we robbed. We at one time made a trip from Lincoln to Pocahontas county and then to Webster Springs, robbing several places as we went. While going through to Webster county we stopped to rob a little country store in Flatwoods in Braxton county. The little one room building had shutters and iron bars. At this time we were

carrying about one hundred pounds of seng, which we had stolen. After we released the bars and shutters and started to enter the room someone from the inside fired a heavy shot through the window and we escaped, leaving the seng on the porch of the little store. Before meeting these men I never used drugs in any form and from my association with them I became addicted to the same.”

The writer, after obtaining this information, secured warrants and for several weeks was on the trail of the two men, who at this time were living near the line between Clay and Nicholas counties. These men were from good families. After several failures to capture them, we learned they were in a lumber camp in Pocahontas county, selling moonshine liquor. They were apprehended by the sheriff and others while eating dinner. On being searched each one had a pair of revolvers of a large caliber and plenty of ammunition, together with four gallons of liquor. They were taken to the Pocahontas County jail, charged with moonshining and carrying concealed weapons. I had very little trouble in convincing the sheriff and prosecuting attorney of Pocahontas county that I had these men indicted for serious crimes and would be able to convict them for felonies in the United States Court. Before I brought them from Pocahontas to Charleston, Calvin, who had a wife in Catlettsburg, Kentucky, wrote a letter and asked her to send him a paste board book and conceal two Black Diamond saws between the boards so that he could saw his way to liberty. This letter was given to a trusty to mail, Calvin giving him \$5.00 for the favor. The trusty turned the letter over to the sheriff and in a few days the book came through the mail. Sheriff Cochran received it and took from the paste board back the two saws which Calvin had sent for. He placed them in a solution of acid which took the temper out of them and then replaced them in the book. The book was delivered to Calvin. During the night a watch was kept upon the prisoners and they labored for hours to saw the bars in two, but the saws would only bend and it was of no avail. The next day Calvin figured out the joke and only laughed at what had been done to him. Milton, his brother, had not spoken in the presence of any stranger for weeks, Calvin claiming that he was insane.

I brought both of them from Pocahontas to the Kanawha County jail. While confined here the Post Office Inspector and myself visited the county jail and the Inspector asked Calvin where he purchased the signet ring he was wearing. Calvin immediately left us, walking to the lavatory where he threw it down the commode, flushing it down. This was the same ring which was taken after blowing the safe at Enon in Nicholas county.

They were both tried in the Federal Court for the Southern District of West Virginia, which convened at Webster Springs in September. They were indicted in several cases and given a term of four and one-half years in the Moundsville Penitentiary. Milton had already served at least three sentences in different prisons for robbery. Calvin had served two terms, this making his third conviction and Milton's fourth.

Calvin, at one time, while serving a sentence in the Moundsville prison, scaled the wall by tying together some bed clothing and throwing a hook or loop over the wall, by this means making his escape. He was afterwards captured and returned to the institution. He is now confined in the Federal Prison at Fort Leavenworth, Kansas, and Milton, his brother, is a fugitive from justice, having been indicted in the Intermediate Court of Kanawha county for an automobile theft. It is my understanding that in case Milton is captured he will be tried under the habitual criminal statute and if convicted will receive a life sentence.

My reason for withholding the right names of these men is on account of their parents, who are respected, law-abiding citizens. The young man who made the confession is now married and no longer addicted to the use of drugs, living a clean life.



Soldiers Turn Bandits.

(The following story and data is printed through the courtesy of Rome Mitchell, who is in the opinion of the writer, the best and most efficient Special Agent ever employed by the Huntington Division of the Chesapeake & Ohio Railway. His activities brought to justice these murderers.)

In the summer of 1919, an interurban street car running between Saint Albans and Charleston was boarded at Stop 19, a short distance above Saint Albans, by three suspicious looking men wearing overalls. People in the car afterwards stated that they felt that something was wrong by the actions of the men, they appeared to be in such a nervous condition. Two of the men went to the front of the car and one remained at the rear. At an agreed signal from one of the men in the front of the car, who fired his pistol, the other two got up and commanded the passengers to put up their hands. The conductor started to run and one of the men fired a shot in his direction.

During the excitement that followed Kemper Ruffner, a Charleston boy, escaped through one of the windows of the car with over three hundred dollars in his pocket. After searching the passengers the three men got off the car, where they found the conductor mortally wounded. They searched his clothes and obtained \$10.00 in money, vanishing into the darkness.

This hold-up and murder caused considerable feeling in Kanawha and surrounding counties. Officers of the law everywhere were on the lookout for the culprits. The Police Department at one time during the search for the three men arrested three deaf mutes and had them confined in the Kanawha County jail for a period of about three weeks, trying to connect them with the crime.

At this time Special Officer Mitchell started his investigation of the crime and his first clue led him to believe that the three men in custody were not the ones wanted, as passengers on the car testified that two of the men spoke in giving commands, when only one of the trio confined could speak. Following this up Mitchell started his investigation at Saint Albans and from evidence secured ascertained that two rowboats had been stolen on the night of the crime from the opposite side of the river from Saint Albans near the Town of Nitro. This gave him the idea that persons residing on the Nitro side of the river had committed the crime, as tracks leading from the scene of the crime down to the river bank further bore this theory out.

Conductor John Dame, who was killed, was struck by a 45 caliber automatic bullet, such as is used by the United States Government, and from this evidence Mitchell suspected some of the soldiers on guard duty at Nitro, the Government Powder City. On making inquiries of the officials at Nitro he ascertained the number of men who were absent from camp on this particular night, and after a process of elimination the number absent who could not account for their whereabouts during their absence was reduced to three, namely: Private Doc Maddox, Private Ralph E. Farley and Corporal Warnie Anderson. These three men were arrested, charged with the murder of Dame and brought to Charleston, where they were confined in the Kanawha County jail. They were questioned several times while confined but refused to give any information whatever regarding the crime, stoutly maintaining their innocence.

Maddox was brought before the prosecuting attorney and questioned at some length about the case. At first he was inclined to tell conflicting stories, but after he had been “cornered” several times, he voluntarily made a complete confession. Before the questioning began, Maddox was informed that anything he might say would be used against him in the trial, and that he did not have to answer any of the questions put to him if he preferred to keep quiet on the matter. He expressed a willingness to answer all questions.

Before making his written confession Maddox expressed the desire to be alone for awhile and it was finally agreed that he could remain in the prosecuting attorney’s office as long as he chose with only one officer in the room, who would not talk to him.

In making a “clean breast” of the crime Maddox said that he felt guilty and wanted to get the matter off his mind and take his punishment along with his two accomplices. His confession is as follows:

THE CONFESSION.

“Charleston, W. Va., June 16, 1919.

“I, Private Doc Maddox, Supply Company, United States Infantry, stationed at Nitro, West Virginia, do make the following statement of my own free will and accord, without hope or promise of favor and not under threats of any kind, but realizing the full effect of my confession.

“I am nineteen years of age. I have been in the service two years. On Monday evening, one week ago today, Private Ralph E. Farley, Wagoner, Supply Company, ——th infantry, discussed with me a proposition to hold up the street car running from Saint Albans to Charleston and rob its passengers and conductor. At first I refused; later I agreed if we could get the third man to help. Farley later told me he had talked with Corporal Warnie Anderson, Supply Company, ——th Infantry, and Anderson had agreed to help us. Later, I talked it over with Anderson and he agreed. On Tuesday, I borrowed Bugler Cooper’s (Company E, ——th United States Infantry) 45 caliber automatic pistol to take with me. The three of us, at Farley’s suggestion, had agreed to go armed and wear overalls as a disguise. I borrowed overalls. They were khaki colored, buttoning clear up to the throat. The others also had overalls, one blue and khaki colored also. I carried my overalls in a bundle, accompanied by Farley and Anderson, on the ferry boat, “Sandy Valley”, about seven p. m. of Tuesday, June 10th. At Saint Albans, I took my overalls to the bushes on the river bank and put them with Anderson’s and Farley’s. Later, I went there, got all of them, and went up the river bank, met them and we all put the overalls on in the bushes. Just before that I saw some woman and children and a man in swimming. I did not see them again. After putting on the overalls, we three crossed the field to the railroad pumping station. We asked a man in charge there for water and he gave it to us.

“We went from there to Stop 19 on the car line. We boarded it. Anderson and I went to the front and Farley remained at the rear. At an agreed signal from Farley, who was to shoot, Anderson and I got up and I shot through the top of the car, calling on passengers to put up their hands. The conductor, whom I knew slightly, tried to run and I saw Farley shoot in his direction as he ran. I saw

Anderson at the front of the car after the motorman. I think he struck the motorman with his gun. One passenger jumped through the window and my gun jammed so that I could not fire it.

“We went through the passengers and then got off. We started down the track and came upon the motorman and conductor. Farley shot into the ground near the motorman and told them to put up their hands. I searched the conductor and got \$10.00. He said he was shot in the side. We then went down the river bank, took a boat, crossed to Sattes side of the river and walked to Nitro. We hid our guns on the way into Nitro. Later I got mine and returned it to Cooper. We threw our overalls into the river as we crossed it. We wore our uniforms into camp.

“I have not talked to witnesses of the car robbery, but I told ——— after the robbery all about our intentions and what we had done. Later I learned of an attempt to identify us at Nitro and I left. At Lock Seven I saw the man who had jumped through the window and turned away so he could not see me. I think Farley shot the conductor. I shot no one and I think Anderson struck the motorman with the butt of his revolver.

“The foregoing is written at my instance in the presence of Thomas Cochran and others.

“It is freely given after a consideration by me of it all, being given ample time to think it over at my request.

“(Signed) DOC MADDOX.

“Witness:

“T. G. Cochran and others.”

The above men were brought to trial, Farley and Anderson still maintaining their innocence in view of the above confession. The trial proceeded and when about half completed, they changed their plea of not guilty to one of guilty and threw themselves upon the mercy of the court. Farley was sentenced to life imprisonment, Anderson received fifteen years and Maddox fifteen years.



A Peculiar Murder.

On the west side of the City of Charleston on the hill opposite Crescent Road, lived a family by the name of Jarrett. Jarrett and his wife had separated and were divorced, Mrs. Jarrett later marrying a man by the name of B. Overstreet. After living with Overstreet a short while, Mrs. Jarrett compelled her second husband to return to the home of her former husband and live there where she could be with her children.

Domestic troubles frequently occurred in this home. Overstreet became ill and could not work, Jarrett ordering him to leave the home. Mrs. Overstreet agreed with her former husband in this respect that Overstreet

should leave. Overstreet would leave and stay away through the day and return home at night, seemingly losing his mind on account of his illness.

One evening about ten o'clock the writer was called by the prosecuting attorney to investigate the circumstances surrounding what was termed a suicide on the West Side. Being busy with another criminal matter I turned the case over to W. M. Thomas and C. H. Martin, Constables of Charleston District. These men went to the scene of the supposed suicide and found B. Overstreet lying near the back porch of the house with the top of his head completely blown off. The first thing the officers noted was the distance the gun was lying from the body of Overstreet. They next used their flash light in looking under the floor and the gun was lying a distance of twelve feet from the body, and when the gun was lifted from the ground an exact impression of the gun was found in the dust which could not have been otherwise unless carefully laid down in the dust under the house. This led the officers to believe that the supposed suicide was a murder. Questioning several people in the neighborhood they secured information that showed Overstreet had been ordered from the home because he was unable to work and pay the expenses of him and his wife, his wife refusing to live with him and stay away from her children.



W. M. THOMAS

George J. Jarrett was interviewed and he claimed that Overstreet had been hunting that evening and came in and went to the back porch and had been sitting there for a considerable time when they heard the gun explode and running from the house to the place where Overstreet had been sitting found him with his head blown off. The children were all trained to tell the same story. Our investigation from time to time showed that a wilful murder had been committed either by George Jarrett or his son, Hamilton Jarrett.

On Sunday following the murder we issued warrants and arrested George Jarrett, the father and Hamilton Jarrett, the son, and brought them before G. D. Acree, Justice of the Peace, where we questioned them in reference to the murder. After two hours sweating Hamilton Jarrett told the story, as follows:

“Father and B. Overstreet have been having trouble for weeks, father having ordered him away on several occasions. This evening he came back, and father asked him if he was not going to leave. Father had taken a shot gun from the rack and going out the back way walked to where Overstreet was and said: ‘B, are you going to leave here as I told you? If you do not go I am going to shoot you.’ Overstreet replied: ‘Shoot, damn you,’ and the shot was fired and when I went out B. Overstreet

had his head blown off by the gun father had taken from the rack. Father told us what story to tell and we all stuck to it. I had nothing to do with the murder and father did it all.”

This same statement was also corroborated by Jarrett’s former wife and daughter, Jarrett claiming that they had been scared into telling falsehoods on him and denying that he was guilty of the murder. George Jarrett and Hamilton were confined in the county jail for some time, after which they gave bond. George Jarrett was later indicted for the murder of Overstreet by a Kanawha County Grand Jury. The evidence was insufficient to convict on the ground that the evidence was not voluntary and that the family would change their statements, saying that they were scared into telling this story by threats of being punished themselves for the murder. This, however, was not true as to threats. In making the investigation the only evidence obtainable was that of the Jarrett family and under these circumstances the prosecution was blocked.

This case is cited to show suicide is some times murder. Make an investigation in all cases of this nature.

Mat Jarrell—Holly Griffith No. 2.

In the fall of 1915, Kanawha and Raleigh counties, West Virginia, were terrorized by a young outlaw named Mat Jarrell, who was a coal miner by occupation, and while working in the mines a slate fall crippled him so severely that it was necessary to amputate one of his legs.

For years he wore a peg leg and later on a cork leg. After this accident he would do outside work in the coal fields, such as hostler and other light work. Jarrell had been reared by poor parents and had learned from childhood to use mountain dew, commonly called moonshine. While under the influence of liquor, Jarrell had committed a number of assaults and other depredations, being feared by most everyone in the community.

Jarrell, during one of his drunken sprees, killed one of his fellowmen on Cabin Creek and was given a long sentence in the penitentiary. After serving a short term he was paroled and on the day he left prison, he made the following remark to the Warden: “Prepare the death cell for me for I am coming back.” After enjoying a few months of freedom on parole, Jarrell violated the conditions under which he was released and re-commitment papers were issued by the Governor and placed in the hands of the Sheriff

of Kanawha County for execution. Before the sheriff could apprehend Jarrell and place him under arrest, a man by the name of Albert Webb, who had served terms in the penitentiary for both murder and counterfeiting, engaged in a free-for-all fight with Jarrell and during the fray, shot Jarrell five times, but not before Jarrell had slashed Webb and his brother severely with a knife. Jarrell was taken to the Sheltering Arms Hospital at Hansford where five weeks later he recovered.

After leaving the hospital and on his way to see his aged mother, Jarrell again became intoxicated in a little town called Oakley on Cabin Creek, where he engaged in a discussion with Henry Ratliff and threatened to do Ratliff bodily harm, displaying two large revolvers. Ratliff seized a shot gun and Jarrell killed him instantly before he had an opportunity to use the weapon. During this shooting scrape Jarrell shot a young lady by the name of Belle Adams, who recovered.

After this occurrence Jarrell brandished his two guns in true western style and swung to the pilot of a locomotive and made his escape, getting off at Cane Fork on Cabin Creek, where he was joined by his brother and another confederate, who at this time had secured arms and ammunition.

Before they left Cane Fork, Jarrell was approached by Frank Nantz, a special officer, who had learned of Jarrell's escapades. The meeting took place in Risk's store. The trio opened fire on the officer, sending three shots through his body. Nantz died in a few hours.

Rome Mitchell, Constable of Cabin Creek District at that time, and E. E. Bragg, a Deputy Sheriff, organized a posse of ten determined men. Mitchell notified Sheriff Bonner Hill at Charleston and he later joined the posse.

After leaving Cane Fork, Jarrell and his pals stole a push car and went to the house of Esau Coon, one mile below the mouth of Seng Creek on Big Coal river. Mitchell and his men tracked Jarrell from the mouth of the creek to the house, the tracks being very plain on account of the cork leg worn by Jarrell. On approaching the house, Mitchell discovered Jarrell at the window and telling his brother to stand by the fence and if anything went wrong to pulverize the window, proceeded towards the house. He was met inside of the fence a short distance from the house by a young man coming from the house who informed him that he would be killed if he entered the

house. Mitchell finally gained admission to the home and heard Jarrell up stairs. He called out to him and asked him to surrender, Jarrell answering, saying “Alright, don’t shoot me.” Mitchell told him that he would not be shot if he surrendered peaceably and Jarrell told him that he would surrender to him but no one else. Mitchell proceeded up the steps and on reaching the top of the stairs threw a rifle on Jarrell. Jarrell grabbed a young lady that was in the room with him and shoved her in front of him, saying all the time, “Rome, don’t shoot me.” Two revolvers, a high power rifle and plenty of ammunition was found in the room.

Jarrell was brought to Charleston and confined in the Kanawha County jail without bond. He was finally tried and sentenced to hang for his crimes. While awaiting transportation to the penitentiary his gray haired old mother made a brave fight against odds to have her son’s life saved, but without success, and he paid the supreme penalty for his many crimes. Some years later his mother was buried by the side of her “Darling Boy”, the term she used in addressing him while he was confined in the county jail.

Jarrell, during his life, was one of the most blood-thirsty criminals in the annals of the history of West Virginia, and on several occasions he would draw a pistol from his pocket and compel men, women and children to kneel in the middle of a country road and say their prayers, all the while shooting with his pistol into the ground beside them. While awaiting the date of his death in what is known as the “death cell” in the penitentiary, he weakened, and wrote a letter to Dr. O. L. Aultz, at that time county physician for Kanawha county who had attended Jarrell at the jail. In this letter he implored the doctor to do everything in his power to persuade the Governor to commute his sentence to life imprisonment.



CAPTURE OF WAYNE COUNTY DESPERADOES

Dan Cunningham's Well Devised Plans Are Successful.

One of the most desperate battles between officers of the law and outlaws in the annals of criminal strife in the Big Sandy Valley took place shortly after daylight in the month of December, 1908, at the home of Bill Vinson, about two miles below Webb Station in the extreme southern part of Wayne county and bordering on the Big Sandy river. As a result of the conflict between a posse of fourteen men, composed of ten deputy United States marshals from West Virginia, and four deputy sheriffs from Lawrence county, Kentucky, and the gang of desperadoes that have been terrorizing that section, two men were instantly killed. Deputy Sheriff Wylie Litteral of Louisa, a member of the posse that surrounded the house, was shot down and instantly killed by a bullet from the revolver of "Bill" Vinson, the father of Joe Vinson, the head of the gang.

VINSON SHOT DOWN.

No sooner had Vinson pulled the trigger of his pistol that sent the bullet into the body of the officer than he was made a target for the automatic rifles in the hands of the officers and he expiated the crime which he had committed an instant before. Seeing that it was a fight to the finish the officers rapidly closed in around the house and succeeded in arresting Joe Vinson, the head of the gang, the man who had been defying arrest for many months, and with him Morris Bates and "Bill" Vinson, Jr., a son of the man who was killed. According to a telegram received from Deputy Marshal Dan Cunningham, the wives of the desperadoes fought like she-devils and one of the women put a knife through the body of the dead deputy sheriff. This woman, who is thought to have been the wife of the Vinson who was killed, was also placed under arrest by the marshals, and she was brought to Huntington in company with the male desperadoes and lodged in the Cabell county jail.

Joe Vinson, the head of the gang, and the one that has probably been responsible for the whole trouble, is wanted by the United States authorities on several charges, having been indicted for the illicit retailing of liquor,

wanted on a bench warrant from the Eastern District of Kentucky, and in the proceedings instituted in the Federal Court of the district by his creditors to have him thrown into bankruptcy. All recent efforts which have been made by the officers to land him before the court have utterly failed, as in each instance he would make his escape with the assistance of the members of the gang that protected him. Only a few weeks ago, he was caught on the Kentucky side of the river by a deputy sheriff from Louisa, who started with him for the jail, but enroute he was overtaken by Vinson's gang, who took their leader from the officer and brought him back to his home on the West Virginia side.

PLANS WELL LAID FOR ARREST.

United States Marshal Frank Tyree, with the assistance of his efficient assistants, have been laying plans for the past several weeks to take Vinson into custody and took the matter up with the Department of Justice at Washington. He succeeded in securing commissions for several special United States marshals to assist him in the raid upon Vinson's fort near Webb, and at night the posse was formed after the extra men had been sworn in by Attorney J. P. Douglas of District Attorney Elliott Northcott's office.

Armed with automatic Winchesters, the posse, headed by Deputy Marshal Sam Davis of this city, and Dan Cunningham, of Charleston, left Huntington on the midnight car for Kenova. Other members of the posse were Howard C. Smith, of the Smith Detective Agency of Charleston; Ward Brumfield, who had many exciting experiences in the Hart's Creek feud; S. H. Owens, G. D. Acree, Joseph Messenger, C. H. Martin, T. J. Cochran and others. Upon their arrival at Kenova they were joined by Deputy Sheriff Litteral, of Louisa, and three other officers, the posse numbering in all sixteen men. They left on the train for Webb and arrived there before daylight the next morning. Just as the light of a new day was dawning, the posse reached the home of Joe Vinson, and surrounded the house. Vinson and his gang were not surprised, for they had been notified by some one from Louisa of the coming of the officers and were in waiting. After having surrounded the house, the men called for Joe Vinson to come out, and in an instant a volley of shots poured forth from various parts of the house. Their answer to the summons was "fight". The officers, who had their guns in readiness, instantly answered the volley, and the battle began. Not less than

fifty shots were fired. Two of the men who were in Vinson's house, it is believed, made their escape while the officers succeeded in arresting three of them, Joe Vinson, Morris Bates and "Bill" Vinson, Jr. The senior Vinson was killed. Blood-hounds belonging to Howard Smith of Charleston, one of the members of the posse, were placed on the trail of the two men that are supposed to have escaped from the house, and there will probably be another battle if the dogs succeed in following up the trail. The body of Litteral was brought to Fort Gay at noon today enroute to Louisa, the home of the unfortunate man. Litteral was a young man of only twenty-five years and had only recently been married. The men who were taken in charge were disarmed, shackled, and brought to Huntington in custody of the officers. They were placed in the county jail for safe keeping.

THE RECORD OF JOE VINSON.

For the past ten years Joe Vinson had owned and operated a general store about two miles below Webb, and enjoyed an extensive and profitable trade. His bills were always discounted and he was regarded by wholesalers as a customer of first rating. A few months later he bought a plot of ground in the village of Webb, erected a storehouse thereon and had no difficulty in filling it with goods. He explained, when purchases were made, that he would be unable to pay cash as he had formerly done on account of the expense he had been put to in the erection of the new store. He had in all about twenty-five hundred dollars worth of goods in the new store at Webb, but when the bills for the goods fell due, the wholesale people were unable to make collection. Finally one hardware firm, which had credited Vinson to the extent of about five hundred dollars, instituted proceedings in bankruptcy, and a seizure warrant was issued, authorizing the creditors to take charge of the stock pending the consummation of the bankruptcy proceedings. The papers were placed in the hands of deputy United States marshals for service, but Vinson would always avoid service by crossing the Tug river into Kentucky on the approach of the deputies. Joe Vinson had also been indicted in the United States court both in Kentucky and West Virginia for illicit retailing of whiskey. Deputy Sheriff Litteral of Kentucky, who was killed, placed Vinson under arrest, but Vinson's father, brothers and friends forcibly took him from the custody of the officer. A short time later deputy sheriff Litteral, accompanied by Roland Sammon, again arrested Vinson, and took him to Louisa, where he gave bond for his

appearance before the United States court. Vinson resisted arrest at this time and there were several shots exchanged, one man being shot in the shoulder.

When the proceedings in bankruptcy were instituted it was discovered that Vinson had placed the property, where the second store was located, in his wife's name, and as soon as the trouble arose he sold the stock of goods to the Currys, who live within a mile or two of Webb. The Currys are desperate characters, and for years had terrorized the part of Wayne county in which they lived. These goods were in turn sold by the Currys to various families in the neighborhood.

The immediate cause of the battle was the attempted arrest of Joe Vinson by the deputy marshals, and a posse of officers, on the charge of violation of section 3292 United States Statutes, which covers the illicit retailing of liquor. Vinson had sold liquor in this way for years, he and his friends being a law unto themselves, and officers attempting to serve warrants did so at the risk of their lives. Bill Vinson, who was killed, is the father of Joe Vinson. All the members of the family have been indicted at various times on various charges in Kentucky and West Virginia, but they had never been brought to justice.



The Capture of Robert Darrow, alias "Big East"

In the month of July, 1915, Henry Voirs, a Deputy Sheriff of Cabin Creek District, Kanawha County, West Virginia, residing at Ronda on the Cabin Creek Division of the Chesapeake & Ohio Railway, was searching freight trains for booze runners, and came in contact with a noted colored bootlegger, Robert Darrow, alias "Big East". This colored man had a large quantity of liquor on a freight train going up Cabin Creek and Voirs was notified of this fact and searched the train at Ronda. Voirs located Darrow on the top of a car, having his liquor concealed on the same train. When Voirs sighted Darrow he ordered him to come down from the top of the car. Instead of obeying the command of the officer, Darrow told him to "come up and get me." Voirs started up the ladder at the side of the car and just as he reached the top Darrow shot him through the neck just below the chin, killing him instantly.

The next morning C. & O. Special Officer Rome Mitchell and others were on the trail of "Big East" and about two o'clock a.m., while searching an empty box car train in the Saint Albans yard they came upon a car with the door about six inches ajar. Mitchell shoved the door back and with a flash light in his hand looked into the car. He had no sooner done this than a shot rang out, a bullet barely missing Mitchell's nose. After several shots were fired, Darrow succeeded in making his escape. Darrow seemed to have a charmed life, as three of the officers, including Mitchell, fired over fifteen shots at him.

After this fray with the officers, Darrow was next seen near Leon, West Virginia, with a pistol in his hand. He was later arrested in Huntington, West Virginia, on a charge of carrying concealed weapons. On searching Darrow's belongings at his room, several letters were found addressed to him from a woman in Cincinnati, Ohio, living at 404 Johns street. Mitchell went to Cincinnati and interviewed this woman and found out that she had been a "lover" of Darrow but that he had "turned her down for another woman." She said that if she was given \$50.00 she would locate Darrow for them. Twenty-five dollars of this amount was paid to her and she was told that as soon as she located Darrow the other \$25.00 would be paid. About ten days later a letter was received from her stating that Darrow was working in Erie, Pennsylvania, hustling freight in the depot there. Darrow was arrested, tried and sentenced to life imprisonment in the West Virginia Penitentiary at Moundsville and is now serving that sentence.

Darrow was a giant, being five feet eleven inches in height and weighing two hundred and twenty pounds. His wrists were so large that a pair of Peerless handcuffs cut his wrists so severely they had to be removed, as they would stop the circulation when fastened in the last notch. He was a highly educated colored man, having a patent pending in Washington, D. C., for the super-heating of locomotives. After his sentence this patent was turned over to his brother.

Missing Shoe Heel Convicts Murderer.

During the fishing season in 1906, there lived at Lamont on Cabin Creek a huge colored giant by the name of William McCoy. He was a saucy, impudent, overbearing negro and tried to be master among his race.

McCoy married a widow, who had a beautiful daughter. Soon after the marriage domestic troubles started, as McCoy thought more of the daughter than of the wife. In order to avoid trouble and publicity the mother gave her daughter's hand in marriage to a young colored man, but after this marriage McCoy would insist upon going to call on his step-daughter, she refusing to see him.

McCoy's heart became full of hatred and jealousy, so he planned to get rid of his step son-in-law. He arranged a fishing trip going by the way of Orange, West Virginia, to Coal river and down into Boone county. McCoy invited his step-daughter and his step son-in-law, together with his wife and a deacon in a church, to accompany him on this trip.

After they had been in camp for a few days, McCoy asked the younger man to trade shot gun shells with him, giving the boy a shell loaded with No. 8 bird shot and asking in return for a shell containing No. 2 shot usually used in hunting turkeys. The trade took place in the presence of the deacon. After the trade was consummated, McCoy pulled his knife from his pocket and cut a ring around the lower edge of the shell just between the powder and the shot. The old deacon on seeing this operation, and knowing the ill will which McCoy bore toward the younger man, left the camp and was not located for some time afterwards.

A couple of days after this occurrence, McCoy and his step-son-in-law were returning from a fishing trip, both carrying their shot guns. Before reaching the camp, McCoy deliberately fired the shell loaded with the No. 8 into the head of the younger man scattering his brains in every direction.

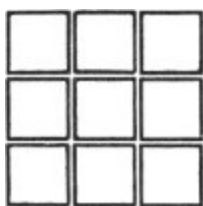
McCoy returned to the camp alone and when questioned by his step-daughter as to the whereabouts of her husband, McCoy stated that he had left and was not coming back and had told him the reason he was going was that he did not like his wife. McCoy produced a note from his pocket and handed it to the girl, stating that it was a note from her husband.

The young wife worried for days about her husband and finally employed the author to see if he could not be found. At this time I was acting in the capacity of peace officer in the coal fields along Cabin Creek.

After I started my investigation the circumstances were such that I suspected foul play and after I had obtained considerable facts in the case, a

farmer by the name of Black Cooper came in to see me on horseback and notified me that he had found the body of a colored man on Coal Fork. I then went to the home of William McCoy and placed him under arrest and made him accompany me to the place where the body was found. I at this point turned him over to George Hendricks, a constable of Boone county, who had considerable trouble on account of mob violence in taking him to the county jail at Madison. I then found the shot gun shell near the body which no doubt was the one that contained the fatal charge that killed the colored lad. My next step was to measure tracks which led, to the body from the main road. These tracks when measured compared favorably with a No. 12 shoe, which William McCoy wore, and I discovered from one print that the heel on the right shoe was missing. A search of McCoy's home revealed the pair of shoes which he wore on the fishing trip and the right heel was missing. Upon these circumstances an indictment was made charging McCoy with the murder. The missing shoe heel connected the missing link in the chain of circumstances surrounding the killing.

McCoy was tried at Madison, the county seat of Boone county and convicted of murder in the first degree and was given a sentence of fifteen years at hard labor. While being taken from the court house to the jail McCoy made this remark: "Clendenen, I will serve my sentence and I will settle with you in full when it is over." To this date this account has never been settled and I hope it never will.



Restrictions Governing a Private Detective.

The public may define the word "detective" little or much. It does not always mean that the man bearing that title is invested with special privileges, power or rights. The public is apt to classify all detectives under the head of special police officers. This is not a fact, as detectives are classified under several heads; that is, Federal, Police and Private. But it is

not the purpose of this article to deal with the rights, duties, privileges and restrictions of but one class, the Private Detective.

The private detective has no powers of arrest unless deputized by some bonded officer to assist him in making an arrest. The above applies to all private detectives, even those operating under the well known bureaus such as the William J. Burns and Pinkerton Agencies, as well as those belonging to local bureaus or acting as individuals. He is subject to the same restrictions that govern the ordinary citizen. He must conform to the same laws and is liable for the infractions of those laws as though he were a private citizen, which in fact he is. It must also be remembered that the private detective has no legal standing as such, and being a member of a detective agency does not give him any authority to carry fire arms, make arrests, etc., unless armed with proper papers giving him the authority. (The above to conform with the laws of the State of West Virginia.)

He becomes liable if he restrains in any manner the personal liberty of any citizen. In West Virginia and other states the law recognizes a few cases in which any citizen may make an arrest. These crimes are burglary, murder, and other felonies. In some states a bonded officer such as a constable or deputy sheriff, may enter a building forcibly if he first demands and is refused admittance, or in case of extreme emergency he may not make such demand, but the private detective has no such right and is himself liable to arrest if he forcibly enters a building unless armed with a warrant from the proper authorities.

The law considers it a felony to compound one. The same law applies to a misdemeanor charge. Many private detectives and other officers purposely refrain from reporting a fraud and other charges for the purpose of gain, but, in doing so, it is distinctly unlawful and makes them liable to arrest and prosecution. In the larger cities the private detective is called upon to make investigations where the police department is not at all interested. These charges are such as selling liquor, bribery, blackmailing, political trickery and others of the same class. Making these investigations is the duty of the private detective. In a secret way he may aid in planning a crime, but must not take part in the actual commission; he must not suggest a crime; he must not gather evidence under the false pretense that he is a regular constituted and bonded officer. He must at all times respect the rights of private citizens.

The private detective who belongs to an agency must remember that principals are held responsible for their agent's acts, and he must not overstep his powers, as by so doing he not only makes himself liable, but also embroils and brings discredit upon his agency. He should also remember that an agent is held responsible for an act which brings loss or discredit to the firm which he represents. In case of violent and unlawful attack, the private detective may protect himself even to the extent of killing his assailant, but he must be able to prove that the killing was done in self-defense. He must be careful not to provoke attack by threats or the use of force and he must not wilfully take part in any fray.

Many of the states have laws governing the licensing and operation of such bureaus, but no state can confer special police power upon such bureaus. Special police powers, however, may be and often are conferred by county and city police authorities. Colorado has an especially severe license law requiring the applicant to give heavy bond and pay a yearly fee of fifty dollars. This however, applies only to the agencies. Georgia does not require a license for the private detective, but has an Anti-Pinkerton Law which states that no police officer of the state may deputize a man who is not a resident of the state, and no person may assume any police powers, duties or privileges who has not received his appointment from a lawfully constituted authority. A violation of this act is a misdemeanor.

A large number of states require no license for a private detective, but the very fact that they do not require a license is evidence of the fact that they do not give any privileges or immunity to men engaged in private detective work. In the following states the private detective is not required to take out a license: Alabama, Arkansas, Arizona, Colorado, Connecticut, Delaware, Indiana, Iowa, Illinois, Kansas, Kentucky, Louisiana, Maine, Maryland, Mississippi, Michigan, Montana, Missouri, Nevada, New Hampshire, New Mexico, Nebraska, Oregon, Ohio, Rhode Island, South Carolina, Tennessee, Texas, Utah, Vermont, Virginia, Washington, West Virginia, Wisconsin and Wyoming.

The states mentioned above have a severe law for the punishment of persons carrying concealed weapons and interfering with the business or private life of an individual by impersonating an officer.

In conclusion, it must be understood that a private detective is not an officer of the law and has no right to make arrests or carry concealed weapons unless he has a license or permission to do so from the proper authorities. He cannot be appointed and is not elected and has no official capacity at all; therefore, the private detective is only a private agent and unofficial investigator. He only offers to the public his skill in investigation and detection, and his success is entirely dependent upon his own initiative. His great power is for good and if he succeeds, he becomes a friend of society and an enemy of the evil-doer. As a general rule private detectives are intelligent, useful and law-abiding citizens. I take off my hat to those that are sincere, also for the good they have done and are doing. One curse of the private detective profession is the rank amateur, the badge flasher, the gun man and the ignoramus who brings discredit upon those that are sincere and trying to do the right thing. To him, I say read this over again, study it thoroughly and make use of the information I give you for it is used here for your guidance.

With a few more remarks, I end my task. The great herd of mankind pass their lives in listless inattention and indifference as to what is going on around them, but the detective who is alert does not allow anything to escape him; consequently I would say that the key to success in the detective game is observation and attention to seemingly little things. So many men fail to succeed as they are too ready to imagine those cases wherein they might have shown their trustworthiness and integrity. The more minute and trivial opportunities of being just and up-right are constantly occurring to those engaged in the detective profession.

Honesty, in this profession, as in all others, is the best policy, and bear in mind "that which ye sow, ye shall also reap."

THE END



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